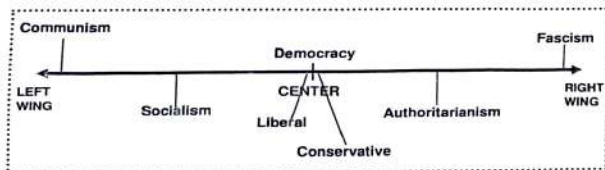


- A government controlled by a small, elite group of people, often based on wealth, family, or military power.
- The interests of the elite are prioritized over those of the general population.
- Democracy:**

  - A system of government where power is vested in the people, who exercise their rights through free and fair elections, representation, and participation in decision-making.
  - It can be **direct** (where citizens vote on laws) or **representative** (where citizens elect officials to make decisions on their behalf).

### Political Ideologies:



- Left:** Advocates for social equality, redistribution of wealth, and government intervention in the economy to reduce inequality. Examples: Socialism, Communism.
- Right:** Focuses on individual freedoms, limited government, free markets, and traditional values. Often prioritizes national security and cultural conservatism.
- Liberal:** Emphasizes personal freedoms, human rights, and equality, advocating for reform and progressive policies while supporting market economies.
- Communist:** Seeks a classless, stateless society where the means of production are collectively owned, eliminating private property and capitalism.
- Centrist:** Advocates a balanced approach, borrowing policies from both left and right, focusing on pragmatism and moderation rather than ideology.
- Extremist:** Represents radical views on either end of the political spectrum, often advocating for revolutionary changes or rejecting democratic principles entirely.

Undercrispsion: Demand for constituent Assembly of 1942.

Finalised: 04 DEC 1946

Final Draft: 26 NOV 1949

Implemented: 26 MAR 1950

Time taken for drafting of Constitution (2 years 11 months 8 days)

(From M. Lakshmi Narayan)

### Making of the Indian Constitution:

Partially members elected

### Composition of the Constituent Assembly:

Partially members nominated.

- The Constituent Assembly was indirectly elected by the Provincial Legislative Assemblies.
- Established under the Cabinet Mission Plan (1946).
- Princely States nominated their members, unlike British Indian provinces, where members were elected.

### Role of Provincial Assemblies:

- Provincial Assemblies were legislative bodies during British rule.
- They implemented representative governance, which later influenced the structure of state legislatures in independent India.

### How Were Provincial Assemblies Elected?

- Provincial Assemblies were elected in 1937, and 1946.
- Approximately 35 million people participated due to restricted suffrage, meaning only certain sections of the population (property owners, taxpayers, and educated individuals) had the right to vote.

### Election Process for Constituent Assembly:

- One representative for every one million population.
- 292 members were elected indirectly by the Provincial Legislative Assemblies.
- Method of election:

  - Single transferable vote system.
  - Proportional representation system.
- Seats were allocated based on community representation:

  - General (Hindus, Sikhs, Muslims, etc.).

## Polity

### Chapter 02: Preamble

#### Lecture 01: Preamble

##### Proportional Representation (PR)

- **Representation Based on Population Proportionality:** In a proportional representation system, seats in the legislature are allocated to political parties or candidates in proportion to the number of votes they receive in an election. This ensures that smaller parties and diverse political groups are better represented based on their actual share of the vote.

##### Single Transferable Vote (STV)

- **Electoral Process:** The STV system is used in multi-member constituencies, where voters rank candidates in order of preference. A candidate must achieve a specified quota of votes to be elected. Votes are transferred from the least popular candidates to voters' next choices until all seats are filled.
- **Key Features:**
  - **Proportional Representation:** The STV system provides proportional representation, ensuring that the number of seats gained by a party or group reflects the proportion of votes they received.
  - **Preferential Voting:** Voters rank candidates in order of preference, and the candidates with the most preferences are elected. This system encourages more diverse representation and reduces the likelihood of wasted votes.
  - **Multi-Member Constituencies:** STV works best in constituencies where more than one representative is elected, which allows for more accurate representation of voter preferences.

##### First-Past-The-Post (FPTP)

- **Electoral Process:** In the FPTP system, the candidate with the highest number of votes in a constituency wins the election, regardless of whether they have achieved a majority of votes. This is often referred to as the "winner takes all" approach.

In UP, women's indirectly elect 31 MPs in Rajya Sabha (PR-STV)

In MLAs constituency → (Mansingh) → (FPTP)

##### Key Features:

- **Simple and Direct:** Voters choose one candidate, and the candidate with the most votes wins. It is straightforward, quick, and easy to administer.
- **Majority System:** In many instances, this system works on a majority principle, but the winner only needs a plurality (the most votes, not necessarily over 50%).

##### Advantages and Disadvantages of FPTP:

##### Advantages:

- **Simplicity:** It is easy to understand and implement. Voters just select one candidate.
- **Quick Results:** The counting process is faster compared to other systems like STV or proportional representation.
- **Better for Direct Elections:** Particularly effective for single-member constituencies.

##### Disadvantages:

- **Disproportionate Representation:** FPTP can result in a party winning a majority of seats without winning a majority of the vote, leading to distorted representation.
- **Wasted Votes:** Votes cast for losing candidates do not contribute to the election outcome, leading to a higher number of wasted votes.
- **Rule of Minority:** A candidate can win with a plurality of votes, but this does not always reflect the true preference of the majority of voters.

##### Criticism of constitution assembly

- Paradise of the Lawyers
- Elephantine size
- An Un-Gandhian Constitution
- A Borrowed Constitution
- A Carbon Copy of the 1935 Act
- Un-Indian or Anti-Indian (English in nature)



##### Criticisms of the Constituent Assembly (Non-Representative, Non-Sovereign, etc.)

• **Non-Representative Body:**

- **Absence of Universal Adult Suffrage:** The Constituent Assembly was not entirely representative of the Indian population, as it did not have universal adult suffrage at the time of its formation. While the members were elected, the electorate was limited, meaning large sections of the population, particularly women and rural citizens, had limited representation.

• **Non-Sovereign Body:**

- **Lack of Sovereignty:** The Constituent Assembly was not a fully sovereign body because it was created under the authority of the British government, which still retained power over India. The Constituent Assembly was not entirely free to make decisions independently, as it operated under certain constraints imposed by the British rulers.

• **Drifting Body:**

- **Slow Process of Constitution Drafting:** The drafting of the Indian Constitution took nearly three years to complete, which was a relatively long time. This delay was due to various factors, including the vast scope of the work, debates over key provisions, and political uncertainties surrounding independence and partition.

• **Domination of Congress:**

- **Congress' Influence:** The Constituent Assembly was heavily dominated by the Indian National Congress, which was the primary political force at the time. As a result, the Constitution reflected the Congress party's ideologies and its vision for India's future, which may not have fully represented the interests of all political groups.

• **Domination of Elites:**

- **Representation of Elites:** The Constituent Assembly was also criticized for being dominated by elites, particularly Hindus and educated professionals like lawyers. This led to concerns that the voices of marginalized groups, such as Scheduled Castes, tribal communities, and women, were underrepresented in the drafting process.

**Salient Features of the Indian Constitution**

• **Length and Complexity:**

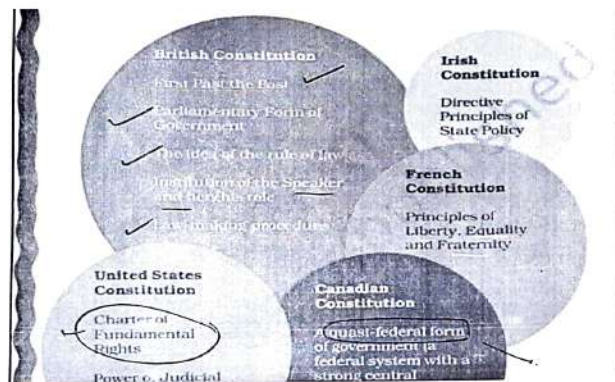
- The Indian Constitution is the **longest written constitution** in the world, with more than **400 articles** and **12 schedules**. This length is a reflection of India's diverse social, political, and economic complexities, as well as its commitment to addressing a wide range of issues.

• **Federal and Unitary Features:**

- **Federal Nature:** The Constitution establishes a federal structure, dividing powers between the **Centre and the States**. This is evident in the **Union List, State List, and the Concurrent List** under the **Seventh Schedule**.
- **Unitary Features:** While the Constitution is federal, it also has **unitary features** that provide for a strong central government, especially during times of crisis. For example, during a **national emergency (Article 352)** or under **Article 356 (President's Rule)**, the Union government assumes greater powers, curbing the autonomy of states.

• **Single Citizenship:**

- **Uniform Citizenship:** Unlike federal systems such as that of the United States, where citizens are subject to both state and federal citizenship, India grants **single citizenship** to its people. This means that Indian citizens are governed by the laws of the Union and do not have separate state-based citizenship. This is one of the unitary aspects of the Constitution, ensuring national unity and cohesion.



## THE CONSTITUTION OF INDIA

### PREAMBLE

WE, THE PEOPLE OF INDIA, having solemnly resolved to constitute India into a '[SOVEREIGN SOCIALIST SECULAR DEMOCRATIC REPUBLIC]' and to secure to all its citizens :

**JUSTICE**, social, economic and political;

**LIBERTY** of thought, expression, belief, faith and worship;

**EQUALITY** of status and of opportunity and to promote among them all:

**FRATERNITY** assuring the dignity of the individual and the 'unity and integrity of the Nation';

IN OUR CONSTITUENT ASSEMBLY this twenty-sixth day of November, 1949 do HEREBY ADOPT, ENACT AND GIVE TO

## Polity

### Chapter 02: Preamble

#### Lecture 02: Preamble (Part 02)

**Preamble:** → Preamble → [contains only substance not procedure]

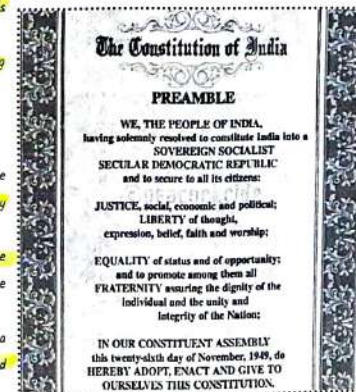
- The Preamble refers to the **preface of the Constitution**.
- It outlines the **objectives and scope of the Constitution**.
- The term "Preamble" is **borrowed from the U.S. Constitution**.
- It was crafted to address India's **specific needs and aspirations**.
- There is no **fixed format for writing a Preamble**.

#### History of the Preamble:

- The Preamble is derived from the **Objective Resolution presented by Jawaharlal Nehru**.
- Its purpose was to **fulfill the socio-economic goals of the nation**.
- Initially, it described India as a **"sovereign," "independent," and "republic."**
- Later, these terms were modified to **"socialist," "democratic," and "republic."**
- The word **"fraternity"** was included by the Constituent Assembly.   
↳ After riots rising by Hindus & Muslims (आहिंसा)

#### Meaning and Concepts of the Preamble:

- The Preamble serves as the **introductory section of the Constitution**.



- It ensures that the ideas and goals of the Constitution's framers are clearly communicated.
- The Preamble reflects the aims and aspirations of the Indian people. *Justice in Socio, Economic & Political Grounds.*
- It emphasizes the creation of a welfare-oriented and egalitarian society. *political Grounds.*
- N.A. Palkhivala referred to the Preamble as the "identity card of the Constitution," highlighting that it encapsulates the essence, philosophy, and objectives of the Constitution. *(essence, philosophy & objectives)*
- The Preamble acts as a guiding principle for interpreting and implementing the provisions of the Constitution.

### Is Preamble part of Constitution?

Re Beru Bari Union Case (1960)

↳ Preamble is not part of the Constitution.

- Berubari Union Case (1960): The Supreme Court held that the Preamble is not a part of the Constitution. It was considered a guiding principle or introduction, with no substantive power to confer or withhold rights. *Landmark Judgment: Basic Structure Doctrine*
- Kesavananda Bharati Case (1973): Overruling the earlier stance, the Supreme Court declared that the Preamble is a part of the Constitution. It was recognized as an integral part of the Constitution that reflects its basic structure and philosophy. *↳ in guiding interpretation*
- LIC of India Case (1995): The Court reiterated that the Preamble is part of the Constitution.
  - It emphasized that the Preamble has significance because it embodies the ideals and objectives of the Constitution, including certain fundamental rights of the people, but it cannot be directly enforced in a court of justice in India.
- Thus, the Preamble today is accepted as a vital part of the Constitution, playing a key role in understanding its purpose and guiding the interpretation of its provisions.

### Is Preamble enforceable?

- Despite being a guiding light to the Parliament, Preamble cannot be enforceable nor it provides any power to the government.
- A.K. Gopalan Case (1950): The Court held that the Preamble is a guiding light to the Parliament because it is merely the philosophy of the Constitution.

### Can Preamble be amended?

Berubari Union Case (1960) [Preamble not part so not amendable] → Kesavananda Bharati Case (1973) [Part now (an) amended under Art 368]

- Political groups demanded 42nd Constitutional amendment to removal of Secular ← (1976) ← (Socialist, Secular, Integrity) (Initially) Sovereign Democratic Republic, Justice, Liberty, Equality, Fraternity (During Emergency)
- The Preamble can be amended. In fact, the 42nd Amendment Act, 1976 inserted the words 'Secular', 'Socialist', and 'Integrity'.
  - In 2021, a private member bill was introduced to remove the word socialist from the Preamble.

### Keywords of Preamble:

#### ① Sovereign:

- A sovereign state has the authority to make its own decisions without external interference.
- Sovereignty refers to the independent authority of a state.
- Sovereignty has two aspects:
  - Free to act according to its own will in the international arena.
  - External Sovereignty: This refers to the independence of a state in its relations with other states. It means that the state is free to act according to its own will in the international arena, without any interference from other countries.
  - Internal Sovereignty: This concerns the relationship between the state and its citizens within its borders. It signifies the state's authority to govern and make decisions within its own territory.

#### ② Socialist:

- ↳ Interpretation to Capitalism, favoring the wealthy.
- Socialism emerged as a response to capitalism, which was perceived as favoring the wealthy. *↳ Socialism gained prominence in writings of Karl Marx.*
- The concept of socialism gained prominence after the writings of Karl Marx.
- It was first implemented in Soviet nations. However, after the Great Depression of the 1930s, it became evident that socialism alone did not significantly improve people's lives.
- Over time, it became clear that neither socialism nor capitalism could fully address economic inequalities.
- This led to the development of a mixed economy, where:
  - The government provides public goods such as education and healthcare.
  - The private sector manages services like telecommunications and entertainment.
- This mixed model, influenced by John Keynes, is known as the welfare model or the socialist model in India.

To promote financial inclusion, the Indian government nationalized several banks in 1969 to provide loans to vulnerable sections of society.

To promote financial inclusion, 1969 → Nationalization of Banks to help for loans vulnerable sections.

### Meaning of Socialism:

- Socialism refers to a system where the state owns and controls resources and means of production.
- It aims to reduce economic inequalities and ensure fair distribution of wealth.
- Under socialism, resources are allocated based on an individual's work and labor contribution.

(Inspired from mixed Economy)  
Government: Heavy Indus, Dam, Industries, Railways, Mirc.  
Private: Car Prod, other Goods.

### Indian Socialism:

- It is often referred to as Nehruvian Socialism.
- It promotes egalitarianism and welfarism. [Welfare based society]
- India follows a mixed economy model, combining elements of both socialism and capitalism.
- It focuses on social justice and economic equity.
- Indian socialism is shaped by the ideologies of Jawaharlal Nehru, B.R. Ambedkar, and Indira Gandhi.

→ promote social, economic, political justice.  
Egalitarian

### Evolution of Socialism in India:

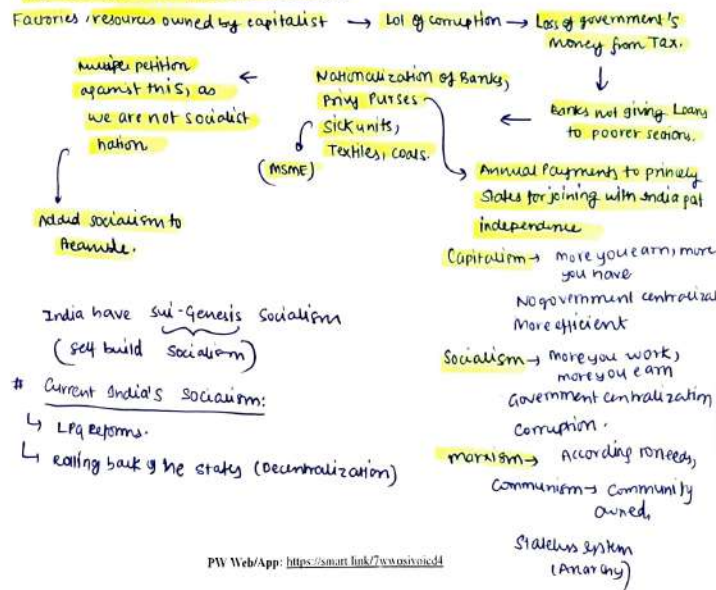
- In the Avadi Session of Congress (1955), it was decided that India would adopt a democratic socialist approach.
- India formally embraced socialism to reduce inequality in the country.

### Supreme Court's Interpretation of Socialism:

- The Supreme Court has played a crucial role in defining and reinforcing socialism in India:
  - Bank Nationalization Case: Allowed the nationalization of banks to promote financial inclusion.
  - Abolition of Privy Purses: Supported the government's decision to end privileges of former princely states.

- **Excel Wear Case (1978):** The Court ruled that Indian socialism should not be identical to the Western model but should balance freedom of profession with egalitarian principles.
- **D.S. Nakara v. Union of India (1982):** The Court held that socialism in India aims to provide a decent standard of living for all citizens.
- **Balram and Others Case (2024):** The Supreme Court reaffirmed that socialism and secularism are part of the basic structure Doctrine of the Constitution and must remain in the Preamble.

### How Socialism word Added to Preamble?



## Polity

### Chapter 02: Preamble

#### Lecture 03: Preamble(Part 03)

#### Secularism:

- Secularism means the separation of state and religion where states do not have their own religion and citizens have freedom to practice the religion of their own choice.
- History of Secularism:**
  - Before 1498 the church was dominant over the state. All decisions were taken by the church which led to inequality, irrationality, dogmas, and no scientific thought in the society. (एकतावस्था)
  - After 1498:
    - In 1498 evolution Niccolò Machiavelli started arguing for the separation of politics from religion which was the start of the Renaissance. He is also known as the **father of the Renaissance**. (पिता)
    - Through the Renaissance, the concept of separation of state and religion took place and gave birth to various models of secularism.
    - The **Renaissance(Re-Birth)** and the **Enlightenment** periods were pivotal in the development of secularism, as they brought renewed focus on scientific temper, rationality, reason, science, and individual rights, questioning the dominance of religious institutions.
- Various models of secularism:**
  - French model:**
    - "**Lai-cite**" is the separation of state and church ensuring that religion should be a private affair.
    - France, beginning in the late 19th century, solidified secularism with laws like the 1905 French law on the Separation of the Churches and the State.

- The French model of secularism is focused on complete equality, religion is a personal affair, and no public display of any religion.
- American model:**
  - It follows the principle of **religious freedom and separation of religion and state**.
  - The American model of secularism follows a **one-arm-distance principle**.
  - They follow a strict non-interference policy.
  - Prohibits the government from establishing an official religion or favoring one religion over others.
  - The concept of separation in the U.S. is **not as strict** as in the French model, allowing for religion to have a **public presence** to some extent, such as religious symbols in public places, the mention of God in national symbols (e.g., "In God We Trust" on U.S. currency), and the practice of religion in schools and public life.
- Turkish model:**
  - The Turkish model of secularism is also called **Attaturkism**, and **Kemalist Secularism**.
  - Mustafa Kemal Atatürk** played a crucial role in the separation of state and religion to establish complete secularism in Turkey. He also converted Hagia Sophia into a public museum and banned religious orders.
  - Turkish models followed a policy of reforms and a Uniform civil code.
  - The state was made dominant over religion.
- Indian model:**
  - In India, the coexistence of all religions constitutes the basic idea of secularism.
  - The Indian model of secularism focused on **sarva dharma sambhav** and **principled distance**.

Models of Secularism



- Prohibits the government from establishing an official religion or favoring one religion over others and maintains a principled distance from all religions. This means the government helps in the practice of religion by providing facilities like safety and security.
- The term Secularism was incorporated into the Preamble to ensure the idea of equality.
- Indian secularism is positive secularism because it treats Religion as a personal choice and means discrimination by the State.
- It is reformative secularism which means the state can make reforms in religion. For example ban on sati pratha.
- The Indian model of secularism is often considered the best because, unlike in France, where non-secular laws have recently been passed, such as the ban on burkinis and the ban on hijabs in 1980, India maintains a more inclusive approach that respects religious diversity and freedom.

#### Principled distance:

- Professor Rajeev Bhargava highlighted that in this concept the state is at a flexible distance from all religions and interferes wherever necessary to ensure justice and equality.
- For example, the Jijo Parsi Campaign to increase the Parsi population in India.

#### Challenges to Indian secularism:

- Implementation of a uniform civil code will take away personal freedom to practice religion.
  - Indian secularism is enshrined in Article 25 of the Indian Constitution guarantees the freedom of religion to all individuals in India.
  - In India, marriage, divorce, inheritance, adoption, and maintenance, are currently governed by different personal laws based on religious traditions.
  - The Uniform Civil Code (UCC) refers to a set of laws that seeks to replace personal laws based on religious customs with a common set of laws that applies to all citizens, regardless of their religion, caste, or gender.
- The politicization of religion and the use of religion for political gains.

- Special protection for minorities will ensure equality with minorities.
- Many times judiciary has interfered in interpreting the idea of secularism.
- Nevertheless, Indian secularism has a very accommodative approach and has ensured harmony in society.

#### Indian Secularism: Challenges and Dynamics



#### Democracy:

- The term Democracy is derived from the Greek words 'demos' which means people and 'kratos' which means 'power'.
- Under this system, people have the power to ensure the rule of their choice. It works upon the majority principle and ensures that political equality is practiced.

#### Republic:

- A republic is a form of government where the head of the State is elected directly or indirectly by the public.
- He can neither be nominated nor be chosen by heredity. For Example, Britain is not a Republic because the president is hereditary from crown lineage and not elected by the people.
- This idea ensures that the authority of government is derived from the people.
- In India, the President is the "De Jure" Head, meaning the head by law, as all executive orders are issued in the President's name. However, the Prime Minister is the "De Facto" Head, meaning the actual head of the government, who makes decisions and governs the country. While decisions are taken by the Prime Minister, the President's signature is required for the validity of laws. Constitutionally, the President is the nominal head of state, and the Prime Minister is the real head of government.

Q) Discuss each adjective to the word republics in the preamble, are they defensible in present circumstances (UPSC 2016)

### Justice:

- The primary goal of justice is to ensure the welfare of the people.
- There is **no universal definition of Justice**.
- It is measured in time and space.
- The Constitution doesn't mention anything about justice.
- In the Indian constitution, social, economic, and political rights are given to all citizens.
- Articles 14, 20, 21, 25, 29, and 30 of the Indian constitution promote justice.

### Liberty:

- The term Liberty means the absence of restraints and freedom to act in a domain. However, liberty can be regulated.
- Liberty is different from freedom because liberty comes with certain restrictions.
- liberty means to act freely without any restrictions and rules, whereas negative liberty means to act with certain restrictions.
- Positive liberty means the state will enable you to develop yourself and fulfill your goals.
- In positive liberty state ensures the benefit of a citizen by providing them with education, healthcare, etc.,
- The Preamble to the Constitution of India professes to secure the liberty of belief, thought, expression, faith, and worship which are essential to the development of the individuals and the nation.
- In India the concept of reservation also amounts to positive liberty.

### Equality:

- We will discuss liberty in articles 14, 15, and 16 of the Indian constitution.

### Fraternity:

- Fraternity means the spirit of brotherhood, to ensure harmony in the society.

- It is the **cementing factor in a multicultural nation**.
- The promotion of fraternity is essential for a country that is composed of many races and religions.

### Rights:

- Rights are the claims upon the state because of being residents or citizens.
- They are given for the progressive living of the citizens.
- Evaluation of Rights: (Evolution)
  - 'Magna Carta', the Charter of Rights issued by King John of England in 1215 was the first written document relating to the Fundamental Rights of citizens. It provided the right to life and security.
  - In 1648 John Locke gave the theory of natural rights. Locke argued that all individuals possess certain inalienable rights by virtue of being human. These rights are not granted by governments or rulers but are inherent and can be discovered through reason. Locke identified three fundamental natural rights:
    - Life:** The right to live and preserve one's existence.
    - Liberty:** The right to personal freedom and autonomy.
    - Property:** The right to own and enjoy the fruits of one's labor, including material possessions, land, and resources.
  - The American Bill of Rights refers to a list of fundamental rights and freedoms guaranteed to the citizens of a nation or state.



- It guarantees essential rights such as the right to life, the right to equality, freedom of speech, freedom of religion and the right to a fair trial.
- The Universal Declaration of Human Rights (UDHR) is a historic document adopted by the United Nations General Assembly on December 10, 1948.
- The Universal Declaration of Human Rights (UDHR) states human rights for all means "all human beings are born free and equal in dignity and rights."
- It has 29 human rights and one fundamental duty.
- **Fundamental rights:**
  - The Fundamental Rights are enshrined in Part III of the Indian Constitution (Articles 12-35).
  - Part III of the Constitution is described as the Magna Carta of India.
  - These are basic rights for citizens and persons.

## Polity

### Chapter 03: Fundamental Rights

#### Lecture 01: Fundamental Rights

##### Fundamental Rights (Articles 12-35) include:

- Right to Equality (Articles 14-18)
- Right to Freedom (Articles 19-22)
- Right Against Exploitation (Articles 23-24)
- Right to Freedom of Religion (Articles 25-28)
- Cultural & Educational Rights (Articles 29-30)
- Right to Constitutional Remedies (Article 32)
- Right to Property (Article 31, now deleted)

##### Rights:

- Fundamental rights are entitlements, and claims upon the state, enjoyed by citizens of any country (Persons), living in its territory.
- These rights ensure that citizens are protected and the government is limited in its power.
- T.H. Green explained that "rights are powers necessary for the fulfilment of man's vocation as a moral being".

##### Are Rights Absolute?

- Rights are always restricted by the constitution, and they can never be absolute (Privileges are absolute).
- If right is allowed in an absolute manner then some one's else right would be infringed, hence reasonable restrictions are allowed to ensure harmony in society.

##### Rights vs Duties:

- Every right has a correlative duty: The constitution of the USA does not talk about duty, and allows you to enjoy rights. Whereas, the Russian constitution talks about duty before right.

### Nationality vs Citizenship:

- **Nationality** is based on ethnicity and birth (irreversible), while citizenship is legal and reversible.

### Types of Rights:

- There are two types of rights such as:
  - **Negative Rights** like protects citizens from state interventions i.e. state shall not take away speech.
  - **Positive Rights** like state enables the citizen to perform certain actions.
- There are also basically three types of rights like:
  - Natural Rights
  - Human Rights
  - Fundamental Rights

### Natural Rights:

- It is given by states of nature.
- Propounded by John Locke in the 16th century.
- There is no government that can take them.
- Life, liberty, and property are natural rights.

### Human Rights:

- UDHR: Universal Declaration of Human Rights, adopted by the UN in 1948. The rights are:
  - We are all born free with equal rights.
  - We have a right to be free from discrimination.
  - We have a right to live in freedom and safety.
  - We have a right to be free from slavery.
  - We have a right to be free from torture or degrading treatment.
  - We have a right to be created fairly by the law.
  - We have a right to equal protection under the law.
  - We have a right to seek justice when our rights are violated.
  - We have a right to be free from unfair imprisonment or exile.
  - We have a right to fair public hearings.
  - We have a right to be considered innocent until proven guilty.

- We have a right to privacy & freedom from attacks against our reputation.
- We have a right to free movement
- We have a right to protection in other countries from persecution.
- We have a right to belong to a country.
- We have a right to get married.
- We have a right to own things.
- We have a right to our own thoughts and religion.
- We have a right to think and say what we want.
- We have a right to gather peacefully.
- We have a right to take part in government and elections.
- We have a right to a social safety net.
- We have a right to work and join trade unions.
- We have a right to rest and play.
- We have a right to health, food, clothing, and housing.
- We have a right to education.
- We have a right to enjoy the arts and sciences.
- We have a right to enjoy a free and fair world.
- We have a responsibility to our community (Duty).
- No one can take away our human rights.

### Fundamental Rights:

- Fundamental rights are a group of rights that have been recognized by the Supreme Court as requiring a high degree of protection from government encroachment.
- These rights are specifically identified in the Constitution or have been found under Due Process.
- Laws encroaching on a fundamental right generally must pass strict scrutiny to be upheld as constitutional.

### Nature of these Rights:

- It is most elaborate.
- It is a Special enforcement provision.
- This is non Absolute in nature but qualified (because the state can put reasonable restrictions).

- Few rights are applicable to non-citizens also.
- These are Egalitarian in nature.

#### Need:

- To ensure rule of law.
- To ensure upliftment of all.
- To ensure democracy in the country drawn from.

#### Significance of Fundamental Rights:

- It constitutes the bedrock of democratic system in the country.
- Provide necessary conditions for the material and moral protection of man.
- Ensures the rule of law.
- Serve as a formidable bulwark of individual liberty.
- Protect the interests of minorities and weaker sections of society.
- Strengthen the secular fabric of the Indian State.
- Check the absoluteness of the authority of the government.
- lay down the foundation stone of social equality and social justice.
- Ensure the dignity and respect of individuals.
- Facilitate the participation of people in the political and administrative process.

#### Fundamental Rights Applicable to:

- Fundamental rights apply to all persons, but aliens (non-citizens) cannot claim rights under Articles 15, 16, 19, 29, and 30. There are two types of aliens: friendly aliens, who enjoy most rights, and enemy aliens, whose rights the state can restrict. Citizens, however, enjoy all fundamental rights under Articles 12-35 (Only for citizens).

#### Who is "State" Under Article 12 of the Constitution?

- The "State" Includes:
  - The government and Parliament of India.
  - The government, and legislature of each of the states.
  - Local Bodies.
  - Other Authorities
- Within the territory of India or under the control of the Government of India.

#### Scope of Article 12:

- When the body is financially, functionally and administratively dominated by or under the control of the government and such control is particular to the body and is pervasive, then it will be "State" within Article 12.
- If the control is merely regulatory, it will not be a State.
- For example: Electricity distribution company, Tata power, Reliance power, etc.
- Note: BCCI is not a state, it is a cricket club.

#### Article 12:

- It includes:
  - The word 'includes' the definition of Article 12 enables the Indian Supreme Court to include within the definition all the three organs of the State (executive, legislative and judicial).
  - As well as all other authorities which have been included within the concept of State.

#### Authority:

- Literally 'authority' means a person or body exercising power or having a legal right to command and be obeyed.
- An 'Authority' is a group of persons with official responsibility for a particular area of activity and having a moral or legal right or ability to control others.
- Authority means a public administrative agency or corporation having quasi-governmental powers and authorized to administer a revenue producing public enterprise.
- It is wide enough to include all bodies created by a statute on which powers are conferred to carry out governmental or quasi-governmental functions.

#### Whether "state" includes the Judiciary:

- The Court held that the fundamental right is not infringed by the order of the Court and no writ can be issued to the High Court.
- However, in yet another case, it was held that a High Court Judge is as much a part of the State as the executive.
- In Rati Lal v. State of Bombay, it was held that Judiciary is not State for the purpose of Article 12.

- But the Supreme Court in cases of *A.R. Antulay v. R.S. Nayak (1988)* and *N.S. Mirajkar v/s State of Maharashtra*, it has been observed that **when rulemaking power of Judiciary is concerned it is State but when exercise of judicial power is concerned it is not State.**

#### A.R. Antulay Case:

- It was observed that rule making power and administrative functions will be constructed as a state.
- Judicial functions will not be construed as state.

#### Status of a Quasi-Judicial Body:

- If a quasi-judicial body acts under an ultra-vires law, or outside its jurisdiction or ignores mandatory rules and procedures prescribed under relevant law, or infringe the principles of natural justice and thereby affect the fundamental rights, then its actions can be quashed by Courts.
- This stance was further confirmed by the Constitutional Bench in 1990.

## Indian Polity

### Chapter 03: Fundamental Rights

#### Lecture 02: Fundamental Rights -02

#### Article 13:

- "Laws inconsistent with or in derogation of fundamental rights".
- Article 13 is a safety valve that protects fundamental rights from laws that are inconsistent with them.
- Article 13 (1) says all the laws which were in force before the commencement of the Constitution shall be declared null and void if they are inconsistent with Fundamental Rights (applies to British Indian laws).
- Article 13 (2) says that laws made by Parliament shall be void if they are inconsistent with Fundamental Rights ("void ab initio" means void from the beginning).
- Article 13 (3) gives a wide interpretation to the term "law".
  - > "Law" means ordinances, orders, bylaws, rules, regulations, customs or usage. Hence, according to Article 13(3), the law does not only mean any document just passed by the Parliament.
  - > If the President passes some order, it is also a law. If there is some notice or regulation given by the Government, it is also a law.

- A Draft refers to the initial version of a bill.
- The bill is then passed by the legislature (i.e., the Parliament).
- Once passed, it becomes an Act of Parliament, which is a law officially enacted by the legislature.  
Draft - BILL - Law/Act of Parliament
- Ordinance is an order passed by President/Governor when Legislature is not in session.

#### Doctrine of Eclipse:

- Doctrines are principles pronounced by courts.
- The Doctrine of Eclipse is applied when any law or act violates the fundamental rights, then the fundamental rights overshadow the other law or act and make it unenforceable.



They can be enforced again if the restrictions posed by the fundamental rights are removed. Hence, we can say that the **Doctrine of Eclipse** is an important tool that is used by the courts to remove inconsistency in various laws.

- In 1950, it was decided that the Doctrine of Eclipse would apply to British India laws.
- In the **Bhikaji Narain case (1955)** the law of monopolistic practices in the transport sector was against freedom to trade and profession. Hence, the court made British India law inoperative. The court held that pre constitutional laws could not be made void but only dormant.
- In **Deep Chand Case (1959)** court held that it is applicable to pre constitutional laws only, whereas later court held that doctrine of Eclipse applies to both (Pre+Post) Constitutional laws.

### Doctrine of Severability:

- It is also known as the "**Doctrine of Separability**". This Doctrine only removes the part which is inconsistent with the fundamental Rights.



### Basic Structure Doctrine:

- The Birth of Basic Structure Doctrine happened when a question was raised - **Can Fundamental Rights be amended?**
- During British India, the society was highly unequal. There were rampant caste practices, the zamindari system, etc.
  - The Right to Property was made part of Fundamental rights by the constitutional makers. But nowhere, the Right to Property was an absolute right.
  - On the other hand, various provincial /state governments wanted to abolish the zamindari system which created a type of inequality in society.
- **Kameshwar Singh Case (1950s)** dealt with land reforms, specifically redistributing land and land ceiling laws. The Bihar Zamindari Abolition Act, 1950 was challenged in Patna High Court. The Patna High Court held that Zamindari abolition was in violation of Article 14 (Right to Equality), suggesting the law went against Equality before law.

### 1st Amendment Act, 1951:

- In response to the Patna High Court, the first Constitutional Amendment (1951) was passed.
- Parliament made Article 19(1)(f) Right to Property a limited right.
- It further added Article 31A, 31 B and related Schedule IX in the Constitution.
  - Article 31A allows land acquisition for national importance, public benefits, etc.

- Article 31B was added to bypass the IX Schedule. Laws in the IX Schedule shall not be challenged in the courts i.e., out of the judicial review power of the courts. It was like a Blanket Ban on the Judiciary.

- The 1st Amendment Act was challenged in court. This issue reached the Supreme Court in the **Shankari Prasad Case**, and the court held the validity of the 1st Constitutional Amendment.

### Shankari Prasad Case (1951):

- Following questions were raised in the case to the court:
  - Can Fundamental Rights (FR) be amended by the Parliament?
  - Is the IX<sup>th</sup> Schedule of the Constitution valid?
  - Are DPSP (Directive Principles of State Policy) supreme over fundamental rights?
  - Does word amendment mean law under Article 13(3)?
- **Court's Reply to the Case:**
  - The court agreed that Fundamental Rights (FR) can be amended.
  - There is harmony between FR and DPSP (harmonious construction doctrine). This means the court believed that Fundamental Rights and Directive Principles of State Policy should complement each other, not contradict.
  - No response regarding the IX<sup>th</sup> Schedule.
  - A critical part of the court's ruling involved the interpretation of the word "amendment". The court clarified that the term amendment does not equate to law under Article 13(3), and hence Article 13 (Right to Judicial Review) does not apply in this case.
    - This ruling underscores that Article 13 (which safeguards fundamental rights from laws that are inconsistent with them) does not apply to amendments
- The Court held that Parliament has the power to amend any part of the Constitution, including the fundamental rights, under Article 368.

### Sajjan Singh Case, 1965

- The Court upheld the **Shankari Prasad judgement** and held that the Parliament has the power to amend fundamental rights.
- As the ruling in the Sajjan Singh case was the same as in the Shankari Prasad case, no new outcome was traced.

## Polity

### Chapter 03: Fundamental Rights

#### Lecture 03: A13 And Basic Structure Doctrine(

#### Part 02)

##### I.C. Golaknath vs. State of Punjab Case (1967):

- **Questions Raised in I. C. Golaknath Case:**
  - Can fundamental rights be amended? Are fundamental rights supreme?
- **Court replied:**
  - The court held that parliament cannot amend the constitution (Fundamental Rights). As per Art 13(3) law means amendment. (It is now implied), Amendment power is subject to judicial review.
  - Fundamental rights are sacrosanct hence, cannot be taken away
  - The court also held that Art 368 only talks about "procedure" to amend the constitution and does not grant any "power". Hence, this judgement was implemented prospectively.
- **Response of the Indira Gandhi Government to the Court's Decision:**
  - In response to the I.C. Golaknath judgement, Parliament implemented the 24th Amendment and 25th Amendment.
    - **24th Amendment:** The word "power" was added in Article 368 and Art 368 was made mutually separable from Art 13.
  - By this process Indira Gandhi government wanted to ensure that fundamental rights can be amended.
  - Through the 25th amendment parliament took more powers and added Art 31(c) to implement DPSPs over fundamental rights.

## Polity

### Chapter 03: Fundamental Rights

#### Lecture 04: A13 And Basic Structure Doctrine(

#### Part 03)

- The 25th amendment act gave power to parliament to acquire land without much restrictions.
- The 24th and 25th Amendments were challenged in the Kesavananda Bharati case in 1973.

##### Kesavananda Bharati and Others Case (1973):

- This case turned out to be one of the important cases for which a thirteen judges bench was formed to decide the case.
- The Court in a 7: 6 verdict (7 in favor, 6 in against) held that the Parliament can amend the fundamental rights provided it adheres to the Basic Structure of the Constitution.
- The court also upheld the 24th and 25th Amendments but ensured that no basic structure had been infringed.
  - Thus, the Kesavananda Bharati Case gave power to the Parliament to amend the constitution but also took away the absolute power to do so.

##### Background story:

- In the Kesavananda Bharati case, relief was sought against the Kerala government that implemented two state land reform laws, which imposed restrictions on the management of religious property.
- Kesavanand Bharti, along with others, filed a petition in the court that the government is unnecessarily taking away their land. This case was challenged under Article 26.

- As India is a Secular nation, it is a fundamental right to manage religiously owned property without government interference. Hence, the property is not private but **Ashram's property** which is used for religious purposes.

• **The key question raised before the Supreme Court was:**

- Does the Parliament have the power to amend the Constitution?
- Are the 24th and 25th Amendments constitutionally valid?

• **Court held following observations-**

- Parliament can amend the constitution provided it follows basic structure doctrine.
- The idea of basic structure was derived from the German concept of "Implied limitation" that means that the powers of Parliament are limited in nature. This is a non-exhaustive doctrine.

• **What is Basic Structure Doctrine?**

- It is not defined anywhere. It is not mentioned in the constitution.
- The court in its subsequent judgements, has pronounced what amounts to a Basic Structure:

- Free and fair elections, Elections, Rule of Law, Parliament, Democracy, Secularism, Judicial Review, Supremacy of Constitution, Independence of Judiciary

- It is an ever evolving concept.

- The court held that parliament can amend the constitution but cannot destroy the constitution.

**42nd Amendment Act, 1976:**

- Despite the emergency, parliament amended 2/3rd of the Constitution and took unlimited power to change the constitution.
- DPSPs were given primacy over Fundamental Rights. The terms socialist, secular, and integrity were added in the Preamble.
- Article 31C was amended to give supremacy to Article 39(b)&(c) (they highlight socialist nature of state).
- Hence, parliament was given more power through this amendment. So we can say that the 42nd amendment Indira Gandhi government tried to take away the powers of court.

**44th amendment act, 1978**

- The Janta Party government restored nearly 50% of the constitution and it also deleted the Article 19(1)(f) i.e. **Right to Property** and Article 300A was added as a constitutional right.

**Minerva Mills vs Union of India case, 1980:**

- The court held that parliament cannot have unlimited power to amend the constitution.
- It also implemented the doctrine of harmonious construction.
- The court also struck down the Art 368(4) and 368(5).
- The court also held that under Art 31(c) fundamental rights cannot be subjugated to DPSPs as through 42nd amendment act the government compromised art 14 and art 19 for implementing DPSP.
- Hence the court ensured that only laws related to 39(b) and (c) would be allowed to overpower fundamental rights. (Art 39(b) and (c) both focus on community resources for everyone and non concentration of wealth.)

## Polity

### Chapter 03: Fundamental Rights

#### Lecture 05: Basic Structure Doctrine (Part 04)

**Waman Rao Case 1981:**

**Questions raised for court?**

1. When to implement Basic structure doctrine?
2. What should we do about the 9th schedule?

**The court held that :**

- The 9th schedule can be reviewed and basic structure doctrine will be implemented from 24th April 1973 (date of Kesavananda Bharati Case).

**I.R. Coelho Case 2007:**

- Judicial review is a part of basic structure doctrine and the court can review any law of 9th schedule if it infringes your fundamental rights.

**What is the 9th Schedule?**

- It was inserted through the first amendment act to protect laws of centre and state.
- Under this law parliament added various laws of nationalisation, land reforms, reservation etc.

**Current Status:**

- This schedule can be judicially reviewed.

**Constitutional Supremacy vs Parliamentary Supremacy:**

- In the *Minerva Mills* case the court held that, in India, the Constitution is the creator and parliament is the creature.
- According to the doctrine of constitutional supremacy, Indian Parliament cannot overpower constitutional supremacy.

**Doctrine of Harmonious Construction**

- Under this Doctrine whenever there is conflict between fundamental rights and DSP then parliament should try to maintain a balance (Harmony).

**Criticism of Doctrine of Basic Structure:**

- The definition is not clear (Ambiguity). It is the product of judicial overreach which in itself is a criticized aspect. Judicial overreach is the judiciary's unnecessary getting into parliament's domain.
- It made the judiciary very powerful.
- It resulted in judicial overreach.
- It is against checks and balances.

**Benefits of Doctrine of Basic Structure:**

- It has limited the amending power of Parliament.
- It has ensured the constitutionalism in the country.
- It ensures the protection of Fundamental rights.

**Difference between Fundamental rights, Constitutional rights, Legal rights & Statutory rights:**

- Fundamental rights are those rights which are given under Part III of the constitution. E.g.- The right to education (Art 21A), Right to Equality.
- Rights are not given under Part III of the constitution but are mentioned under various articles of the constitution. E.g.- Right to vote.
- Rights that are not mentioned in the constitution (Legal rights & statutory rights) in various laws. E.g.- The right to work in MGNREGA, Right to Property, Right to Maternity Leave, etc.
  - Legal rights can be statutory Rights, Judicial decisions, or customs or practices approved by government/parliament.

**What is Equality (NCERT):**

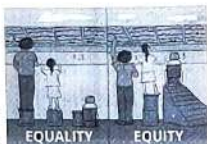
- Equality means a moral and political concept that guides human civilization.
- This concept took birth during French civilization where the slogans of equality, liberty and fraternity were raised against aristocracy.
- The people demanded an equal framework for everyone.

**Types of Equality:**

- **Political Equality:**
  - It denotes equality in political matters. For e.g. Right to vote, citizenship, etc.
- **Social Equality:**
  - It ensures social equality through access to social goods like education, healthcare, nutrition etc.
- **Economic Equality:**
  - Minimum inequality between rich and poor.

#### Difference between formal equality and substantive equality:

- **Formal equality** means where individuals are treated without any discrimination.
- **Substantive equality**- Here the state recognises the difference in society and acts accordingly. E.g. Reservation Laws, Equality of opportunity. Substantive equality has given birth to positive discrimination.



- **Negative Discrimination** : In this state shall not discriminate against anyone.
- **Positive Discrimination** : In this state shall discriminate through affirmative actions. This can be justified based on prevailing inequalities and discrimination in the country. But positive discrimination leads to reverse discrimination.

#### Right to Equality:

| Equality Before Law (EBL)                                                                             | Equal Protection of Law (EPL)                                                     |
|-------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------|
| <ul style="list-style-type: none"> <li>• This is a British concept</li> </ul>                         | <ul style="list-style-type: none"> <li>• This is an American concept</li> </ul>   |
| <ul style="list-style-type: none"> <li>• It is a orthodox/conservative approach</li> </ul>            | <ul style="list-style-type: none"> <li>• It is a progressive approach</li> </ul>  |
| <ul style="list-style-type: none"> <li>• It treats everyone equally, no special treatment.</li> </ul> | <ul style="list-style-type: none"> <li>• Likes should be treated alike</li> </ul> |
| <ul style="list-style-type: none"> <li>• It is an equality concept</li> </ul>                         | <ul style="list-style-type: none"> <li>• It is an equity concept</li> </ul>       |

#### Note:

##### Negative Concept:

- It asks the state not to interfere and maintain the status quo by giving equal treatment to everyone.

##### Positive Concept:

- It allows the state to interfere and give advantages to people subjected to backwardness and require differential treatment. Example: SC, ST, OBC, etc.

#### Article 14:

- **Equality Before Law** means the absence of any discrimination, it treats society in an equal manner. Whereas **Equal Protection of the Law** means the state can discriminate among the citizens to provide benefits to weaker sections of society.
- Article 14 says that states shall not deny any person equality before the law or equal protection of the law within the territory of India. It is applied to both citizens and non-citizens.

#### Anwar Ali Case, 1952:

- The court held that both **Equality Before Law (EBL)** and **Equal Protection of Law (EPL)** are expressions and need to be implemented together. Whereas, in the **Ashok Thakur case, 2008**:
  - The Court held that **Equality Before Law** cannot be achieved without **Equal Protection of Law**.

## Polity

### Chapter 03 : Fundamental Rights

#### Lecture 06 : Article 15

##### Exceptions to Art 14:

- Rule of Law
- **Art 361** : Constitution of India protects the President, Governors, and Rajpramukhs from court accountability for their official duties.
- **Art 105** : defines the powers, privileges, and immunities of Parliament and its members
- It can be suspended during an emergency. FOR MLAs Str 109

##### Reasonable Classification:

- A legal principle that allows the government to treat different people in different manners.
- This principle is rooted in Art 14 of the constitution.
- **Key Features:**
  - **Intelligible differentia**: It means that classification is based upon some intelligent methods. E.g.- Reservation Policy- Historical disadvantage.
  - **Rational nexus**: There should be some rational link between classification and its objectives. E.g - Reservation Policy-classification as SC, ST, OBC, etc.

##### Article 15:

- It applies to citizens.
- Article 15 talks about no discrimination on the grounds of religion, race, caste, sex, and place of birth.
- Article 15(1) is a negative right, which ensures no discrimination by the state.
- Article 15(2) talks about no discrimination by private persons with respect to public places like water bodies, wells, ghats, temples, Hotels, etc.
  - Article 15(1) and (2) provide directions to the State and citizens respectively so that they do not discriminate against fellow citizens. Hence, we can say that Article 15(1) and (2) are negative rights.

✓ Article 15(3) provides special provisions for women and children. Hence, the State can make special or positive laws for them (Equal Protection of Law-EPL).

- This is a positive right, which asks the State to make certain policies in favor of women and children.

##### Air India vs Nargesh Meerza Regulations

- The court said that the termination of service on pregnancy was manifestly unreasonable and arbitrary on the basis that it was in violation of article 14 of the constitution.

##### 1st Amendment Act:

##### Champakam Dorairajan Case, 1951:

- The communal order of the Madras government implemented reservation. Champakam Dorairajan lost her seat due to reservation policy. The court held that Art 46 cannot override Art 15 of the constitution because fundamental rights are supreme.
- Reservation policy is against Art 15(1) hence reservation cannot be given.

##### In Short:

- In the Kameswar singh case, 1950 and Champakam Dorairajan case (04th April 1951) case court ruled against the government that fundamental rights are supreme. The court held that the constitution does not allow reservation policy.
- Therefore in response to the case, the parliament enacted the **1st amendment act** on 18th June 1951 to add reservation art 15(4), land reforms and ninth schedule.
- On 04th October 1951, court in **Shankari Prasad case** ruled that there should be harmony between fundamental rights and DPSPs.

##### Article 15(4):

- Parliament amended the constitution and the 1st Amendment act was passed which inserted Article 15(4) in the constitution. Also, all the reservation laws were inserted under the 9th schedule.
- Art 15(4) highlights that states can make special provisions for the advancement of socially and educationally backward classes of citizens or SCs and STs.
- This article gave birth to OBC.

## Polity

### Chapter 03 : Fundamental Rights

#### Lecture 07: Article 15 and Reservation in private institutions

##### Difference between Caste and Class:

In response to the reservation policy court in **MR Balaji case, 1962** held that

- Reservation should not exceed the 50% limit.
- Reservation should not be given based upon caste alone.
  - Caste: It is a stratification in hindu religion on the social basis.
  - Class: There is a distinction between have's and have'not.

##### MR Balaji Case (1962):

- The State of Madras had given 68% reservation, which was held by the Court as 'fraud on Constitution'. The Court said that there should be a cap on the reservation maximum of up to 50%.

- Reservation to Schedule caste, presidential order 1950, is first extended to Hindus and then to Buddhists, Sikhs.
- Whereas reservation to schedule tribes is extended irrespective of religion. For example, ST reservation is extended to christians, muslims, Sikhs (J&K) and Hindus.
- Recently muslims and christians are demanding SC reservations.
- OBC reservation is extended to Hindus and Muslims irrespective of caste.

##### Reservation in Private Institution:

- Art 15(4) is an enabling provision which does not impose any obligation on the state to give reservation (SC in 2017).

##### What are Backward Classes?

- It is not defined in the constitution but the president has power to constitute a commission to identify the backwardness of the caste/community.

##### Mohini Jain Case, 1992:

- The court held that private colleges have a duty to implement education for all. Hence they should be brought under the reservation policy of the government.

##### Unnikrishnan Case, 1993:

- The court held that private colleges have a duty to implement education. Hence they should be encouraged to implement equality. The court also held that education is a fundamental right. Hence colleges are not allowed to make profits.

##### Note:

- The Dark Years of Private Education in India was from 1993 to 2001.

##### TMA Pai Foundation Case 2002:

- After the Unnikrishnan case, the next 11 years were said to be dark years of private education. So in the TMA Pai case, the court held that private colleges have the right to run colleges under 19(1)(g) provided colleges should not charge extra fees and donations.
- The court also held that the state cannot fix quota under private institutions hence colleges have the right to run commercial institutions.

##### Islamic academic case, 2003:

- In the Islamic academic case, the Court held that private colleges should be allowed to fix their fees but the state can regulate the fees on a fair basis. But the government cannot force these colleges to implement reservations.

##### P A Inamdar Case (2005):

- In this case, the reservation in private colleges was implemented by the Maharashtra government. The court held that it cannot be forced upon private unaided institutions and the colleges to have freedom to fix their fees on merit basis.
  - In response to this judgment parliament brought the 93rd Amendment Act 2005 and inserted Article 15(5) in the Constitution.

## Polity

### Chapter 03 : Fundamental Rights

#### Fundamental Rights 08: Article 15 & Reservation in Pvt Institution (Part-02)

##### P A Inamdar Case (2005):

- In this case, the reservation in private colleges was implemented by the Maharashtra government. The Court held that reservations in unaided private colleges should not be implemented because it is not the duty of private colleges to apply for reservation.

- In response to this judgment parliament brought the 93rd Amendment Act 2005 and inserted Article 15 (5) in the Constitution.

✓ **Article 15 (5):** The state can make special provisions for the advancement of socially and educationally backward class (SEBC) of citizens of SC/STs about their admission in unaided private colleges. This article does not apply to minority colleges.

- Article 15 (5)** was challenged in court in **Ashok Thakur Case (2008)** wherein the Supreme Court held that Article 15 (5) is constitutional and private colleges are required to implement reservation.
- The court said that reservation is nothing but a gentle tool for pushing weaker sections of our society towards upliftment.

- The court also said that reservation should not be a permanent situation, it should be removed once the objective of a casteless society is achieved.

##### Note:

- Article 15(3) Special Provisions for Women is not exactly defined in the constitution. It is a provision that allows the state to make special provisions for women and children.

**Vishaka Guidelines (1997)** - Issued by the Supreme Court of India in *Vishaka v. State of Rajasthan*, these guidelines set the framework for preventing and addressing sexual harassment at the workplace.

- It emphasized that such harassment violates fundamental rights under Article 14 (Equality), Article 19 (Right to Freedom), and Article 21 (Right to Life and Dignity). Eventually, these guidelines led to the enactment of the *Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) Act, 2013*.

✓ **106th Constitutional Amendment (2023)** - This amendment, also known as the *Women's Reservation Bill*, provides 33% reservation for women in the Lok Sabha and state legislative assemblies.

- It aims to promote gender equality in political representation and ensure greater participation of women in decision-making.

##### ✓ **Article 16 - Equality of Opportunity in Public Employment:**

- It provides for equality of opportunity on the grounds of:
  - Religion
  - Race
  - Caste
  - Sex
  - Place of Birth,
  - Place of Descent
  - Place of Residence
- Article 16 talks about equality of opportunity in government jobs, it applies only to citizens. Equality of Opportunity in Public Employment on the grounds of Descent and Place of Residence comes under Article 16(2).

##### Note:

- Under Article 15 reservation can be given on the grounds of domicile and place of residence.
- Residence vs Domicile vs Descent:**
  - Residence is where you actually live. For example: Delhi.
  - A domicile is where you intend to live. For example: Prayagraj.
  - Descent is your family place or your place of birth. For example: Patna.

##### Terms:

- Capitation Fee** → Often refers to an illegal or unofficial charge taken by some private institutions in exchange for admission.

- **Donations** → This seems to be linked to capitation fees, implying that donations are often a way institutions collect such fees.
- **Management Quota** → A certain percentage of seats in private institutions are reserved under this category, allowing admissions outside the standard merit-based system, often involving donations.

#### Article 16- Equality of Opportunity (Reservation):

- The idea of Equality of Opportunity pertains to equality in "all walks of life", (from cradle to grave). According to **B.R. Ambedkar**, Article 16 ensures the protection of the individual from birth to death, hence the person has protection in:
  - Access to jobs.
  - Conditions of employment (promotions, transfers, etc.) should be fair in nature.
  - Right opportunity for the fair development of personality.
  - Promotion and transfers.

#### Article 16 (1):

- There shall be **equality of opportunity** for all citizens in matters relating to employment or appointment to any office under the State.
- It talks about **affirmative action**, which directs states to provide equal access to jobs. This is a **positive right**.

**Affirmative Action** refers to state-driven policies that acknowledge social inequalities and implement measures to reduce them, such as **reservations** and **special provisions** for disadvantaged groups. However, these policies can sometimes result in **reverse discrimination**, where individuals from non-beneficiary groups feel unfairly treated.

#### Reverse Discrimination:

It occurs when policies meant to uplift marginalized communities lead to **perceived unfair treatment** of other groups. For example, if a more qualified candidate is denied an opportunity due to reservation policies favoring a less-qualified candidate from a reserved category, it is often labeled as **reverse discrimination**.

#### Positive Discrimination:

It refers to policies like **reservations, quotas, and special provisions** designed to uplift disadvantaged communities. While **positive discrimination** is a key part of **affirmative action**, its goal is to create equity rather than unfair advantage.

#### Article 16 (2):

- It is a **negative right**, that does not allow discrimination on seven grounds:
  - Religion
  - Race
  - Caste
  - Sex
  - Place of Birth
  - Descent
  - Place of Residence

#### Difference Between 15(1) and 16(2):

##### Article 15(1) - Reservation Allowed:

- **Reservation can be given based on domicile/place of residence.**
- This implies that in the case of **education and other public services (except employment)**, the government can make special provisions for people based on their place of residence.

##### Article 16(2) - Reservation Not Allowed:

- **Reservation cannot be given in public employment based on domicile or place of residence.**
- This means that the Constitution prohibits discrimination in government jobs based on where a person is born or lives.
- However, **Article 16(3)** creates an exception, allowing Parliament to make laws providing employment reservations for certain states based on residence.
- **Uttarakhand and North-Eastern (Tribal) States** are mentioned as exceptions to Article 16(2).
- This means that these states have special provisions for **domicile-based reservations** in employment, possibly under **Article 371** or special laws enacted by Parliament.

#### Article 16 (3):

- Nothing in this article shall prevent Parliament from making any law prescribing, regarding a class or classes of employment or appointment to an office under the Government of, or any local or other authority within, a State or Union territory, any requirement as to residence within that State or Union territory before such employment or appointment.

- The Parliament can make laws for appointment in the government services (The state government can also make laws for their recruitment processes).

#### Article 16(4):

- Nothing in this article shall prevent the State from making any provision for the reservation of appointments or posts in favour of any backward class of citizens which, in the opinion of the State, is not adequately represented in the services under the State.
- This enables the state to implement reservations in appointments for the backward class of citizens who are not adequately represented in public employment.

#### Reservation in Promotions:

- It means that the section of society that is not adequately represented in State services will get adequate representation at all levels.
- **Rangachari Case, 1962:**
  - The court held that Article 16 (1) gives equality of opportunity in all matters of employment. Hence, reservation in promotion is a valid concept.
- **CA Rajendran Case, 1967:**
  - The court held that the States have the power to implement reservations in promotions for the Caste which are not adequately represented in State jobs.
- **Indra Sawhney Case, 1992:**
  - The court held that reservation in promotion is not a valid and constitutional concept, hence, it should not be allowed in government services.
    - In reaction to this judgment, Parliament implemented the 77th Amendment Act 1995 and added Article 16 (4A).
      - Article 16(4A): Reservation in promotion for SC/STs class of citizens who are not adequately represented in state services.
    - After this amendment, the reservation in promotion was implemented through Consequential seniority. It is a process that means that if a person has been promoted being a reserve category before his general category batchmate, the reserve category candidate will always be a senior.
      - Hence, Consequential seniority was questioned and the court suggested a catch-up rule in the **Ajit Pal Case 1996**.

- Consequential seniority means once a senior, always a senior, whereas in Catch up rule the general category candidates who were promoted late will regain their seniority.
- In response to this parliament implemented the 85th amendment, 2001, and added the term Consequential seniority in Article 16(4 A).

## Polity

### Chapter 03: Fundamental Rights

#### Lecture 09: Article 16 Reservation in Promotion

##### Indra Sawhney Case, 1992:

- The court held that reservation in promotion is not a valid and constitutional concept, hence, it should not be allowed in government services.
  - In response to this judgment, 77th Amendment Act 1995 added Article 16 (4A), this introduced reservation in promotion as a constitutional idea.
- Reservation in promotion since the 1950's is based upon consequential seniority. The 77th amendment act, 1995 continued the method of consequential seniority without mentioning this term.
- The 77th amendment was challenged in *Ajit Singh Jajua* case and the court upheld it but the court directed the government to follow the catchup rule.
  - Catch up rule means that those who were lagging behind because of consequential seniority would be given an opportunity to regain their seniority.
- In response to the *Ajit Singh Jajua* case, the parliament added 85th amendment, 2001 and inserted consequential seniority in Art 16(4A).
  - Consequential seniority: It means a candidate once promoted would remain senior to his fellow candidates. (Once a senior, always a senior).
- The 77th and 85th amendment was challenged in the *M Nagaraj* case. The court held that reservation in promotion is valid concept but gave the following guidelines:
  - While promoting the administrative efficiency of the candidates.
  - Also the adequate representation should be based upon the report of a committee which will analyze the data of backwardness. Before recommending the reservations.

##### Jarnail Singh Case 2018:

- In this case the court held that reservation in promotion is a valid concept and states do not require any quantifiable data for implementation.

- But the court also directed states to implement creamy layer in SC and ST.

##### B K Pavitra Case 2019:

- In this case the court held that reservation in promotion is a valid concept. But the state should not compromise its administrative efficiency.

##### Davinder Singh Case:

- In this case the court held that creamy layer should be implemented in SC and ST and sub-classification of SC and ST should be done.

Note: Till date we do not have the concept of creamy layer in SC and STs.

##### OBC Reservation in India:

- After the *Kelkar Committee* and *Mandal Commission*, it was proposed that the reservation for other backward classes (OBCs) be implemented. Hence the government implemented this report.

##### Indra Sawhney Case, 1992:

- Facts About the Case:
  - The government implemented OBC reservation for some 3743 Socially Economically Backward Classes (SEBCs).
  - 27% reservation was recommended for the OBCs. EWS reservation was also recommended.
- Court held that:
  - OBC reservation is upheld with a creamy layer.
  - Reservation cannot exceed 50% cap in total.
  - EWS reservation is not valid, (because the Constitution does not talk about the economic backwardness criteria, rather it talks about socially and educationally backward criteria). Hence, the Court allowed OBC reservation based on the creamy layer concept.
  - Carry forward rule (Backlog Vacancies) for unfilled vacancies.

##### Backlog Rule / Carry Forward Rule:

- Under this the backlog vacancies should not be given to general but should be added in the next vacancy cycle. So Parliament implemented the 81st amendment, in 2000 and

added Article 16(4B) in the constitution to implement the Carry Forward Rule in the Constitution. This amendment was done after *Indra Sawhney's* judgement.

- The amendment allowed reservation in promotion to breach the 50% ceiling set on regular reservations.

### What is a creamy layer?

- The term *creamy layer* means that candidates who have received the benefit of reservation be moved to the general category.

### Criteria of Creamy Layer:

| Government Category (rank based)                                                                                                                                                                                                                                                                                                                                             | Private (income based)                                                                                                                                                                                                                                                                    |
|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <ul style="list-style-type: none"> <li>• If either of the parents is in a constitutional post.</li> <li>• Either parent is a Group A officer.</li> <li>• Both the parents are Group B officers.</li> <li>• Either parent is promoted to Group A before the age of 40 years.</li> <li>• Children of Colonel or above in Army and similar ranks in Navy or Airforce</li> </ul> | <ul style="list-style-type: none"> <li>• Annual Income above 8 lakhs is OBC-creamy layer (but agriculture income or salary of private employees is not included)<br/>*(This 8 lakhs criteria is subject to revision)</li> <li>• 8 lakhs (3 year average income is considered).</li> </ul> |

## Polity

### Chapter 03 : Fundamental Rights

#### Lecture 10: EWS Reservation Article 17 and 18

#### EWS Reservation:

- Parliament, by 103rd Amendment 2019, amended the Constitution and added Article 15 (6) and Article 16 (6) which assured 10% reservation to the economically weaker general category of citizens (nowhere in the constitution, economic backwardness has been mentioned as the criteria for the reservation).
- Criteria for EWS:
  - Annual family income less than 8 lakhs.
  - Farm Land less than 5 acres.
  - House less than 1000 sq. feet in a metro city and 100 sq. yard in notified municipal area.

#### Janahit Abhiyan Case 2022:

- In *Janhit Abhiyan v. Union of India* (2022), the Supreme Court of India upheld the constitutional validity of the Constitution (One Hundred and Third Amendment) Act, 2019 that introduced reservations for the Economically Weaker Sections (EWS) of society. Here family means parents, siblings below 18 years, spouse and children below 18.

#### Vertical and Horizontal reservation:

- The term vertical means that verticals are created as separate classes or categories. For example: SCs, STs, OBCs, EWS.
- Whereas Horizontal reservation means reservation within reservation. For example: Women reservation, PWDs, and Transgenders reservation.

#### Socio Economic Caste Census (SECC):

- It is an exercise to identify the socio-economic backwardness in the country. This census has not been done since 1941. Though done in 2011, it was never published.
- Currently, there has been a demand for a socio-economic caste census.

#### Benefits of Caste Census:

- Helps in better policy formulation.
- Removes inequalities.
- Ensures the welfare of people.
- Excludes irrelevant castes, and will include new relevant castes (rationalizing of the caste).
- Also fulfills the objective of Article 340 of the constitution.
- Targeted benefits are delivered.

#### Issues with the Census:

- It will lead to further politicization of caste in the country.
- It can give rise to identity-based politics.
- It will give an upper hand to the ruling government.

## Polity

### Chapter 03: Fundamental Rights

#### Lecture 11: Article 16

##### Sub Categorization of OBC (Justice G. Rohini Commission, 2018):

- Sub categorization of OBC means that the caste would be divided in such a manner so that everyone can take the benefits of reservation.
- Justice G Rohini Commission established in 2017 to ensure fair representation among OBC sections.

##### Why Sub categorization?

- The 2018 report held that 97% benefits went to 25% OBCs.
- Almost 983 communities had zero representation in the OBC vertical.
- Few dominant OBC groups such as Yadavs, Kurmis and Jats got the most benefits.
- This would give adequate representation to every backward section.

##### Findings of G Rohini Commission Report:

- It highlighted that approximately 10% of castes have got majority benefits.
- Many other castes are out of the reservation benefits.

##### Recommendations of Report:

- Currently four categories have been recommended (Extreme backward class, most backward class, relative backward class, backward class)

##### OBC Reservation in Panchayats:

- It was originally not provided at Panchayat level, but later on courts in various judgements implemented it through triple test. It was originally not provided at Panchayat level, but later on courts in various judgements implemented it through triple test.
- It is implemented to ensure the implementation in panchayat system (Constitution does not grant it)
- But states like Maharashtra, Madhya Pradesh, Tamil Nadu, Uttar Pradesh, Odisha have implemented it.

- In 2021 in the *Maharashtra panchayat reservation case* court pronounced it was originally not provided at Panchayat level, but later on courts in various judgements implemented it through triple test-
  - Ensure that SC/ST/OBC reservation should not exceed the 50% limit.
  - A dedicated commission should be constituted to identify the level of backwardness of the caste.
  - The quantum of reservation should be as per the percentage of population.

#### Difference between Article 15 and Article 16

- Both 15 and 16 provide equality to its citizens, under Article 15 discrimination is allowed on the grounds of domicile and descent whereas under Article 16 it is not allowed.
  - The Supreme Court in *D.P. Joshi case* held that the government can exempt state residents from certain selection criteria. For example, lower cutoff.
  - In the *Pradeep Jain case (1984)* the Court held that reservations in employment based on the "Son of the Soil" theory are invalid.
  - Allahabad High Court in 2019 held that reservation in jobs for women category is invalid.
  - The Uttarakhand High Court held that reservations for locals in Group C and D government jobs are valid for state government jobs.
  - In the *Tanvi Bahl case (2025)* the court held that domicile reservation in PG medical colleges is against the merit system and hence invalid.

#### Article 16(5)

- Article 16 provides for equality of opportunity in public employment but Article 16(5) puts up exemptions for
  - Appointment in religious institutions. For example only Hindu can be recruited in temples, muslims in mosques etc.

**Note:** To protect the autonomy of religious institutions.

- This article was implemented to protect religious freedom. In the *S.P. Mittal case* the court held that religious institutions had the right to select the office bearer as per their conditions.

- Whereas *Bramharishi case (2021)* court held that this provision should not promote caste discrimination or untouchability.

**Que.** Differentiate between the notion of right to equality between the USA and India.

#### Equality: USA v/s India:

- India follows positive discrimination whereas the USA follows limited affirmative actions.
- India has reservations for SC, ST, OBC and women whereas USA follows reservation on the basis of race.
- India follows a protective discrimination whereas the USA is more focused on formal equality and individual rights.
- Indian equality is more broader because it consists of both formal and substantive equality.
- In 2023 the US court held that the USA should follow an equal system i.e. no reservation on the basis of race. In response to this few universities revised their admission policies whereas others have increased their reservation quotas.

## Polity

### Chapter 03: Fundamental Rights

#### Lecture 12: Article 17-19

##### Grundnorm:

- The particular law is the source of all law in the country. Similarly the Indian constitution happens to be the highest law of the land and has supreme legal authority.
- The Constitution is the mother of all other laws because every other law has taken birth from it.

- Grundnorm: Constitution
- Secondary norm: Other laws like Bhartiya Nyaya Samhita, Dowry prohibition Act etc.
- Tertiary Law: Executive order (Presidential order on schedule caste/Schedule tribe)

- This norm is not dependent on any other law; rather, it validates the entire legal framework beneath it. The hierarchy of norms operates under this principle, where each law or norm is controlled by a superior law until it reaches the Grundnorm.

##### Article 17: Abolition of Untouchability:

- Article 17 of the Indian Constitution abolishes untouchability and prohibits its practice in any form forbidden by law.
- It is an absolute right i.e. without restriction.
- It is against private citizens as well.
- It empowers the Parliament to ensure that such practices are punished hence Article 17 does not define "untouchability".
- To stop this practice parliament implements-
  - Protection of Civil Rights Act, 1955 - aimed at preventing any form of discrimination based on untouchability.
  - Scheduled Castes and Scheduled Tribes (Prevention of Atrocities) Act, 1989 - designed to prevent atrocities against SCs and STs.

- Prohibition of Employment as Manual Scavengers and Their Rehabilitation Act, 2013 - addresses the practice of manual scavenging and rehabilitates those involved in such work.
- SC in various cases has held that the government is duty bound to remove untouchability from society.
- In the *Asiad Village Case 1982*, the court held that mistreating scheduled caste workers and paying them less salary would amount to **Untouchability** (Paying them low wages during the Asian Games).
- In the *Appa Balu case*, the court held that untouchability is a criminal offense.
- In the *Sabarimala case*, the Court held that not allowing women based on the menstruation cycle in temples is **untouchable**.
- In the state of Gujarat, the court held that practicing manual scavenging is a violation of human rights and dignity.

##### Article 18: Abolition of Titles:

- Article 18 talks about the **Abolition of Titles**. The titles are basically used or given to differentiate between the upper section of society and the lower section of society.
  - The British empire granted titles like *Khan Bahadur, Rai Bahadur, Zamindar*, etc. This created inequality in the society hence the constitution removed them through Article 18.
- Article 18(1) abolishes titles of citizens or foreigners but allows military and academic distinctions.
- Article 18(2) prohibits Indian citizens from accepting any title from a foreign state. Article 18(2) was implemented to avoid conflict of interest and ensure loyalty with the state.
- Article 18(3) states that no person who is not a citizen of India shall, while he holds any office of profit or trust under the State, accept without the consent of the President any title from any foreign State.
- Article 18(4) states that no person holding any office of profit or trust under the State shall, without the consent of the President, accept any present, emolument, or office of any kind from or under any foreign State.

What are not titles?

- In the *Balaji Raghvan case 1985* court held that Bharat ratna, padma vibhushan, padma shree are national awards and not titles.
- Hence, in 2019, the government announced that they cannot be used as prefixes or suffixes in anyone's name.
- Academic distinctions like Phd, professor, military distinctions like general, admirals etc are permissible.
- International awards like the Noble prize, Magsaysay award are merits and not titles.
- Hence, article 18 ensures equality in society by abolishing the titles.

#### Tosh Khana

- Tosh Khana is a treasury under the Ministry of External Affairs, which maintains the exceptional gifts or gifts above 5000 rupees received by government officials or dignitaries abroad.

#### Current Practice:

- Any person getting the valuables during the official visit has to declare the gift to the ministry of external affairs.
- If a valuable gift is less than Rs. 5000 then he/she can retain it or if it exceeds Rs. 5000 he/she can purchase it at discount price. If not retained it will be auctioned or preserved for national heritage.
- It is regulated by All India Service rules and FCRA act, 2010.

#### Right to Freedom:

- It is the most fragile right among all.
- Automatic suspension during an emergency.
- Article 19 of the constitution ensures that citizens in the country shall have
  - Article 19(1)(a) - Freedom of Speech and Expression
  - Article 19(1)(b) - Right to Assemble Peaceably
  - Article 19(1)(c) - Freedom to Form Associations or Unions
  - Article 19(1)(d) - Freedom to Move Freely Throughout the Territory of India
  - Article 19(1)(e) - Freedom to Reside and Settle in Any Part of India
  - Article 19(1)(g) - Freedom to Practice Any Profession, Trade, or Business

#### Note:

- Article 19(1)(f) - Right to Property (Deleted by 44th Amendment, 1978).  
Initially, this provision provided the right to acquire, hold, and dispose of property. However, it was removed by the 44th Constitutional Amendment Act, 1978, and is now a legal right under Article 300A.

#### Freedom of Speech and Expression:

- Here the word "Freedom" signifies that an individual is free from government restrictions while enjoying their right to speech and expression.
- This term "freedom" ensures that the citizens can choose the speech, expression or engage in activities of their own choice which ensures their personal and societal growth.

**Note:** Freedom is absolute ability to think or act whereas liberty is absence of restriction (Freedom is unrestricted/conditionless while liberty is regulated/ with conditions)

[7 June 2025]

## Polity

### Chapter 03: Fundamental Rights

#### Lecture 13: Article 19 Freedom of Speech and

- Freedom of speech & Expression
- Doctrine of chilling effect.

19(1) → 7 freedoms, but 19(1)(f) → deleted by 44th Amendment 1978.

#### Article 19(1)(a) - Freedom of Speech and Expression:

- This idea was given to ensure the development of human faculties. But this article is Human & restricted by Article 19(2). → restrictions must be reasonable

- Reasonable restrictions for Art 19(1)(a): In 1951, Art 19(2) was amended to add the word "Reasonable" before word restrictions because in the *Brij Bhushan and Ramesh Thapar* case the court held that these restrictions should be reasonable in nature. Hence, following amendments were done (Art 19(2)):- Through 1st Amendment Act, 1951. Added word Reasonable - by SC.

- Sovereignty and Integrity of State (by 16th Amendment 1963) → Sovereignty and Integrity of state
- Public order → Public order
- Friendly relations with Foreign States → Friendly relations of Foreign
- Incitement of offense → Incitement of offense
- Security of state was also added. → security of state.

#### Current Restrictions:

- Sovereignty and Integrity of State (by 16th Amendment 1963)
- Security of state
- Public order
- Friendly relations with Foreign States
- Decency or morality
- Defamation
- Contempt of Court
- Incitement of offense

(8 restrictions)

Besides all these restrictions, the definition and reasonability of the restrictions is questionable in court?

E.g. Trump comes to India, & printed few things against U.S.A → still questionable in relation with F.S or H.S freedom of speech. (media).

Initially Purpose of Newspaper media: To reach big masses for awareness.

Current Situation: A Business.

Newspaper paper made in NEPAHAR (M.P.) National Newspaper and Paper Mills

Can Right to Freedom of Expression

Rights of Media

→ to practice this. Can I use media? Court describe [Maharashtra]

Print Control Order

[1961]

- In *Sakal Papers Case 1961* the court held that publication of newspapers is fundamental right but the government can regulate it through reasonable means. → [limit on use of paper per day] by 40vb.

[1973]

- Further the court held that such restrictions on news media is against the reasonable restrictions criteria. [Against Reasonable Restriction] by court. → After FERA 1973

[1986]

- Bennett Coleman Case 1973*: Under this court held that freedom of the media is essential criteria for functioning of democracy. Hence, the government cannot curb it. [Current: Tol]
- Indian Express Newspaper 1986*: The court held that the duty of government is to provide freedom of media under Article 19. The court also ordered the central government to reconsider the tax policy imposed on the newspaper.

[1978]

- Maneka Gandhi Case, 1978*: The court held that it is the duty of the government to ensure free speech. Hence, in all possible means the government should protect the media. I Government Control media Newspaper - only Propaganda.

Note: Free speech is sine qua non to democracy. [Sine qua: Essential to non.]

Doctrine of Chilling Effect: (Doctrine: Excessive control of speech with unreasonable reasons.)

- The term "chilling effect" means indirect interference in our fundamental rights. It is done through inappropriate, anachronistic, Victorian era laws. → old fashioned.
- It evolved in the US postmaster general case. → regulating postal paper supply.
- The SC of India has held that the age-old laws of the Indian government which also encroaches the rights of the people shall be called as Chilling Effect Laws.

#### ① Sedition Law (Section 124A of IPC): [Sedition: देशद्रोह]

- It was introduced by the Britishers in 1870. The term "Sedition" means any one who tries to bring hatred (disaffection) against the state by words spoken or written or by financial or electronic means shall be put under the law of the state.
- Recently, sedition was read in BNS through section 150 which states that anyone who wage a war against the government of India shall be punished. → (10 yrs Punishment)

This law helps the govt in the union to curb the criticism against them.

[Under BNS section 150] [Bharhiya Nyay Sannihita]

In BNS, it is almost to IPC (Rearranging) and also added community service as punishment.



[Section 152 of BNS] ~ same as IPC section 124A.

- Section 152 of BNS says that anyone who through spoken words or signs or by electronic communication or by financial means tries to endanger sovereignty and integrity of India, will be imprisoned for 7 years or up to life imprisonment.

Exception: any comment expressing dissatisfaction against government/administration is not an offence.

Dissatisfaction or criticism against govt is not an offence.

Supreme Court Cases on Sedition:

- Kedarnath Case 1962:** The court held that sedition should not be applied where citizens criticize the government. → Against Congress Govt. [Due to unattended behaviour towards Bihar]
- P. A. Alavi Case 1982:** The court held that mere raising slogans does not amount to sedition.

NIA seized 3 Boys from Meerut having Rocket launcher but it's a Farm Equipment.

Difference b/w Article 1, Law, Dhara → context-based  
(Constitutional Provisions) Provision Informs made by Legislature



[7 June, 2025] Polity

Chapter 03: Fundamental Rights  
Nagrika Suraksha Samhita (Procedural Court Law)

Lecture 14: Article 19  
[Laws which shows Doctrine of chilling Effect]

② Law of Defamation: (mostly misused by ruling government).

- Defamation is of two kinds: Harming someone's reputation.

- Libel (written defamation): Defamation by print/electronic or publication.
- Slander (spoken defamation): Defamation by words or speech.
- In India, both libel and slander are punished. Also, it is considered both a civil and a criminal offense.

Types of offenses.

- A civil offense involves only penalties, such as fines, and includes breaches of contracts and torts, which are failures to perform legal duties (civil wrongdoings), without imprisonment. → wrong doings. (civil wrong doings)
- A criminal offense however, may result in imprisonment, fines, or both. (criminal wrong doings)

- Section 356 of Bharatiya Nyaya Samhita (BNS) defines defamation an offense. Earlier Section 499 IPC defense
- ★ Speaking truth is defense in Defamation. [To protect yourself: Truth is only defense]
- Defamation means, harming someone's reputation through spoken words, gestures, or written statements. Important case: Rahul Gandhi got 2yr imprisonment for saying Modi is chor, but S.C. rej.
- Similarly section 351 talks about criminal intimidation. The punishment for criminal intimidation is imprisonment up to 2 years, or a fine, or both. Criminal intimidation means injury to anyone's property, reputation etc. → doctrine of chilling effect.
- In India, the law of defamation is used to block freedom of speech and expression.
- The misuse of this law amounts to a chilling effect on freedom of speech. In a defamation offense, truth is the only defence.

③ Contempt of Courts: Two meanings → Question the Court's decision, not following court's order

- The term contempt means where a person tries to:
  - Scandalize the judgment or image or lower the dignity of the court.
  - Interferes or stops the working of court.

Important case: Prashant Bhushan Case.

July, 2020

- It is either a civil or criminal offense but many times it proves to be chilling effect on the freedom of speech of citizens. [misuse of the reasonable restrictions under 19(2)]

How is Contempt of Court Proceedings initiated? (How to file case)

Two ways: The court can suo-moto initiate proceedings of contempt. These proceedings may also be initiated based on the direction of the Attorney General under contempt law.

- Note: Punishment for contempt of court may include: up to six months imprisonment, a fine (Rs. 2000), or both imprisonment and a fine.

- The Contempt of Court Act, 1971 applies in such cases.

#### 4) Section 66 A of Information Technology Act, 2000: [17X-12000]

- It was introduced to regulate information technology in the country. Section 66A made sending offensive information through a computer an punishable offense. (Regarding Holiday)
- The Supreme Court in 2015 struck it down in the [Shreya Singhal v. Union of India] case, calling it unconstitutional for violating Article 19(1)(a) (freedom of speech). The court noted its vagueness and potential for misuse. (Struck down all pending & future case through 66A).
- Hence we can state that the chilling effect has made modern state as Orwellian state. through doctrine of Severability.

#### What is the Orwellian state?

- Orwellian state means state in which the citizens are controlled through a totalitarian regime. This state is marked by:

- Totalitarian
- Suppression of free speech
- Propaganda, and misinformation
- Absence of privacy
- Following cult of personality

Current India  
[Personal Thoughts ☺]

#### 5) Morality and Decency: (definition depends on Time & space)

- Article 19(1)(a) guarantees the right to freedom of speech and expression, but it is subject to reasonable restrictions on grounds such as morality and decency, as specified in Article 19(2), and this applies to cinematic expressions as well. (Quality in Phoolan Devi movie)
- It is not defined in the constitution. So, the court has used legal standards to check the obscenity of cinematic expression. (legal standards to check for obscenity of cinematic expression)
- Legal Tests for Obscenity:

- Hicklin Test: A traditional approach to evaluate the degree of obscenity which impacts young minds. (can decide by society at large)
- Miller Test: A modern approach which checks obscenity based on community standards. It helps in protecting the speech of legitimate content creators.

- In Sarkar Case (2014): The Supreme Court favored the Miller Test for obscenity assessment in India.
- In Ramchandra Case (2015): as per SC, Miller test is better approach for India.
- In a PIL against OTTs (2020), the court highlighted that we need to balance freedom of speech and expression along with socio-cultural standards. [balanced]

#### 6) Hate Speech:

- The term "Hate Speech" lacks a clear definition in Indian law.
- Section 146 of the BNS (Bhartiya Nyaya Sanhita) criminalises any speech which promotes enmity and disharmony among religious groups.
- The 267th Law Commission report emphasized the need for a proper definition, suggesting that hate speech definition should include expressions inciting hatred against communities.

#### Article 19 (1)(a): Right to Remain Silent [part of Article 19(1)(a)]

- The Supreme Court has recognized the right to remain silent as an integral part of the fundamental right to freedom of speech and expression under Article 19(1)(a) of the Constitution.
- National Anthem Case (Bijoe Emmanuel Case, 1986): (Bijoe Emmanuel case) 1986
  - The Supreme Court held that the right to remain silent also means freedom of speech and expression.
  - The Court held that students refusing to sing the national anthem on grounds of personal beliefs cannot be compelled to do so, as their silence does not show disrespect but falls under the protection of Article 19. (No disrespect but Protection of Article 19)

Right to freedom of speech & expression ~ Also means Right to remain silent.

Internet is a mode of connecting as well as a source of destruction.  
 ↳ Requires Reputation  
 ↳ Free speech can be a half speech.



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[6 June 2025]

## Polity

### Chapter 03: Fundamental Rights

#### Lecture 15: Article 19 and Article 20

- ↳ Right to Internet  
 ↳ 19(1)(b) - 19(1)(g)  
 [Fahima Shirin case] but it's difficult to regulate in  
 case of Article 21.
- **2019 Fatima Case (Kerala High Court)**
    - Declared access to the Internet as a fundamental right under Article 21 (Right to Life & Personal Liberty). Declared Right to Internet as fundamental.
    - Stated that internet access is essential for education and personal development. Right
  - **Anuradha Bhasin Case (2020, Supreme Court)** [During Covid, no internet for 32K people] (Under Article 21)
    - The case challenged the internet ban in Jammu & Kashmir after the abrogation of Article 370. [Under Article 370] Restrictions on Kashmir.
    - Suspension of internet services must be temporary, necessary, and proportionate.
    - Right to freedom of speech & expression (Article 19(1)(a)) and right to carry out trade & business (Article 19(1)(g)) apply to the internet. 19(1)(a) and 19(1)(g)
    - Restrictions must follow Article 19(2) (reasonable restrictions) and the principle of least restriction. Reasonable Restrictions Under Article 19(2)
  - **Internet Suspension & Restrictions** (Restrictions through Doctrine of Proportionality)
    - Used during riots, protests, and security threats e.g. during Article 370 abrogation
    - **Justifications:**
      - Preventing hate speech and violence.
      - Maintaining public order & national security.
  - **Legal Tests for Restrictions** (Restrictions on Internet)
    - **Doctrine of proportionality:** Restrictions must be lawful, necessary, and proportionate.
    - **Temporary Suspension of Telecom Services (Public Emergency or Public Safety) Rules, 2017.** Governed under the Indian Telegraph Act, 1885. Only authorized officers (Union/State Home Secretaries) can issue suspension orders.

PW Web/App: <https://smart.link/wwswpcad4>

Constitution → Substantive Law: [What needs to be done]



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- **Indian Telegraph Act, 1885: Legal Basis for Internet Restrictions: Section 5(2).** Government can intercept or suspend communications in case of public emergency or national security.
- **Judicial Review:** Courts can examine if internet suspension meets constitutional standards.

Condition & severity of the situation decided by the local administration.

#### Article 19(1)(b): [Peaceful Assembly Right]

- It guarantees citizens the right to peaceful assembly without arms.
- Fundamental Rights under article 19(1)(b) has ensured democratic right of public meeting, procession, assembly etc.
- This right is subject to restrictions under Article 19(3) in the interest of public order, sovereignty, and integrity of India. [2 Points] [No year learn] [Restrictions]
- **Supreme Court Rulings:**
  - **Farm Laws Case:** The right to protest can be enjoyed only till it is peaceful in nature. (Farm Law Protest till peaceful in nature)
  - **Ram Lila Maidan Case (2012):** The Supreme Court held that during peaceful assembly police intervention must be on reasonable grounds. [Police Lathi charge on crowd]
  - **Shaheen Bagh Case:** The Court held that right to protest is a fundamental right but it cannot disrupt the use of public spaces. (Not on the roads (public spaces))
- Article 19(1)(b) empowers citizens to express opinions and dissent, forming a cornerstone of democracy.

#### Article 19(1)(c): [Right to form Unions/Associations/cooperatives]

- To form unions, associations, and cooperatives is provided under Article 19(1)(c) of the Constitution. [Added by 97th Amendment, 2011] Reasonable Restrictions under Article 19(1)(c)
- **Reasonable Restrictions under Article 19(4):** The government can impose restrictions on this right in the interest of:
  - Sovereignty and integrity of India
  - Public order
  - Morality
- Here the term morality is the norm of society.

3P:

PW Web/App: <https://smart.link/wwswpcad4>



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Economic - Socio  
Imbalance, in society

→ This is against freedom

To safeguard \* In the Bharat Kumar case, the court held that Strikes, Lockouts, and Bands are illegal and against the livelihood of others, if done in a coercive manner. [Pressure making on administration]

Doctors, Sanitation services, Food supply, Welfare. Bands are unconstitutional while non-coercive strikes are allowed.

Police, Article 19(1)(d) & Article 19(1)(e): [move freely in territory & reside in any part]

- Article 19(1)(d) guarantees the freedom to move freely throughout the territory of India. → move freely
- Article 19(1)(e) provides the freedom to reside and settle in any part of India. → to reside and settle.
- These rights can be restricted on the following grounds:
- Restrictions under Article 19(5): This freedom is subject to reasonable restrictions in the interest of:
  - during Covid-19:

- General Public: To ensure public order, health, and safety. E.g. Covid 19
- Or the protection of Scheduled Tribes (STs): In tribal areas the movement can be restricted. In a similar way the settlement can be restricted in tribal areas.

- In the Normada Bachao Andolan case the court held that the movement of affected communities cannot be banned. → During Dam construction.
- Similarly during Covid the State used 19(5) to restrict the movement of people.

#### Article 19(1)(g):

- Freedom of trade, profession, and occupation.
- Citizens have the right to engage in any trade and the profession of their choice but according to restrictions under 19(6):
  - If any professional qualification is required, profession can not be done without that. e.g. doctors, engineers. → qualifications (doctors)
  - If the sector has a monopoly of the government. → monopoly (Railways, Nuclear)
  - If a licence is required to run that trade or profession. → licence. (Liquor, Pharmacy)

(Forex) Inner Line Permit (ILP): Mandatory for non-residents entering states like Arunachal Pradesh, Manipur, Mizoram, and Nagaland to safeguard tribal communities.

Meaning of Freedom:



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- The term freedom means the absence of restrictions to use these rights. At the same time, the state should respect these rights.
- It was taken from the US Constitution that the assembly wanted the term freedom should be preferred over liberty because it would ensure zero ambiguity in the enjoyment of these rights.
- Ambedkar wanted that the term freedom should give clear and specific rights to citizens and there should be flexibility in these rights.

#### Freedom vs Liberty: (Learn)

- The term freedom means absolute enjoyment of any right without any restraints whereas liberty means responsibility.
- Freedom with restrictions is liberty.

#### Article 20: Protection during Conviction for Offences (Principle of Natural Justice)

- Principle of natural justice: According to the principle of natural justice everyone is innocent until proven guilty. → No one shall be judge in his own case. Every one should be presumed innocent until proven guilty.
- It is a product of the idea of natural justice that denotes that every person should get a fair opportunity to present his case.
- Key Elements of the Principles of Natural Justice
  - Audi Alteram Partem: No person should be condemned or punished without being heard; everyone has the right to present their case.
  - Nemo Judex in Causa Sua: No one should act as a judge in their own case, ensuring impartiality in legal proceedings.
  - Reasoned Decision: Court decisions must be based on valid reasons, ensuring transparency and accountability in the judicial process.

- Article 20(1): Ex post facto laws [after the fact]
- Article 20(2): Double jeopardy [autrefois Acquit]
- Article 20(3): Protection against self-incrimination

#### 20(1) Ex post facto laws:

- The term ex post facto means that a person should not be made criminal after the action/ fact (in action not in offence).

30th June 2024  
(Not a crime)  
committed a  
act in under  
IPC

1 July 2024  
BNS

30 July  
(caught)  
Procedure according  
to IPC.



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(Trial start)

opposite  
Prospective  
Retrospective  
laws are  
not allowed  
[only in criminal  
cases]

- No person shall be convicted of any offense except for violation of a law in force at the time of the commission of the act charged as an offense, nor be subjected to a penalty greater than that which might have been inflicted under the law in force at the time of the commission of the offence. (NOT even penalty as well as punishment)
- For example, criticizing the Prime Minister on 16 March is not a crime. Therefore, under Article 20(1), criticizing the Prime Minister on 16 March cannot be considered a crime. Now, a law cannot be passed on 20 March making criticism of the Prime Minister a criminal offense from the retrospective date 10 March, as retroactive criminal laws are not allowed.

This concept highlights that criminal laws can not be implemented

retrospectively whereas civil laws can be implemented retrospectively.

#### 20(2) Double Jeopardy (Autrefois Acquit):

- The term *autrefois acquit* means formally acquitted.
- It refers to the principle of double jeopardy which means a person cannot be tried again for the same offense if previously acquitted or convicted.
- This protects a person from any such punishment which takes away his liberty.
- For example A person was jailed for the murder of A on 11th March 2025. The lower court sentenced 7 years punishment only. The High court revised it to 5 years punishment in 2024. The Supreme Court later modified it to 5 years punishment in 2030, to be released immediately.
- Final Verdict: Supreme Court's decision is final, and no further trial for the same offense can be held.

cannot applied on continuing crimes.

A - murder-B

(3 crimes)

C (car theft)

D C rash driving & negligent driving).



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(31st June) (Trial by court) (31st June)  
Accused under Trial → Convict proven

[8th June 2025]

Polity

## Chapter 03: Fundamental Rights

### Lecture 16 : Article 20(3) and Article 21

Article 20(3): Protection against self-incrimination → suggesting guilt or making them seem guilty.

- A person accused of any offense shall not be made witness against oneself. It is protection against testimonial compulsion. The police authority cannot force anyone to admit crime.
- The police authority cannot force anyone to admit the crime. Forced or coerced to provide testimony.
- Exceptions: The below mentioned samples are not testimonial compulsion. They can be used for investigation, thus meaning that they are allowed:
  - DNA samples
  - Blood/semen
  - Handwriting samples
  - Hair samples
  - Fingerprint sample, mobile phones.

Not followed in India

Police cannot forcefully demand anything except these

- In the Nandini Sathopathy case, the court held that the following steps should be taken during an investigation:
  - The accused must be informed about his right to remain silent.
  - Right against self-incrimination.
  - He should not be forced.
  - He should be provided with legal help.
  - Women accused should not be called to the police station for investigation. (For women)

Narco Test/ Polygraph Test: Note: FIR (First Information Report) + Investigation → chargesheet.

- The Narco test is against Art 20(3). Hence, it should not be allowed.
- In the Selvi Case (2010), the court held that such a test could be done only on the consent basis of the criminal or with the permission of a subordinate court. [Criminal Consent or Permission from subord. Court]
- If no consent is given then the investigation authority should take permission to conduct such a test.
- In other countries (USA, Britain, Canada) such tests are not allowed.

Another Test: Lie Detector/ Narco / Brain mapping.

Truth Serum given [Take mind to sub-conscious state] [Innate] → No Adversary and Exploitation of Accused.

### NARCO Analysis:

Narco analysis is a technique used in forensic investigations where a person is administered a psychoactive drug (often sodium pentothal or scopolamine) to induce a trance-like state in which they are more likely to reveal information or speak freely.

**Torture by Police:** UN Convention signed but no torture.

- It is a testimonial compulsion by police. In fact, the parliament has signed UN Convention against torture to ensure that no torture should take place during the punishment of convict. (Though it is not ratified)

### Extra Information:

→ signed Convention but not ratified (implemented)

- Supreme Court in D.K. Basu Case has laid down the guidelines to prevent custodial torture. The Court also held that police should restrain to use torture as tool, because it is against Art 20(3).

### Article 21

(Person in Police Custody)

- It says that "no person shall be deprived of his life or personal liberty except procedure established by law."
- This article is taken from the Fifth Amendment of the American Constitution and is available to both citizens and non-citizens.
- The meaning of the term 'life' is -
  - Not defined in the Constitution.
  - SC in the Kharak Singh Case 1963, held that the term 'life' means 'life with dignity i.e. not mere animal existence rather a qualitative life.'

### What is Personal Liberty?

- The court held that personal liberty is a comprehensive word which means a person is free from physical restraints. (as per A.V. Dicey)

**Personal Liberty:** → Preventive Detention (Detention before the offense)

- In ADM Jabalpur Case 1976 (Habeas Corpus case), the court held that the article 21 can be suspended and fundamental rights cannot be claimed during a national emergency. (During Emergency)
- Justice H.R. Khanna, in dissenting opinion, said that life and personal liberty is the most important fundamental right even during national emergency. So, it cannot be taken away by the law of parliament.
- This case was held to be the Black Day of the Indian judiciary.

→ Black Day

In India, during making of constitution the PEL added as it will help in making laws, easily without much criticism & litigation from public. and courts are also not able to handle these cases against every law.

[9th June 2025]

Polity

Procedure established by law:  
by Procedure

Chapter 03: Fundamental Rights while due process  
↳ substantive

### Lecture 17: Article 21 (Part 02)

**Procedure Established by Law** If law is passed through valid procedure, → then even life and

- Life and personal liberty can be taken away if the law is passed through valid procedure permits. Personal liberty can suffer.
- In modern times, SC is following both procedure established by law and due process of law whereas in the 1950s the court focused only on procedure established by law. Current: Procedure established by law and due process of law.

[What is Procedure Established by Law?] Earlier:

- Under this concept, the law passed by the parliament through proper procedure is valid even if it takes away life and liberty.
- It is taken from the Japanese constitution while due process of law is taken from the USA constitution.
- In A.K. Gopalan case, 1950 the court held that the preventive detention law of parliament is as per procedure. Hence the arrest of A.K. Gopalan is valid. [Preventive Detention Law] so Arrest is valid.
- This was a narrow approach of the Court while interpreting Art 21 of the Constitution.
- In Bank Nationalization Case, 1969 (also called the RC Cooper Case) the Court held that Parliament should also focus on due process of law while passing the laws. In Bank Nationalization Case 1969 Due Process of Law considered.

[Difference between Procedure Established by Law and Due Process of Law]

- The procedure established by law was taken from the Japanese constitution and Due process of law is taken from the USA constitution. Japanese Constitution and USA Constitution
- Procedure established by law ensures that a procedure is followed while making the law, and its reasonableness, and justness should not be questioned. Whereas, under the due process of law, the law of Parliament tested for fair, and reasonable grounds. Making of law is reasonable vis fairness of Law.
- On one hand, the procedure established by law makes Parliament over the powerful, and due process of law results in judicial overreach. Parliament overreach vis overreach of Judiciary.
- Hence in India, both doctrines are followed.

[Maneka Gandhi Case, 1978:]

- In this case, due process of law was implemented and the court held that the law of parliament should be just, fair and reasonable. It should adhere to 'Golden Triangle' of rights i.e. Art 14, Art 15 and Art 21.

These rights are not mutually exclusive.

by Manoj Desai  
Government.



Removed.

- Maneka Gandhi's passport was impounded due to section 10 of passport act, 1967. Maneka Gandhi went to court to challenge the act. The court held that it is the duty of the Parliament to follow Due Process of Law.
- Currently the court follows both (procedure established by law) and (Due process of law). (Due process of law is not mentioned in the constitution).
- Doctrine of Mutual Exclusivity:** (Important) → No person should be deprived of
  - The court held that Art 14, Art 19 and Art 21 are not mutually exclusive i.e. they are in relation to each other. Right to Equality → Right to Freedom i.e. personal liberty.
  - In the former viewpoint (in A.K. Gopalan case), the court held that fundamental rights are mutually exclusive and separate from each other whereas later viewpoint (in Maneka Gandhi case) the three articles are not mutually exclusive as per the theory of interlinkages of rights.

#### Expansion of Article 21: [Longest Article of Fundamental right]

- Right to Environment
- Right to clean air
- Right against solitary confinement → Value Addition Notes.
- Right against handcuffing
- Right of pavements dwellers
- Right to privacy → Comes from Puttuswamy Case.
- Right to be forgotten

#### Current scenario of Procedure established by law and Due process of law [Proof of Due Process of Law]

- Sanil Batra vs. Delhi Administration (1978)** Expanded 'Due Process', bringing humane treatment of prisoners under Article 21, insisting on fairness beyond legislative procedure.
- Hussainara Khatun vs. State of Bihar (1979)** Affirmed the right to speedy trial as an essential part of 'Due Process', ensuring that procedures cannot unjustly delay justice.
- In Selvi Case**, Due process is followed. Narcotest MSO on Consent of Accused or permission of subordinate court.
- In the Puttuswamy case** - Due process of law was followed and gave birth to the Right to Privacy.
- In the Rajbala case** - The court held that the requirement of certain qualification for participation for panchayat is not against article 14 and Article 21 and hence the law is valid and contesting elections is not a fundamental right. Hence Procedure established by law was followed. ↳ statutory Right.

#### Right to be Forgotten

- In the **Zorawar Mundi case**, the Delhi High Court held that it is a fundamental right and an extension of right to privacy under article 21. ↳ Delhi High Court ordered Google and Indian Kanoon website to

no country is giving visa and job in foreign.

remove the digital Presence of the Case.]

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European Union: have: GDPR (General Data Protection Rules)  
To protect the personal data of individuals within the EU.  
India: Digital Data Protection Act (2023) ✓ (Learn) P  
Personal PW ONLYIAS BY PHYSICS WALLAH

- Though the European union under general data protection rules make it a right, but Indian laws does not explicitly grant it. [Digital Protection of Data] → (India)

#### Right to Privacy

- In the Puttuswamy case, the Right to privacy is a fundamental right under Art 21 of the Constitution.

**DOUBTS:** Difference between the Reasonable Restrictions & Procedure established by law?  
Why reasonable restrictions can be challenged in court and PEL cannot?

**Ans:-** Reasonable Restrictions as applied to FR, are limitations imposed by state that must be justified on grounds of public interest and subject to judicial review to ensure their legitimacy. After the end of one. PEL - Preventive Detention Law, detention without trial, on mere suspicion of potential threat. Before the Act actually happen.

PW Web/App: <https://smart.link/7a-waswioic4>



[9th June, 2025]

## Polity

### Chapter 03: Fundamental Rights

#### Lecture 18: Article 21 (Part 03)

Is right to life means right to death? Similarly Right to freedom of speech means right to remain silent.

#### Right to Life Means Right to Death:

- In *P. Rathinam's case, 1994* the court held that the Right to life means the Right to death. Whereas, in the *Glan Kaur Case, 1996* the court held that the Right to life does not mean the Right to Death. Hence, section 309 of IPC, i.e. It criminalises attempt to suicide, was held valid. Initially criminalizes suicide.
- In the *Mental Healthcare Act, 2016* the Parliament supports people committing suicide.

Due to the mental illness being primarily reason for suicidal attempts.

#### Euthanasia (Good Death):

- The term 'Euthanasia' means a person seeks to end his life deliberately.
- It means the act of taking away life to relieve suffering.
- Active Euthanasia means taking someone's life by giving him some lethal injection.
- Passive Euthanasia is killing someone by withdrawing the medical support of a terminally ill person.
- In the *Aruna Shanbaug Case (2011)*, the court held that individuals have the right to die with dignity, but Aruna Shanbaug can not be given euthanasia due to medical reasons.
- It is allowed on the consent of the person or near relative, after the recommendation of the high court.
- After the *Shanbaug case*, the Supreme Court, in 2018, came up with a second judgment in the *Common Cause case (2018)*, where the Court came up with the concept of "living will" for passive euthanasia.
- Passive euthanasia is legally permitted in India under strict regulations.
- Living will is an advance medical directive given by a person himself voluntarily in presence of two witnesses and certified by a judicial magistrate.
- But if a person is incapable of giving such will then the close relatives and a team of doctors can request the high court to allow passive euthanasia. (Expert advice of medical board is required)
- Currently countries like Netherlands, Belgium, Canada, Switzerland allows active euthanasia whereas South Korea, India allows passive euthanasia.

Aruna Shanbaug Case.

Common Cause Case (Living will)

Lethal Injection method of death penalty allowed in USA & China.

No death penalty: Australia and Canada



- Currently, Medical Healthcare Act, 2016 has decriminalised section 309 of IPC.

#### Capital Punishment (Death Sentence):

- In justice system there are three different systems:
  - Retributive (eye for an eye) → This type of punishment is debatable [every sinner has the past and every sinner has the future.]
  - Reformative (should be given a chance for reform) [comes under Rarest of Rare]
  - Restorative (restoring the peace) [doctrine]
- Capital punishment is a concept of Retributive Justice system which has been under debate since decades. [Under debate]
- The SC in the *Bachchan Singh Case, 1980* came up with the 'rarest of the rare doctrine'.
- In the *Macchi Singh case, 1989* the court held that it should be implemented through following conditions:
  - Mens Rea [Motive behind offense]

Meerut Blue Tanker Drum Crime

- Offence should be brutal. [Brutal]
- Crime done with a heinous motive. [Heinous]
- Condition of victim. [Condition]
- In the *Mukul Rohatgi case 2021*, the court held that the Rarest of the Rare Doctrine should be necessary to ensure justice. [Necessary to ensure justice]
- In India, death punishment is given by hanging and not by lethal injections or shooting death. [even the death penalty doesn't affect the occurrence of brutal crime]
- Currently Canada, Australia had removed it and China, India, Pakistan using it.

★ It is not the degree of punishment rather the certainty of punishments that matters. [Vampin India.]

#### Right to Clean Environment: [Extension of Article 21]: Due Climate Change, Environment degradation and Bhopal Gas Tragedy.

- The Right to a Clean and Healthy Environment is an extension of Article 21 of the Indian Constitution to ensure a dignified life through a clean and healthy environment.
- In Fact, Directive Principles of State Policy (DPSP) under Article 48A direct the state to protect and improve the environment and safeguard forests and wildlife.
- Key Case Laws:
  - Rural Litigation and Entitlement Kendra (RLEK) Case, 1985: The Supreme Court interpreted Article 21 to include the Right to a Healthy Environment.
    - It emphasized the state's duty to protect and ensure ecological balance.
  - MC Mehta Case, 1986 (Oleum Gas Leak): The court held that it should be liability of the state to ensure compensation for pollution.
    - Introduced the "Polluter Pays" principle. (mc mehta: Famous Environmental Lawyer)

Union Carbide Case

For live loss and environment degradation → Doctrine of Absolute Liability complete responsibility.



- MC Mehta Case, 1988: The court ruled that the state has a duty to protect the environment and ensure its sustainability.
- Vellore Citizens Welfare Forum Case, 1996: The court held that the government should ensure a clean environment through effective laws.
  - Recognized the concept of Sustainable Development.
- TN Godavaram Thirumulpad Case, 1996: Directed the establishment of a Green Bench to deal with environmental matters. [Green Bench Establishment]
  - The court held that it is the duty of the government to protect the forest.
- MC Mehta Case, 1999: The court ordered that public transport should run on clean environment friendly fuels to reduce air pollution.
- Kamal Nath case: The court held that natural resources like air, water, and forest should be protected as public resources because the government is trustee of it.

Also MC Mehta case.

Green Bench: [Common TN Godavaram Thirumulpad case]

Forest Dept. The SC in 1996 created a green bench to handle the cases of environmental matters.

- Currently it is the principal bench which takes care of environmental matters. For example- Chor Dham Case, Mumbai coastal road project case etc. (Special Judge bench for environmental matters)
- It usually sits on Fridays. (Fridays)

- Strict liability ensures that there is an exception due to which the act has happened. } Legal principles
- Absolute Liability means no exception is allowed. } can be a exception. } No exception / complete resp.

## Article 22 - Protection against Arrest and Detention under Certain Cases:

Handouts mainly given legal recourse. (Learn from Handout specifically)

- Article 22(1): A person who is arrested must be informed of the reason for their arrest and should be given legal recourse.
- Article 22(2): It makes custody through judicial magistrate a fundamental right. (within 24 hours of arrest excluding travel time).
- These rights are not usually available to alien persons or cases involving civil matters.

22(1) → Legal Help

22(2) → Custody Present in front of the judicial Magistrate (JM) (within 24 hrs)

Police custody (upto 15 days maximum) For investigation, in police lockup. (or) Judicial custody (under Trial) but in Jail (State controlled)

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D.K. Basu Case (1997) guidelines under Article 22.



[9th June, 2025]

Polity

↳ A-22

↳ A-21A

↳ A-23, 24, 25

## Chapter 03: Fundamental Rights

### Lecture 19: Article 23-25

#### D.K. Basu Case (1997) and Safeguards Against Arbitrary Arrest:

- The Supreme Court, in the D.K. Basu v. State of West Bengal case, held that non-compliance with the prescribed procedure for arrest violates Article 21 (Right to Life and Personal Liberty) and Article 22 (Protection Against Arbitrary Arrest and Detention). During D.K. Basu case: must follow procedure during arrest mentioned under To ensure transparency and prevent custodial abuse, the Court laid down the following guidelines: Article 22.

Guidelines for Arrest Procedures: 10 guidelines + 1 to follow up to else contempt of court.

- Identification of Arresting Officer: The police personnel carrying out the arrest must have proper identification, including a visible name tag and official designation.
- Memo of Arrest: A written arrest memo must be prepared and signed by a family member, relative, or a respectable witness from the locality. Also witness must present. (Panchanama)
- Right to Information: The arrested person has the right to inform a relative or friend about their detention.
- Police Diary Entry: The details of the arrest, including the time, place, and reason, should be documented in the police diary.
- Right to Be Informed of Legal Rights: The arrested individual must be made aware of their legal rights at the time of arrest.
- Medical Examination Within 48 Hours: A medical check-up must be conducted every 48 hours by a qualified doctor to prevent custodial torture.
- Magistrate's Notification: A copy of the arrest memo and related documents must be submitted to the magistrate without delay.
- Right to Legal Representation: The detained person must be allowed access to a lawyer and the legal proceedings should be properly recorded.
- Police Control Room Notification: Within 12 hours of arrest, the police control room in the concerned district must be informed.

PW Web/App: <https://smart.link/7wvsgvcoidd>

- **Regular Medical Check-Ups:** The detainee should undergo periodic medical check-ups to ensure their well-being during custody.
- **Consequences of Non-Compliance:** Any violation of these guidelines will be treated as contempt of court, leading to legal consequences for the responsible officials.

**Note:** Custodial torture is also against Article 20(3):

The Supreme Court ruled that custodial death and torture violate Article 21, reinforcing the state's responsibility to protect individuals from police brutality.

### Article 22 and Exceptions to Protection Against Arrest: [Relation with Internal Security]

- These protections do not apply in cases of:

✓ Court-ordered arrests

✓ Civil arrests

✓ Arrests for failure to pay taxes

✓ Arrests of aliens

4 cases NOT apply for Article 22, Exceptions to Protection Against Arrest.  
Punitive Detention (After the crime)

### Article 22(3) and Preventive Detention: → Preventive (before crime) (Rajminder leads during removal of 370)

Under preventive detention, the safeguards under Article 22(1) and 22(2) do not apply. However, the following provisions ensure that preventive detention is not misused:

- **Maximum Detention Period:** A person cannot be detained for more than three months without further review.
- **Review by High Court Board:** If an extension beyond three months is required, it must be approved by an Advisory Board headed by a High Court Judge.
- **Right to Representation:** The detained individual should have the opportunity to represent themselves before the board.
- **Parliamentary Oversight:** Parliament has the authority to lay down rules and determine the maximum period of preventive detention under different circumstances.

### Judicial View on Preventive Detention: [Pran Naryana Case]

- In the *Prem Narayan Case* (2019), the Allahabad High Court ruled that preventive detention laws must be used reasonably, as they impose significant restrictions on personal liberty, which is a core element of Article 21.

### Article 21A: Right to Education (Related with Society Lecture 28, 27)

### Constitutional Provision:

- **Article 21A of the Indian Constitution** guarantees the right to free and compulsory education for all children aged 6 to 14 years. Related with DPSP Article 45.
- This provision was introduced through the 86th Constitutional Amendment Act, 2002 to ensure universal access to elementary education. [No admission Policy] [No fail Policy]

### Legislative Framework:

#### Right to Education (RTE) Act, 2009:

To implement Article 21A, the government enacted the Right to Education (RTE) Act, 2009, which mandates:

- ✓ **Free and Compulsory Education:** No child should be denied education due to financial constraints, and it is the duty of the state to provide schooling facilities.
- ✓ **Minimum Standards for Schools:** Schools must adhere to prescribed norms, including infrastructure, teacher-student ratios, and quality benchmarks.
- ✓ **No Discrimination:** Private and government schools cannot discriminate based on caste, gender, or socio-economic background.

### Right Against Exploitation (Article 23): [NEW F.R.]

#### Constitutional Provision:

- Article 23 of the Indian Constitution prohibits human trafficking, forced labor (begar), and all similar exploitative practices. (beggar), bonded labour
- Violation of this provision is a punishable offense under Indian law.

#### Key Provisions:

- **Article 23(1):** Prohibition of Human Trafficking and Forced Labor: Any form of trafficking, bonded labor, or forced labor is strictly prohibited. military or disaster relief force.
- **Criminal Liability:** Anyone engaging in such practices can be punished as per law.
- **Article 23(2):** Exception for Public Service: The state can impose compulsory service for public purposes, such as military service or disaster relief, provided it does not discriminate based on religion, race, caste, or class. No gender mention ed.

### Judicial Interpretation: Bandhua Mukti Morcha Case (1984): Bandhua Mukti Morcha Case.

- In this case, the Supreme Court ruled that the government must actively ensure the abolition of bonded labor.
- It emphasized:
  - Bonded labor should not exist in any form.

→ Related society women.

- ✓ Equal wages should be given to workers without discrimination.
- ✓ [Government intervention] is necessary to [prevent exploitation] and rehabilitate affected individuals.

### Right to Information (RTI) and Article 19: (Article 19) Part Constitutional Provision: ↳ Part of Right to Freedom of Speech & Exp.

- Article 19(1)(a) of the Indian Constitution guarantees the Right to Freedom of Speech and Expression.
- The Supreme Court, in the *S.P. Gupta Case (1982)*, recognized that the Right to Information (RTI) is an integral part of Article 19(1)(a), as access to information is essential for the free expression of opinions.

↳ (Freedom of Inflow) (Related of Governance)

### Article 24: Prohibition of Child Labour (Related to Indian society) (Child's vulnerable section)

#### Constitutional Provision:

- Article 24 of the Indian Constitution prohibits the employment of children in hazardous work to protect their health and development.

#### Key Provisions:

- ✓ Complete Ban on Child Labour (Below 14 Years): No child below 14 years can be employed in any factory, mine, or hazardous occupation.
- ✓ Right to Education (6-14 Years): Children in this age group are entitled to free and compulsory education under Article 21A.
- ✓ Regulated Work for 14-18 Years: Adolescents aged 14-18 years can work but only in non-hazardous occupations.

### Legislative Framework- [Legislative Provisions For Children]

Child Labour (Prohibition and Regulation) Act, 1986 & 2016 Amendment To enforce Article 24, Parliament passed laws, including: Child Labour (Prohibition & Regulation)

- Child Labour (Prohibition and Regulation) Act, 1986: Initially banned child labor in hazardous industries. 1986 (Prohibition)
- Amendment Act (2016): Amendment.
  - ✓ Prohibited employment of children below 14 years in all occupations except family enterprises and entertainment industry (with conditions).
  - ✓ Banned hazardous work for children aged 14-18 years.

→ if not fulfilled → Penalties, imprisonment and fines.

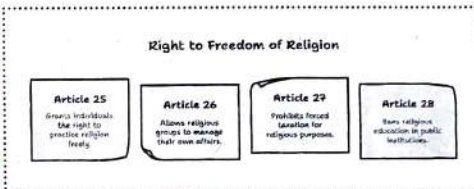
- ✓ Increased penalties for violations, including imprisonment and fines.

### Right to Freedom of Religion (Articles 25-28): [Article 25-28]

The Indian Constitution ensures religious freedom through Articles 25 to 28, balancing individual rights with public order and state neutrality in religious matters.

#### Article 25: Freedom of Religion:

- Grants every individual the right to freely profess, practice, and [Propose, Practice and Propagate] propagate their religion. ↳ (Fright wrong) [Common Ethics class]
- Includes freedom of [conscience], allowing individuals to choose and follow any religion.
- Restrictions: This right is subject to public order, health, and morality to ensure social harmony.



#### Ambedkar's View on Article 25:

- Dr. B.R. Ambedkar believed individual liberty should take precedence over community rights.
- He opposed the protection of personal laws under Article 25, as he saw them as potential barriers to individual freedom and equality.

↳ A state of security and safety within the state during daily life.

#### Article 26: Right to Manage Religious Affairs

- Religious groups have the right to:

- Establish and maintain religious institutions. maintain institutions.
- Manage their own religious affairs. Own religious Affairs
- Own and acquire property for religious purposes. own & acquire property.
- Administer such property as per the law. Administer property.

Ambedkar's views → Personal Individual Liberty > Community Laws.  
↳ Religious Affairs.  
↳ Rituals, Customs → Community Oriented.  
↳ Family Affairs  
↳ Rituals.

#### Article 27: Freedom from Forced Taxation for Religion

- No individual can be [compelled to pay taxes] for the [promotion or maintenance] of [any particular religion or religious institution].
- Ensures that the [State remains secular and does not favor any religion]

### Article 28: Freedom from Religious Education in Public Institutions

- No religious instruction can be provided in government-funded institutions.
- Exceptions: (No religious ~~construction~~ in government aided institutions)
  - Private institutions receiving no government aid can offer religious education.
  - Religious teachings are permitted in educational institutions managed by religious groups.

Religious teachings only allowed in Private institutions with no government aid or only run by Religious groups.

[10th June, 2025]

Polity

## Chapter 03: Fundamental Rights

### Lecture 20: Doctrine of Essentiality, Article 26-28

#### What is Religion:

Religion: individual matter of faith.

- The Supreme Court has held that religion in India means a "matter of faith". Therefore, Article 25 grants individuals the freedom to practice and propagate religion in their own way. [Process, Practice and Propagate religion in your own way].

#### Doctrine of Essential Practices: / Doctrine of Essentiality.

- B.R. Ambedkar advocated that the state should interfere in religious matters to ensure that no practice violates Article 25. B.R. Ambedkar advocated the state should interfere in religious matters that no practice violates Art. 25.
- As a result, the Supreme Court developed the Essential Religious Practice Test to differentiate between essential and non-essential religious practices. To differentiate between essential & non-essential practices.
- Shirur Mutt Case (1954): The Supreme Court held that it is the court's duty to identify which practices are essential to a religion. Essentiality based on two factors:- (Age of practice & importance to religion)
  - This determination is based on two factors:
    - Age of Practice - Whether it has been followed since time immemorial.
    - Importance to Religion - Whether it holds significant religious importance.
  - Hence, essential religious practices were born through this case.
- Bijoe Emmanuel Case (1986): The court ruled that the right to religion is greater than the obligation to sing the National Anthem. (Right to Religion > Singing National Anthem)
- Dargah Committee Case (1961): The court held that banning women's entry in religious places violates their fundamental rights. It declared that such discrimination is not an essential religious practice. women's entry by law
- Haneef Qureshi Case (1958): The court upheld the ban on cow slaughter, stating it is not an essential religious practice. It emphasized that Bakti-Id celebrations can occur without cow slaughter. (Cow slaughter ban)
- Ismail Farooqui Case (1996): The court held that Namaz in mosques is not an essential religious practice. offering Prayers in must but not restricted to mosque.

It ruled that offering prayers can be done anywhere and is not restricted to a mosque.

(Cow → Economic importance → milking animal (milk) + Good source of Protein, Sacred for hindus)

Talaq-e-Biddat → Unlawful Khilafat to suppress women.

↳ Penalised in India.



- **Anand Margi Case:** The court ruled that performing Shiv Tandav (a ritual dance) is not an essential religious practice of the Anand Margi sect. [Shiv Tandav → Not a essential Religious Practice]
- **Nikhil Sani Case:** The court declared that Santhara/Sallekheha (a ritual fasting to death) is an essential religious practice in Jainism. ↳ (Fast to death) [Passive Euthanasia]
- **Shayra Bano Case:** The court held that instant triple talaq (Talaq-e-Biddat) is unconstitutional. It declared that the practice is not an essential religious practice of Islam. ↳ No Recess Period.

Talaq-e-Biddat  
"Hasan  
Ehsan  
(Legal)

The ruling emphasized that the practice violated gender equality and fundamental rights (Article 14 and 21) under the Constitution. (Violates Gender Equality & Fundamental rights)

• **Sabariimala Case (2018):** The Supreme Court ruled that banning women of menstruating age from entering the Sabariimala Temple was unconstitutional. (banning women Entry in temple)

- It violated Article 14 (Right to Equality), Article 21 (Right to Life and Personal Liberty), and Article 25 (Freedom of Religion). Article 14, Art 21, Art 25 → Against.

• **Hijab Ban Case:** The Karnataka High Court ruled that wearing a hijab is not an essential religious practice of Islam. Karnataka High Court: Not essential (Against uniformity)

- The Supreme Court gave a split verdict on the matter, with one judge holding that hijab is essential and the other ruling that it is not essential. Supreme Court → split verdict (2 judge bench) (Allowed & Not Allowed)

### Constitutional Morality:

- (Morality depends on the Time & space)
- It refers to the core values and principles enshrined in the Constitution. It guides the functioning of [democratic institutions] and ensures rule of law, social justice, equality, and diversity in society. The concept was emphasized by Dr. B.R. Ambedkar to promote a democratic society.

Homosexuality under BNS now:

- **Navtej Johar Case (2018):** The Supreme Court ruled that criminalizing homosexuality under Section 377 of the IPC was unconstitutional. The judgment upheld constitutional morality over social morality, emphasizing individual rights and freedom of choice. (Decriminalizing Homosexuality)
- **Temple Entry Ban Case:** The Supreme Court ruled that in a conflict between social morality and constitutional morality, constitutional morality prevails. It emphasized that the principles of the Constitution act as a moral compass to ensure societal norms align with constitutional values like equality, justice, and freedom. Conflicted b/w social norms & constitutional morality. societal norms align with constitutional morality.

Demanding marriage under special marriage Act:

• **Same-Sex Marriage Verdict (2023):** The Supreme Court in 2023 declined to legalize same-sex marriage. It ruled that the right to marriage is not a fundamental right under the Constitution. The Court emphasized that marriage laws are under the jurisdiction of the legislature to amend or enact. (No Law on same-sex marriage) & Right to marriage is not a fundamental right (negate).

sex work is allowed but not sex work trade racket  
(comes under Constitutional morality)

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[11th June 2025]

Polity

## Chapter 03: Fundamental Rights

### Lecture 21: Anti Superstition, Anti Conversion Laws

(Religious to someone can be superstition to someone)

#### Anti Superstition Laws:

curbing incidents related to witch hunting.

- **Anti-Superstition Law** aims to curb the rising incidents of witch hunting and other harmful practices, as highlighted by NCRB data. (National Crime Record Bureau). ↳ exist a need for central law.
- Several High Courts have emphasized the need for a central law to address such issues effectively.
- Practices carried out in the name of religion often violate principles of public order, health, and morality.
- States like Maharashtra, Odisha, and Chhattisgarh have implemented specific laws to combat these practices.
- Maharashtra's Prevention of Human Sacrifice, Aghori, and Black Magic Act, 2013 aims to eliminate dangerous religious practices. Maharashtra's Prevention of Human Sacrifice, Aghori
- Similarly, Assam's Black Magic Act seeks to prevent witch hunting and protect vulnerable individuals from exploitation. ↳ Black magic UPSC Questions: view points on these topics, control measures. Act 2013.

#### Challenges faced by such laws:

- **Social Acceptance:** Widespread belief in superstitions makes it difficult to enforce laws effectively.
- **Lack of Scientific Temper:** Limited promotion of rational thinking and scientific awareness leads to continued reliance on harmful practices. (Important Reason: Limited promotion of rational thinking and scientific awareness leads to continued reliance on harmful practices.)
- **Religious Support:** Superstitions are often deeply rooted in religious beliefs, making it challenging to challenge or regulate them. (Deep rooted religious beliefs make it challenging.)
- **Lack of Awareness and Education:** Illiteracy and insufficient awareness campaigns hinder the understanding of the dangers associated with such practices. (Lack of awareness campaign)

#### Religious conversions: (Depends on the individual's conscience)

- **No National Law:** India currently lacks a nationwide law specifically addressing forced religious conversions. (Forced → Cash & kind involved in conversions)

No Nationwide or centralised law to regulate religious conversions.

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- **State-Level Laws** States like Uttar Pradesh have introduced laws to criminalize forced conversions, making them a **penal offense** (Uttar Pradesh Laws to criminalize forced conversions)
- **Article 25** While it provides the freedom to propagate one's religion, it prohibits forced conversions or those made through inducements like cash or kind.

Uttar Pradesh Anti Conversion Act, 2020: Prohibits promotion or profess religion

- **Uttar Pradesh Anti-Conversion Act, 2020** prohibits any forced conversion conducted through fraudulent means.
- States like Madhya Pradesh, Gujarat, Himachal Pradesh, and Uttarakhand have also enacted similar anti-conversion laws.

**Stanislaus case:** Right to religion is not equal to Right to conversion.

### Article 26:

- **Article 26** provides the freedom to manage religious affairs, allowing individuals to form and maintain religious trusts, regulate religious activities, and manage property as per the law.
- The **Waqf Act** governs the dedication of movable and immovable property for charitable purposes under Islamic law. Once dedicated, the property becomes inalienable and cannot be sold.
- Recently, Parliament introduced a new bill to address issues in the existing legislation, aiming to enhance transparency in the regulation of waqf properties.

**Extra Cases:** Church of God Case and Azan Case

- **Church of God Case and the Azan Case:**
  - In the Church of God Case and the Azan Case, the court ruled that using loudspeakers for prayers is not an essential religious practice.
  - The judgment emphasized that public peace and individual rights must be protected over religious practices that cause noise pollution.

### Article 27:

- **Article 27** guarantees freedom from paying taxes for the promotion of any particular religion.
- However, the government can levy fees or maintenance charges at religious sites to ensure their upkeep and management.

### Article 28:

provides freedom from attending religious institutions at educational

- **Article 28** provides freedom from attending religious instructions at educational institutions maintained by State funds.

- Institutions maintained by the State cannot provide religious instructions.
- Institutions recognized by the State or receiving funds from the State may offer religious instructions only with individual consent.
- Institutions formed under religious trusts but administered by the State are allowed to provide religious instructions.

- **DAV College Case:** The court held that the teachings of Guru Nanak and Kabir do not constitute the promotion of any specific religion and are therefore permissible under Article 28.

Dayanand Anglo-Vedic (Ayaz): It further ruled that colleges managed by religious trusts are allowed to provide religious instructions. Teachings of Guru Nanak & Kabir V, but it is not promotion of specific religion.

- **Aruna Roy Case:** The court clarified that teaching about religion is distinct from preaching a religion.
- It stated that providing education about religion for knowledge and understanding is not a violation of Article 28.
- Additionally, the court explained the meaning of "Dharma" as a concept representing a moral and ethical way of life, rather than the practice of a particular religion.

### Rights of Minorities:

#### Article 29:

- **Article 29** provides rights to minorities, protecting their interests in terms of culture, language, and heritage.
- It is considered a numerical aspect, meaning it applies to any community that constitutes a minority in a particular region or state, without a specific definition of minorities. (Numerical Aspect: <50%).
- **Article 29(2)** ensures that no citizen shall be denied admission into any educational institution maintained by the State or receiving State funds on the grounds of religion, race, caste, language, or any of them.
- It promotes equality in education and prevents discrimination in educational opportunities.
- The court has ruled that the minority status of a community should be determined on a state basis, not a national level. For example, Hindus are recognized as a minority in Punjab due to their numerical disadvantage in the state.

[Pg 3 after 2013] Handout Today:

## Polity

### Chapter 03: Fundamental Rights

#### Lecture 22: Article 30-35

- ↳ Composition b/w Art. 29 & Art. 30.  
↳ Art. 30  
↳ Art. 31  
↳ Art. 32

#### Difference Between Article 15 (1) and 29 (2):

- Article 15 (1) is applicable to all citizens, whereas Article 29 (2) is applicable to minorities only.
- Article 15 (1) prohibits discrimination on the basis of gender, whereas Article 29 (2) allows discrimination on the gender basis.   
Article 15(1) & Article 29(2)
- Article 29 (2) provides a reservation for minority communities. • All citizens      Only minorities

#### Case Laws: (Presidential Reference)

- Re Kerala Education Case:**
  - The Court held that any community whose numerical population is less than 50% will be termed as a minority. Kerala Legislature Passed the Education Bill, 1957. Governor → Reserved for Presidential Assent.
- T.M.A. Pai Case:** President referred questions to Supreme Court.
  - The court held that the minorities have the right to establish and administer institutions of their own choice, but discrimination is not allowed. Right to establish & administer is not allowed.
- Champakam Dorairajan Case:** (Educational Autonomy)
  - Reservation is discrimination under Article 29 (2), but the court held that Article 29 applies only to minorities. Reservation in discrimination under Art. 29(2) but 29 applies only to minorities.

#### Article 30:

- It provides for the right of minorities to establish educational institutions. These minorities can be either linguistic or religious. Right of minority to establish and administer educational institutions.
- This right is available to Indian citizens only. minorities can run educational institutions.
- The minorities, as per the right, can run educational institutions to promote or protect their culture.
- The State shall not discriminate on the grounds of religion while providing funding to them.
- Here, the word established includes managing the institution completely.

#### Case Laws:

↳ gives protection to minorities but not from state regulations.

- In DAV college Bhatinda 1971, court held that such colleges can choose the medium of language of as well. (Autonomy of institutions to choose the medium of language)
  - St. Stephen's Case, 1991:** Not binding to follow the university rule, can administer.
    - The Court held that minority colleges, which are established under Article 30 (1) of the Constitution cannot be forced to follow the University's rule, i.e. University rules are not binding on them. Also, the Court held the word 'administer' includes the selection of students as well. on their own
    - Minority colleges cannot have 100% reservation. ↳ includes selection of students as well.
    - 50% of seats have to be reserved for the minority in institutes established under Article 30 (1) and in the other 50% of seats there will not be any SC, ST, or OBC seats. Interviews are conducted to make sure 50% of the seat is filled by minorities only. ↳ 50% seats to minorities & / or open
    - But these minority institutions can have entrance tests according to their needs.
  - St. Xavier's Case:** → Minority institutions have the right to select the appointments of staff.
  - The court held that institutions under Article 30 have freedom in their appointments.
  - T.M.A. Pai Case:** → Reasonable restrictions like qualifications & service norms are allowed.
    - Article 30 applies to both aided and non aided institutions. Hence the state can not over regulate minority colleges. Aided institutions → reasonable restrictions. unaided. Complete Autonomy.
  - P.A. Inamdar Case:**
    - State reservation will not apply to minority colleges.
  - Pramati Case, 2014:**
    - Article 21 A does not apply to Article 30 institutions. Priority of 30(1) > Priority of 21A. RTE Applies to all institutions except religious & linguistic minority institutions, both aided & unaided.
- #### Aligarh Muslim University Case Issue:
- There has been a dispute with regard to the minority status of AMU University.
  - Azeez Basha Case, 1968:** [Azeez Basha case 1968]
    - Court held that AMU was established by act of Parliament, and not as a minority institution. Hence, it can be regulated by the state. AMU established by Act of Parliament.
    - In 2005 50 percent of seats were reserved in PG medical college. Hence, in Nareesh Agarwal case this reservation was challenged (2005). The High Court cancelled this policy.
    - In 2006, the Congress government challenged the High Court judgment.
    - In 2016, the BJP Government decided not to pursue the case, and withdrew the minority status of AMU. ↳ BJP government decided not to pursue the case and withdrew the minority status of AMU.

- New Test for minority institution:
1. Establishment: Purpose of Establishment.
  2. Implementation: who gave funds etc.
  3. Administration: who runs it.



**ONLYIAS**  
BY PHYSICS WALLAH

Parsi Accommodation in Gujarat → King?

[Not finally a minority institution]

[AMU cannot be a minority institution] (Re-evaluation through New Test)

In November 2024, the Supreme Court held that AMU can not be a minority institution because "Test" we need a new test for determining minority status. (New Test from slides)

**Article 30 (2):** [State shall not discriminate on granting aid to educational institutions]

- It gives direction to the state not to discriminate against any educational institution while granting funds.
- To safeguard the provisions for minority under Constitution laws. Inclusive development addressed grievances, policy maker advises.

**National Commission on Minorities Act of 1992:** [Statutory Commission]

- The National Commission on Minorities Act of 1992 notifies the minorities in India.
- Right now, we have Muslims, Christians, Sikhs, Buddhists, Jains, and Parsis as minorities.
- Jains got the status of a minority in 2014 (latest).

**Madarsa in India:** [Take up Islamic education] Muslims, Christians, Sikhs, Buddhists, Parsis (Zorasthians), Jains (last 2014)

- It is [Islamic educational institutions] focus on [teaching of religious text, but currently many Madrasas are offering modern education].
- It is protected under Article 30 (1), and also 28 (1).
- The RTE Act does not apply to them. (RTE doesn't apply to any school's minority institution)
- Currently, the government of UP regulates them through Madarsa Education Act 2024.
- This act was implemented to modernize Madarsa education. (Modern Education + Religious Regulations).
- Similarly, the Assam government converted all state-funded madarsa into state-run schools.

**Article 31:** [but] the Assam government converted all state-funded madarsa into state-run schools (not a good decision).

- It was deleted by the 44th Amendment Act. (Agreed step would be upgrading madarsa with modern education without stripping religious identity.)
- Article 300 A was inserted as a constitutional right.

**Article 31 A:**

- By 1st Amendment Act 1951 talks about the acquisition of property in the public interest.
- Here, land acquisition can be done even if it infringes Article 14 and 19. (This Article was added to ensure land reforms in the country.)

**Article 31 B:**

- Schedule IX was inserted to put a ban on judicial review.

**Article 31 C:**

- It was inserted by the 25th Amendment Act of 1971.
- This Article seeks to enforce DPSPs over Fundamental Rights (FRs), and contains the following two provisions:

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**ONLYIAS**  
BY PHYSICS WALLAH

- Article 39 (b): Equitable distribution of material resources.
- Article 39 (c): Non-concentration of wealth.

- Current situation DPSP 39 (b), and 39 (c) can override Fundamental Rights 14 and 19.

**What is a Material Resource?**

- In Ranganath Reddy Case, 1977, the court held that material resource means all national wealth (Public, or private), but it should serve common goods.
- In Property Owner Case, 2024: In the 2024 case, Property Owners Association & Ors. v. State of Maharashtra & Ors, The Supreme Court ruled that private property cannot always be classified as a "material resource of the community". This decision restricts the state's authority to acquire private property for redistribution. (E.g. Land, water bodies, Minerals & mines, Airwaves, etc.)
- DPSP 39(b) → The state shall in particular, direct its policy towards securing ownership and control of the material resources of the community are so distributed as best to subserve the common goods.

**Extra Notes:**  
1. Right to Property from Fundamental to Legal Right:

→ **Article 31 (1950)**

- Art 31(1): No person shall be deprived of property except by Law.
- Art 31(2): The state can acquire private property, but must pay compensation.
- Problems: Roadblock for Land Reform, zamindari system, social justice.

→ **Important Cases:**

- State of M.R. vs Bela Banerjee (1954): Compensation must be just & fair equivalent.
- Z.C. Gokhale vs State of Punjab: Parliament cannot amend F.R. including 7.
- Kesavananda Bharati case vs State of Kerala: Parliament can amend F.R. but not destroy basic structure doctrine (including Judicial Review & F.R.)

**To overcome these issues, 3 provisions were added:**

→ **Article 31A - Added by First Amendment 1951**

- To protect land reforms like land ceiling, agrarian reform being challenged under Art 14 and Art 19.

→ **Article 31B - Added by First Amendment 1951**

- To validate existing and future laws even if they violate F.R.
- Introduction of 9th Schedule → Any law included in this schedule cannot be challenged in court for violating F.R.
- Land Reforms of the UP, Bihar & Kerala first added in 9th schedule.

→ **Article 31C - Added by 25th Amendment, 1971**

- Over F.R. in 30(b) & 35(c). → written in notes.
- To prioritize DPSPs over F.R. in 30(b) & 35(c).

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→ **Removed Article 31 from FR + 44th Amendment 1978.**

→ **Article 300 A → Legal right now, and can approach High Court under Art 226.**

Amicus Curae

↳ Friend of the Court (during hearing), give suggestions to the court.  
Famous Name: Harish Salve.



Polity

## Chapter 03: Fundamental Rights

### Lecture 23: Article 32, and DPSPs

(Right without Remedies are just mere statement)

#### Article 32 - Right to Constitutional Remedies:

- This right gives power to a person to move to the Supreme Court if the fundamental right is breached.
- A mere declaration of Fundamental Rights (FR) in the Constitution is meaningless, useless, and worthless without providing effective machinery for their enforcement, if and when they are violated.
- Hence, Article 32 confers the right to remedies for the enforcement of the fundamental rights of an aggrieved citizen.
- The Supreme Court has ruled that Article 32 is a basic feature of the Constitution.
- That is why Dr. Ambedkar called Article 32 the most important Article of the Constitution: "An Article without which this Constitution would be a nullity." Ambedkar termed as 'Heart and Soul'.
- Ambedkar termed it as the heart and soul of the constitution.

#### How to Approach the Court?

- It can be done in the form of Writs.

- ✶ Habeas Corpus
- ✶ Mandamus
- ✶ Quo-Warranto
- ✶ Prohibition
- ✶ Certiorari

#### ① Habeas Corpus: (May we have the body) → when detention is illegal → in Public/Private detention.

- It is one of the important writs for personal liberty, which says "to have the body of".
- The Court asks for the release in case the detention is illegal in nature.
- The main purpose of this writ is to seek relief from the unlawful detention of an individual.
- This writ provides immediate relief in case of unlawful detention.
- This writ can be filed by the affected individual or someone else on his/her behalf.
- This writ can be issued against the public (Government) and private (Individuals).



#### • Exceptions:

- Not in case of legal detention, or arrest by Parliament, or arrest on court orders.

#### ② Quo Warranto: (By what means or authority).

(Faqey, Pooja Khedkar)

- The Writ of Quo Warranto translates into "By what means or authority".
- This writ is filed when a public servant is holding any office without any required qualification.
- This writ is invoked in cases of public offices and it is issued to restrain persons from acting in public office to which he is not entitled. [To restrain the persons acting in public office]
- Although the term 'office' here is different from 'seat' in the legislature, still a writ of Quo Warranto can be there with respect to the post of Chief Minister holding an office. [Office: Seatin Parliamantar Public Office Seat]
- This writ cannot be filed against any private office. (only Public office)
- Appointment to public office can be challenged by any person irrespective of the fact whether his fundamental or any legal right has been infringed or not.
- For Example: In the University of Mysore case, the court held that this writ can be issued only when a person has no legal authority to hold the office. [University of Mysore Case]
- Exceptions:
  - ↳ Appointment of Assistant professor with required qualification)
  - This can be issued only for public offices, and not private offices.
  - It can be filed by anyone (Concepted by anyone) but only in case of public offices)

#### ③ Mandamus:

- The Writ of Mandamus means "We Command". → Nonperformance of public duties.
- This writ is issued in case of non-performance of public duties. when non performance is against your fundamental right.
- This writ is issued for the correct performance of mandatory and purely ministerial duties.
- It can only be filed by an aggrieved person. (filed by the concerned person)
- Its main purpose is to ensure that the powers or duties are not misused by the administration or the executive, and they are fulfilled duly.
- It safeguards the public from the misuse of authority by administrative bodies.
- The person applying for mandamus must be sure that he has the legal right to force the opponent to do or refrain from doing something.
- Conditions for the issue of Mandamus:
  - It can only be issued for public offices and for public duty.
  - It cannot be used as an anticipatory measure (during the time of filing, actual duty must not have been committed). (Can be used as anticipatory measure) all for actual breach.

Faqey: Ration Card Pending

- There **must rest a legal right** of the applicant for the performance of the legal duty.
- The **nature of the duty must be public**.
- On the date of the petition, the right which is sought to be enforced must be subsisting **i.e. right has to be infringed already**.

- This writ **cannot be issued against the President and the Governor (S.P. Gupta Case)**.
- In the **Prago tools case**, the Court held that it can not be filed against private companies even if they perform public functions. **Discretionary duty** - requiring state officer or employee to exercise his/her policy judgment among social, economic or political factors.
- For **discretionary** ministerial duty, this writ can not be filed. **Ministerial duty** - requiring state officer or employee to exercise his/her policy judgment among social, economic or political factors.

#### Prohibition:

- This writ of prohibition is issued by a **higher court to a lower court**.
- This writ is issued on the principle of **prevention** (so that the lower courts could not pass any judgment beyond their capacity).
- It is a writ **directing a lower court to stop doing something which the law prohibits it from doing**.
- Its **main purpose** is to prevent an inferior court from exceeding its jurisdiction or from acting contrary to the rules of Natural Justice.
- It can also be issued if the court acts **outside its jurisdiction**.
- After the writ is issued, the lower court is **bound to stop its proceedings**, and should be issued before the lower court passes an order. Prohibition is a writ of a preventive nature.
- The principle of this is **"Prevention is better than cure."**

#### Certiorari (to quash):

- Writ of Certiorari means to be **certified**.
- It is used to **quash or cure the judgment** of a lower judicial body.
- It is issued when there is a **wrongful exercise of the jurisdiction**, and the decision of the case is based on it.
- The writ can be moved to higher courts like the High Court or the Supreme Court by the affected parties. It is a **judicial writ in nature**.
- There are several grounds for the issue of a writ of Certiorari.
- Certiorari is **not issued against purely administrative or ministerial order**, and it can only be issued against **judicial or quasi-judicial orders**.
- When is a writ of Certiorari is issued, it is issued to **quasi-judicial or subordinate courts** if they act in the following ways:

CPC: Civil Procedure Code  
CrPc: Criminal Procedure Code

- Either without any **jurisdiction** or in excess.
- In violation of the **principles of Natural Justice**.
- In **opposition** to the procedure established by law.
- If there is an **error in judgment**.

- The writ of certiorari is issued **after the passing of the order**.
- If there is any **violation of justice**, then the higher court can **quash the decision** of the lower court.

**Res Judicata**: → (To preserve the effect of the first judgment) [means → This already been judged.]

- It means the **matter has already been judged**.
- If the matter is finally decided by a **competent court**, it can not be litigated again.
- Whereas in the **Gulam Sarwar case**, the court held that **res judicata does not apply to the Habeas Corpus**.
- In **Sunil Batra case** the court held that **multiple Habeas Corpus can be filed, if fundamental right is infringed**. [Res Judicata: A matter already judged.]

#### Locus Standi:

- This concept gives a **legal capacity to a person to file a case in court if there is a sufficient connection between the matter and himself** (Only person with a legitimate interest can sue). [Right to stand] (For weaker sections) Bonded Labour, Environment, etc.
- Currently, **locus standi has been liberalized if the rights of the weaker section has been infringed**.

#### Suspension of Article 32 During Emergency:

- Article 32 **cannot be suspended at any time (except emergency)**. [Article 32 cannot be suspended except emergency.]
- The **Supreme Court**, in the **Anoop Goswami case, 2020**, has ruled that **Article 32 is itself a fundamental right**, hence no one can interfere in this right of citizens. (We have seen that in the **ADM Jabalpur case**, **Article 32 was suspended**).

#### High Court's Power in Writ Cases (Article 226):

- The High Courts also have the power to issue the following writs:
  - Habeas Corpus
  - Quo Warranto
  - Mandamus
  - Prohibition
  - Certiorari
- The High Court has **more power in issuing writs as compared to the Supreme Court**. [Writ jurisdiction of HC > SC] (?)

### Bandhua Mukti Morcha 1984:

- It was held that under Article 226, High Courts can issue writs for legal rights as well. Example: right to work

### Article 33:

- Parliament can decide/modify/restrict the fundamental rights for:
  - Armed forces members.
  - Person concerned with the maintenance of public order (police, DM, etc).
  - Intelligence/counterintelligence, etc.
  - Employed for telecommunication or under the above three cases.
- The objective of this provision is to ensure the proper discharge of their duties and the maintenance of discipline among them.

### Writ Jurisdiction b/w High Court and Supreme Court

- The writ jurisdiction of the high court under Article 226 is considered broader (dominant in scope) compared to the supreme court under Article 32.

|                         |                    |                                                                                                      |
|-------------------------|--------------------|------------------------------------------------------------------------------------------------------|
| 1. Scope of Enforcement | only F.R.          | F.R + Legal Rights.                                                                                  |
| 2. Nature               | only F.R.          | Discretionary Power                                                                                  |
| 3. Coverage             | All India          | Within respective state jurisdiction.                                                                |
| 4. Power to issue writs | Yes (5 writs)      | 5 writs + broader scope                                                                              |
| 5. Against whom         | Public Authorities | Public Authorities + Private Authorities<br>(performing Public Duties.<br>(Quasi-Governmental Roles) |

[But in terms of Superior in Authority, Supreme Court is high]

[16<sup>th</sup> June 2025]

## Polity

### Chapter 04 : DPSPs

#### Lecture 01: DPSP and UCC

validity of Actions Necessary (Justification)

#### Article 34:

(To promise to pay/protect somebody during damage/loss.)

- The parliament can indemnify any person employed in the service of the union or of a state for actions taken to maintain or restore order during martial law. For example - If martial law is in application and the military ceases any property or restricts your movement, then the parliament by law can protect the actions of the military. (Indemnification means protection). (Actions of military | Authority) if it ceases your property or restricts the movement indemnifies.)
- Here the military force is protected during such cases.
- This case has ensured that police can work properly to restore peace in the region.
- An act must be done to ensure peace in the region.
- Martial law is in force in that area.
- Indemnification means protection. Hence, [Indemnification cannot be challenged if it infringes fundamental rights.] (Protection of military from court if it challenged/infringes F.R. of the citizens)

#### What is Martial Law? ① (Clear difference b/w martial law & Emergency) ②

- Martial law refers to the suspension of ordinary laws and the implementation of military rule in areas experiencing rebellion, aggression, or severe disturbances.
- Suspension of government where martial law is placed.
- It can be applied to the whole country or any part of the country. It was used by the British crown to control riots, rebellion, aggression or invasion.
- It enforces the military justice system. (Military Justice System)
- In the ADM Jabalpur case the court held that martial law is different from presidential order of emergency because in martial law the military takes over the situation. But the court has power to issue habeas corpus or rights of the citizen during martial law. The court can also check its validity.
- As of now, martial law has never been declared in India.

(military / martial law is different from the Presidential ordered emergency)

#### Article 35: Power of Parliament to Make Laws on Fundamental Rights

↓  
In Manipur (Art 356  
Emergency)

## # Difference between Fundamental Rights and DPSPs.

| Aspect                | Fundamental Rights                                            | DPSPs.                                                          |
|-----------------------|---------------------------------------------------------------|-----------------------------------------------------------------|
| 1. Origin             | Inspired by Bill of rights (USA)                              | Inspired by Irish Constitution, (Ireland).                      |
| 2. Part of Const.     | Part III (Art. 12-35)                                         | Part IV (Art. 36-51).                                           |
| 3. Nature             | Justiciable (enforced)                                        | Non justiciable (Non-enforceable)                               |
| 4. Aim                | To protect individual liberty and Equality, (Socio-political) | To promote social and economic justice and establish welfare.   |
| 5. Enforcement        | Can approach Supreme Court (Art. 32) and High Courts (226)    | Cannot be enforced, only guiding principles to state            |
| 6. Examples           | Right to Equality, Right to life & liberty,                   | Equal pay for Equal work, uniform civil code,                   |
| 7. Role in Governance | Limits state's power to ensure individual rights.             | Provide positive obligations to state for public welfare.       |
| 8. Conflict           | Harmonize both.                                               | Cannot override F.Rs except by 31C.<br><br>MGNREGA midday meal. |

↳ (Harmonized implementation is necessary for the achieving the goals of Indian Constitution.)

## # Difference between martial Law and Emergency under Presidential order

| Aspect               | martial Law                                                                                                      | Emergency (under constitution)                                                           |
|----------------------|------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------|
| 1. Definition        | Rule imposed by the military authorities in a region during war, rebellion or severe breakdown of Law and order. | special constitutional provision allowing the centralized power during national threats. |
| 2. Source of Power   | Not mentioned in Constitution, Comes from customary & executive Authority.                                       | Mentioned in Article 352, 356 and 360.                                                   |
| 3. Nature            | Extra-Constitutional & temporary                                                                                 | legally valid.                                                                           |
| 4. Imposed by        | Military Authorities (with/without State Approval)                                                               | President of India on advice of Cabinet.                                                 |
| 5. Scope             | Applies to specific Area facing breakdown.                                                                       | Can apply to whole or part of the whole country.                                         |
| 6. Effect on F.R.    | Can result in suspension of civil liberties, trials by military courts.                                          | Certain FRs can be suspended under Art. 359 except Art 20 and Art 21.                    |
| 7. Courts Role       | can be suspended or replaced by military Tribunals.                                                              | Judiciary continues to function, (To issue Habeas Corpus).                               |
| 8. Examples in India | No imposed yet.                                                                                                  | 1962, 1971 and 1975.                                                                     |

## # Horizontal Applications of Rights:

Most of the Fundamental Rights in the Indian Constitution apply vertically → b/w individual & state.

Horizontal → (Private and Private Entity) → Protection from hate speech by another person.

Vertical → (Individual vs State) → Right to Equality.

Examples → Art. 15(2), Art. 17, Art. 23, Art. 21, Art. 19.

(media platforms)

Country Examples → Germany and South Africa: Explicitly provided.

- Only Parliament has the power to make laws regarding the fundamental rights guaranteed by the Constitution. (Parliament has power to make laws regarding the F.R. guaranteed by constitution)

### Horizontal Application of Rights

- They are available against both private and public individuals if any task is done in their personal capacity.
- In the *Koushal Kishore* case, the court held that fundamental rights can be enforced in case of private disputes especially under article 21. It is used to protect human dignity and speech.
- For instance, Article 21 against private employers if he doesn't ensure dignity at the workplace.

(Last Page NOTES) → *Kunal Kamra case* [Kunal Kamra vs Shiv Sena Party]

**Horizontal application:** It means that a private party should not infringe the right of another private party.

### Issues and Challenges with Fundamental Rights:

- Interpretational Issue:** Long tussle between government and judiciary to interpret fundamental rights.
- Non-Sacrosanct:** It can be changed/amended by the parliament. [Sanjay Gandhi: Two important points]
- Immunity to the President and Governors (Article 14):** The President of India and state Governors enjoy immunity from legal proceedings under certain circumstances, which limits the accountability of these offices in the context of fundamental rights.
- Privileges for MPs/MLAs:** Members of Parliament (MPs) and Members of Legislative Assemblies (MLAs) enjoy certain privileges that may exempt them from some aspects of fundamental rights, raising concerns about equality before the law. → If allowed, then this practice done by forced manner.

**Waiver of fundamental rights:** (Not Allowed even voluntarily) allowed in U.S.A.

- In India, individuals cannot voluntarily waive their fundamental rights. This is in contrast to the USA, where the waiver of certain rights is permissible. The case of *Bhosheshwar Nath v. Commissioner of Income Tax* established that in India, fundamental rights cannot be waived by individuals.

**Note:** Fundamental rights are inalienable in India.

### Directive Principle of State Policy (DPSP) (Article 36-51):

- Part IV of the Indian Constitution (Articles 36-51) contains the Directive Principles of State Policy (DPSP).
- The DPSPs outline the aims and objectives that the State should strive to achieve through its policymaking.
- They serve as guiding principles or ideals for the State in formulating public policies and government schemes.

### Article 36:

- It defines the term "State" in the same manner as it is defined under Article 12 of the Indian Constitution.

### Article 37:

DPSPs are [Non enforceable and Non justiciable.]

- The Directive Principles of State Policy (DPSPs) are non-enforceable and non-justiciable, meaning individuals cannot approach the courts for their enforcement. → [Individuals cannot approach the court for their enforcement and court cannot enforce by order]

### Sources of Directive Principle of State Policy (DPSP):

- The Directive Principles of State Policy (DPSPs) are borrowed from the Irish Constitution, which, in turn, adopted them from the Spanish Constitution. Borrow in Spain → Ireland → India (British rule)
- The concept of DPSPs was also included in the Government of India Act, 1935, with the aim of promoting a welfare state.
- Dr. B.R. Ambedkar referred to the DPSPs as "Instruments of Instructions" included in the Constitution to ensure the welfare of citizens.
- Granville Austin described the DPSPs as the "conscience of the Constitution" and one of its novel features.

(Wrong right of the Constitution)  
Fundamental rights: Socio-political rights  
DPSPs: Socio economic rights

### Features of DPSP:

- They aim to secure justice, liberty, and equality for all citizens, creating a foundation for a fair society.
- DPSPs promote social and economic democracy by emphasizing the need for equitable distribution of resources and opportunities.
- The approach of DPSPs is welfarist, focusing on improving the overall well-being and quality of life of the people.
- The Directive Principles of State Policy (DPSPs) ensure the formulation of sound public policies that align with the broader goals of governance.
- They are non-justiciable in nature, meaning they cannot be enforced by the courts but act as moral and political guidelines for the State.

Therefore, these principles serve as essential directions to the State for the betterment and upliftment of its citizens.

### Classification of DPSPs:

→ Liberal DPSPs  
→ Socialistic DPSPs  
→ Gandhian DPSPs

- The Directive Principles of State Policy (DPSPs) are inspired by various philosophical principles, including:
  - Liberal principles

Mnemonic for Revision →  
 Socialistic → Justice, welfare, workers, health → (J WWH)  
 Gandhian → Villages, co-operatives, SCST, prohibition, caste  
 Liberal → UCC, child, science, environment, heritage, judiciary, peace



- Socialist principles
- Gandhian principles
- DPSPs serve as basic guidelines for the State to ensure the welfare and well-being of its citizens.

### Socialist DPSPs:

The Socialist Directive Principles of State Policy (DPSPs) aim to enforce socialist ideals by promoting social and economic justice.

- **Article 38:**
  - This article directs the State to promote the welfare of the people through social, economic, and political means.
  - It emphasizes minimizing inequalities in income, status, and opportunities within society.
- **Article 39:**
  - This article outlines the State's responsibility to:
    - Ensure adequate means of livelihood for all citizens.
    - Promote equal distribution of wealth and prevent the concentration of resources in a few hands.
    - Safeguard the health of workers and ensure equal pay for equal work.
    - Secure the welfare of women and children.
  - It ensures that the State takes care of all citizens and works to minimize societal inequalities.
- **Article 39A:** 1981 → (Secure opportunities for healthy development of children)
  - Added by the 42nd Amendment Act of 1976, this article ensures equal access to justice, especially for poor citizens.
  - The Supreme Court, in the National Legal Services Authority (NALSA) case, emphasized the right of the poor to access justice.
  - NALSA, a statutory body established by an Act of Parliament in 1987, was created to fulfill this objective.
- **Article 41:**
  - This article highlights the State's duty to secure the right to work, education, and public assistance in cases of unemployment, sickness, disability, or old age.
- **Article 42:**
  - It mandates the provision of better working conditions and maternity relief benefits for workers.
- **Article 43:**



- This article directs the State to ensure fair wages and provide opportunities for secure and dignified work.
- **Article 43A:**
  - This article encourages the participation of workers in the management of industries and factories, fostering a sense of ownership and cooperation.
- **Article 47:**
  - It obligates the State to raise the level of nutrition and public health by providing nutritious food and ensuring the overall well-being of citizens.

### Gandhian Principles:

The Gandhian principles in the Directive Principles of State Policy (DPSPs) are inspired by Mahatma Gandhi's ideals of self-reliance, rural development, and social justice.

- **Article 40:**
  - This article calls for the organization of village panchayats, aiming to promote self-governance and decentralization.
- **Article 43:**
  - This article advocates for the promotion of cottage industries, focusing on rural development and self-sufficiency.
- **Article 43B:** (Co-operatives society)
  - Added by the 97th Amendment Act of 2011, this article encourages the organization of cooperatives to promote collective economic activities.
- **Article 46:**
  - This article emphasizes the upliftment of backward classes, including Scheduled Castes, Scheduled Tribes, and other marginalized communities, by promoting their education and welfare.
- **Article 47:**
  - This article seeks to prohibit the consumption of intoxicating substances, aiming to improve public health and well-being.
- **Article 48:**
  - It focuses on organizing agriculture and animal husbandry, as well as prohibiting the slaughter of cows and other milch animals to protect rural livelihoods and promote ethical practices.

### Liberal Intellectual Principles:

The Liberal-Intellectual principles in the Directive Principles of State Policy (DPSPs) reflect progressive ideals aimed at ensuring justice, equality, and the preservation of heritage and environment.

- **Article 44:**
  - This article advocates for the implementation of a Uniform Civil Code (UCC) to ensure equality and uniformity in personal laws across all communities.
- **Article 45:** → 86th Constitutional Amendment 2002 Linked with RTE 21A
  - It emphasizes raising the standard of living for children by providing early childhood care and education.
- **Article 48A:**
  - This article focuses on the protection and improvement of the environment and forests, ensuring sustainable development.
- **Article 49:**
  - It mandates the protection and preservation of monuments, places, and objects of national importance, reflecting India's rich cultural heritage.
- **Article 50:**
  - This article calls for the separation of the judiciary from the executive in the public services, upholding the principle of separation of powers for a fair and impartial administration.
- **Article 51:**
  - It directs the State to promote international peace and security, maintain harmonious relations with other nations, and honor international treaty obligations.

under Article 44.

**Uniform Civil Code (UCC):** [Proposal to maintain uniformity in laws for marriage,

- The state shall endeavour to secure for the citizens a uniform civil code throughout the territory of India.
- Section 5 of concurrent list gives power to both centre and state to make laws on marriage and divorce, adoption, succession, will etc. (Divorce, adoption, succession & inheritance etc.)

**Why Codification of UCC is Required:**

- To ensure uniform practices across religions.
- Add modern requirements in law.
- It eliminates the challenges of personal law.

**Debates in the Constituent Assembly:**

[3] Question Asked Regarding How UCC came into Demand: Case Laws

- A few individuals debated in favour of UCC while a few were against it. Hence, Article 44 was implemented in the constitution. [Finally implemented in the constitution]

**Arguments in Favor of UCC in India:**

1. Promotes True Secularism: By treating all citizens equally, regardless of religion, the UCC would uphold the secular nature of the state and ensure equality under the law. (Secularism Promote)
2. It removes loopholes of the personal laws. (Loopholes)
3. Every modern nation has it. (Modern Nation)
4. It reduces the votebank politics. (Votebank Politics)

**Arguments Against UCC in India:**

1. Difficult to Implement in a Diverse Society: India's vast cultural, religious, and social diversity makes the implementation of a single legal framework challenging, as it may not be easily accepted by all communities.
2. It will create trust issues among minorities like tribals and muslims.
3. Lack of Clarity in UCC's Text: The UCC's proposed provisions are often unclear, leading to confusion regarding its applicability and potential unintended consequences.
4. Misinformation About UCC: Misinformation and misconceptions about the UCC, particularly regarding its impact on religious freedoms, may hinder its acceptance and implementation.

**Way Forward:** [How to Promote Presence of UCC]

- It can be implemented state-wise. Eg. (Uttarakhand civil Code) [State-wise Implementation]
- Personal laws can be reformed. For example, abolishing Talaq-e-Bidat (instant triple talaq) in Muslim communities and granting property rights to women across all religions would promote gender equality and social justice.

As like Goa civil code, it can be implemented across the country. By Transforming Personal Laws, Property Rights for women & Raising Triple Talaq.

Goa civil code:

- It is also called as Portuguese civil code provides uniformity in marriage, divorce and inheritance.
- It works upon the "principle of communion of assets" and "concept of consent during divorce."

Case laws: [How demand for UCC]

- **Shah Bano Case, 1986:** The court held that the UCC has remained a mere dead letter in constitution. Hence it should be implemented as soon as possible. [Shah Bano Case]
- **Daniel Latifi case, 2001:** The court upheld the Shah Bano case. (Daniel Latifi is lawyer of the Shah Bano)
- **Jose Paulo Case:** The court traced Goa's UCC.

On Shah Bano Case →

Husband is a husband till marriage, but wife is for whole life. (Section 125, CrPc: maintenance for wife).  
↳ either one time alimony or lifetime maintenance.

(Article 50.)

- Separation of executive from judiciary to ensure independence in the system.
- In the *Cheekas* case, 1998 the court held that the judge is not a government official.

(Article 51.)

- It directs the State to promote international peace and security, maintain harmonious relations with other nations, and honor international treaty obligations.

(Promotion of international peace & security by having friendly relations with each other nations, & treaty obligations)

1. Difference b/w martial law and Emergency under Presidential Order? ✓
2. Horizontal applications of rights? ✓
3. Difference b/w Fundamental rights & DPSPs. (Art 30-51) ✓  
(Art 12-35)

Polity

↳ Fundamental Right vs DPSPs  
↳ Fundamental Duties.

[19th June 2025] Chapter 05: Union Executive

## Lecture 01: Fundamental Duties and Union Executive

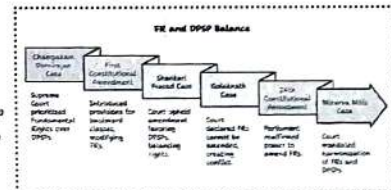
### Comparison Between Fundamental Rights (FR) and Directive Principles of State Policy (DPSP):

#### State Policy (DPSP):

- The relationship between Fundamental Rights (FR) and Directive Principles of State Policy (DPSP) has evolved through various Supreme Court judgments.
- Initially, Fundamental Rights were given supremacy, but later, the judiciary established a harmonious balance between them.

#### Champakam Dorairajan Case (1951) – Fundamental Rights Supreme:

- In *State of Madras v. Champakam Dorairajan* (1951), the Supreme Court ruled that in case of a conflict between Fundamental Rights and DPSPs, Fundamental Rights would prevail.
- It struck down caste-based reservations in education, citing a violation of Article 15(1) (Right to Equality).
- This judgment led to the First Constitutional Amendment (1951), which introduced Article 15(4), allowing special provisions for socially and educationally backward classes.



#### Shankari Prasad Case (1951) – Balance Between FR and DPSP:

- The Supreme Court upheld the First Amendment Act (1951), which curtailed property rights under Article 31 in favor of DPSPs related to land reforms.
- The Court ruled that Parliament has the power to amend Fundamental Rights under Article 368.
- This judgment established an initial balance between FR and DPSPs.

#### Golaknath Case (1967):

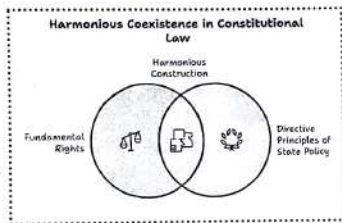
- In *I.C. Golaknath v. State of Punjab* (1967), the Supreme Court reversed its earlier stance and held that Parliament cannot amend Fundamental Rights.
- It ruled that FRs are sacrosanct and cannot be diluted to implement DPSPs.
- This created a conflict between individual rights (FRs) and socio-economic justice (DPSPs).
- To overcome this judgment, Parliament passed the 24th Constitutional Amendment (1971), reaffirming its power to amend Fundamental Rights.

### Minerva Mills Case (1980):

- In *Minerva Mills v. Union of India* (1980), the Supreme Court struck down Clauses (4) & (5) of Article 368, which gave Parliament unrestricted power to amend the Constitution.
- It ruled that Fundamental Rights and DPSPs must be harmonized and that the Basic Structure of the Constitution cannot be violated.
- The court established that:
  - Neither FR nor DPSPs are absolute.
  - Parliament cannot destroy or emasculate Fundamental Rights while implementing DPSPs.
  - The balance between individual rights and socio-economic justice is essential.

### Doctrine of Harmonious Construction:

- This is a principle of constitutional interpretation used by courts to resolve conflicts between different provisions of the Constitution or laws.
- Instead of invalidating one provision in favor of another, courts try to interpret them in a manner that ensures coexistence.
- Application in FR vs. DPSP Conflicts:
  - The Supreme Court used this doctrine in *Minerva Mills* to ensure that neither Fundamental Rights nor DPSPs are given absolute primacy.
  - It ensures that the Constitution is read as an organic whole, avoiding contradictions between its provisions.



### Fundamental Duties in the Indian Constitution: → (Moral & civic responsibilities)

- The Fundamental Duties outline the moral and civic responsibilities of Indian citizens.

Harmonious: Liberalistic Capitalistic Constitutional Society → Rights [U.P.A. Constitution]  
State oriented: Socialistic Constitution → Duties [Came from Constitution of Soviet]

4 Under SIA Article

↳ Fundamental Duties are non-enforceable till now.

↳ by 42nd Amendment, 1976

↳ Recommendation of Sardar Swaran Singh

- They serve as a reminder that rights and duties are correlative, meaning that the enjoyment of Fundamental Rights comes with certain obligations towards the nation. (Rights Comes with certain duties)

### Constitutional Provisions for Fundamental Duties:

- Article SIA of the Constitution specifies Fundamental Duties.
- These duties apply only to citizens, not to foreigners.
- They were inserted by the 42nd Constitutional Amendment Act (CAA), 1976, during the Emergency period.
- Placed under Part IV(A) of the Constitution. (MCAA 2002 → changed FR DPSP FD)

### List of Fundamental Duties (Article SIA): [13 duties]

Every citizen of India shall:

- Abide by the Constitution and respect its ideals, institutions, the National Flag, and the National Anthem.
- Cherish and follow the noble ideals of the freedom struggle.
- Uphold and protect the sovereignty, unity, and integrity of India.
- Defend the country and render national service when called upon to do so.
- Promote harmony and the spirit of common brotherhood among all people of India, transcending religious, linguistic, and regional diversities; and renounce practices derogatory to the dignity of women.
- Value and preserve the rich heritage of India's composite culture.
- Protect and improve the natural environment including forests, lakes, rivers, and wildlife, and have compassion for living creatures.
- Develop a scientific temper, humanism, and the spirit of inquiry and reform.
- Safeguard public property and abjure violence.
- Strive towards excellence in all spheres of individual and collective activity, so that the nation constantly rises to higher levels of endeavor and achievement.
- (Added by the 86th CAA, 2002) Provide opportunities for education to children between the ages of 6 and 14 years (in line with Article 21A).

### Concept of Duties: (Source of Duties)

The idea of Fundamental Duties has been shaped by various constitutional frameworks across the world:

| Country                                      | Nature of Duties                                                                    |
|----------------------------------------------|-------------------------------------------------------------------------------------|
| Japanese Constitution                        | Mentions duties but does not enforce them.                                          |
| Soviet Constitution (USSR)                   | Enforced duties on citizens. <i>→ India inspired from here but not enforceable.</i> |
| American Constitution                        | Does not mention Fundamental Duties.                                                |
| French Constitution                          | Provides a passive reference to duties.                                             |
| Universal Declaration of Human Rights (UDHR) | Includes the concept of duties along with rights.                                   |

Thus, India's Fundamental Duties are inspired by the Soviet model, which emphasized citizens' obligations towards the state.

**Relationship Between Rights and Duties:** [F.R. must be balanced with the performance of F.D.]

- The enjoyment of Fundamental Rights must be balanced with the performance of Fundamental Duties.
- The Supreme Court has often stated that "there can be no rights without duties."
- Duties ensure social harmony, national integrity, and responsible citizenship. *→ Social Harmony  
→ National Integrity  
→ Responsible Citizen.*

**Enforceability of Fundamental Duties:**

- In *AIIMS Students' Union v. AIIMS (2002)*, the Supreme Court ruled that Fundamental Duties are non-enforceable, meaning courts cannot compel individuals to perform them.
- However, they provide moral and ethical guidance to citizens and serve as the moral compass of society. *(Court cannot compel individuals) (Provide moral ethical direction)*
- Although they are not directly enforceable, the state can make laws to implement them, as seen in:
  - Prevention of Insults to National Honour Act, 1971 (prohibits disrespect to the national flag and anthem).
  - Environment Protection Act, 1986 (linked to the duty of protecting the environment).

**Key Points from Article 335:**

- SC/ST Claims in Public Services:**
  - The claims of SCs and STs must be taken into account when making appointments to services and posts.
  - However, this must be done consistently with the maintenance of efficiency of administration.

• **Proviso (Amendment) in Article 335:**

- A proviso was inserted stating that relaxation in qualifying marks and lowering of evaluation standards can be allowed for SC/ST candidates.
- This relaxation applies to reservations in promotions and other service-related matters.

**Related Constitutional Provision:**

- Article 16(4) and 16(4A), which allow reservations for socially and educationally backward classes, including SCs and STs, in public employment.

**Special Constitutional Provisions for SCs, STs, and OBCs:**

**Political Reservations for SCs and STs:**

(A) **Reservation in the Lok Sabha (House of the People) – Article 330:**

- Seats shall be reserved in the Lok Sabha for:
  - Scheduled Castes (SCs)
  - Scheduled Tribes (STs) (except those in the autonomous districts of Assam)
  - Scheduled Tribes in the autonomous districts of Assam

(B) **Reservation in State Legislative Assemblies – Article 332:**

- Seats shall be reserved in every state's Legislative Assembly for:
  - Scheduled Castes (SCs)
  - Scheduled Tribes (STs) (except those in Assam's autonomous districts)
  - Autonomous districts in Assam shall have separate reserved seats in the state legislature.

**Women's Reservation in Legislatures:**

(A) **New Article 330A – Reservation for Women in Lok Sabha:**

- 1/3rd of the seats reserved for SCs and STs shall be reserved for women.
- 1/3rd of the total seats to be filled by direct elections to the Lok Sabha shall be reserved for women.

(B) **New Article 332A – Reservation for Women in State Legislative Assemblies:**

- 1/3rd of seats reserved for SCs and STs shall be reserved for women.
- 1/3rd of the total seats to be filled by direct elections to the State Legislative Assemblies shall be reserved for women.

(C) **New Clause in Article 239AA – Women's Reservation in Delhi Legislative Assembly:**

- 1/3rd of the seats reserved for SCs shall be reserved for women.
- 1/3rd of the total seats to be filled by direct elections to the Delhi Legislative Assembly shall be reserved for women through a law determined by Parliament.

**Implementation and Rotation of Reserved Seats:**

(A) **New Article 334A – Implementation After Delimitation:**

- Reservations shall come into effect after delimitation is conducted based on the first census after the bill is enacted.
- Rotation of reserved seats for women shall happen after each delimitation exercise to ensure fair distribution across different constituencies.

#### (B) Quota Introduction - 33% Women's Reservation:

- The bill proposes 33% reservation for women in:
  - Lok Sabha (Lower House of Parliament)
  - All State Legislative Assemblies
- Objective: To enhance women's political participation and ensure diverse representation in policymaking.

#### (C) Reserved Seats Adjustment (Rotation Policy):

- Reserved seats for women will rotate among different constituencies in each general election.
- Ensures equal opportunities for women across different regions over time.

#### (D) Duration of Reservation:

- Reservation will last for 15 years from the commencement of the Act.
- Objective: To provide a transition period for women to establish themselves in politics.
- The continuation of reservations beyond 15 years will be subject to review by Parliament.

#### Sunset Law:

(Legal Provision (Law with fixed termination date))

- A Sunset Law (or Sunset Clause) is a legal provision that automatically expires after a fixed period unless renewed by legislation. Such laws are enacted with a pre-determined termination date, ensuring that they are periodically reviewed and assessed for their relevance and effectiveness.

#### The President of India:

Termination date expiration → review of relevance & effectiveness.  
(Article 52)

- The President of India is the head of state, first citizen, and the constitutional head of the Union Executive. The office is designed to ensure national unity, integrity, and solidarity while functioning within the framework of a parliamentary democracy.

#### Powers of the President:

- Article 53: Executive power of the Union is vested in the President, who exercises it directly or through officers subordinate to him.
- Article 74: The Council of Ministers, headed by the Prime Minister, aids and advises the President in performing his functions.

#### Election of the President:

##### (A) Constitutional Provision - Article 54:

(Article 54)

- The President is indirectly elected by an Electoral College consisting of: (8mp)
    - Elected Members of Lok Sabha and Rajya Sabha
    - Elected Members of Legislative Assemblies of States
    - Elected Members of Legislative Assemblies of Union Territories (Delhi and Puducherry)
- Member State Legislative Council (Not Part) NO Nominated member

#### (B) Members Who Do Not Vote:

- Nominated Members of Parliament (MPs) and State Legislatures do not participate in the election.
- Members of Legislative Councils in bicameral states do not vote.

#### (C) Special Note on Jammu & Kashmir:

- Currently, elected members of J&K's legislature do not participate as the state assembly is dissolved. (can't be challenged for any hung assembly)
- An amendment to Article 54 will be required once J&K's assembly is reconstituted.

Method of Election: (Article 55) → Conducted by EC (under Art 324)

#### The President is elected through a proportional representation system:

- Proportional Representation by Single Transferable Vote (STV)
- Secret Ballot Voting
- Winning Criteria - Absolute Majority (more than 50% + 1 vote)

#### Formula for Votes in Presidential Elections:

- Value of vote of an MLA:
  - $\frac{\text{Total population of state/Total number of elected members in the state legislative assembly} \times (1/1000)}$
- Value of vote of an MP:
  - $\frac{\text{Total value of votes of all MLAs of all states/Total number of elected members of Parliament}}$
- MPs and MLAs have weighted votes, ensuring balanced representation of states and Union government.

#### Office of the President:

- Article 56: The President's term is 5 years, but he continues until his successor takes charge.
- Article 57: A President can be re-elected any number of times, as there is no term limit.
- Resignation: The President can resign by submitting a letter to the Vice President.

#### Qualifications for the President - Article 58:

- A person must:

- Be a citizen of India.
- Be at least 35 years old.
- Be qualified to be a member of the Lok Sabha.
- Not hold any office of profit under the Government of India, any state, or local authority.

Extra:-

1. President (Article wise) ✓
2. Handout Printout. ✓
3. Relationship story b/w DPSPs and F.R.
4. Article 335 ---
5. Delimitation story.
6. Only President won election by Second Preference Majority. ✓

## Polity

### Chapter 05: Union Executive

#### Lecture 02: President

##### Election of the President - contd

##### Doubts and Disputes:

- Can challenge the Presidential election in Supreme Court.
- In case of any dispute, the Supreme Court will decide the matter related to elections to the President.
- Elections will be conducted even if the electoral college is not complete, for example, President Rule in any State will not have any effect on the elections. (For e.g. Not having manipur State Assembly)
- In case the President's election is declared void by the court, the work done by the President till date shall not be made invalid. (work done by President shall not be made invalid).

##### Article 56 (Office of President):

- Term of the office of the President is 5 years. → Resign before expiry of term by writing to V.P.
- The President can resign before the expiry of the term by writing it to the Vice President. (om bria)
- His resignation should be communicated to the Speaker of the House of People. Communicated to speaker by L.S.
- The President is removed from his office for violation of the Constitution, by the process of impeachment provided under Article 61. Impeachment only for violation of Constitution Law. under Art. 61.
- Until a new President enters the office, the incumbent President shall hold the office. This has been done to maintain continuity in the office. [The position of President-office can't be empty, maintain continuity]
- In case of the President's absence, the Vice President will hold the post of President. In case the Vice President post too is vacant, then the Chief Justice of India will be acting as the President (this provision is not mentioned in the constitution). [Legal Provision] (President Discharge by L.S. 1969)
- In case the post of President becomes vacant earlier than the completion of a 5 year term, the new President will be elected for a fresh 5 year term, whereas, in the USA, the Vice President becomes the President for the remaining term.

In India: After Resign, impeachment → New elections till then V.P or C.J hold the position.

##### Article 57:

- In USA: " → V hold for remaining term.
- In India, the President can be re-elected for any number of terms.

In India: Any number of terms, can be re-elected (consecutive or non-consecutive)

In USA: only 2 terms, consecutive or non-consecutive, and maximum bar/cap of 10 years.



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In Russia: only 2 consecutive terms, but re-elected any no. of terms.

- In the USA, only 2 terms are allowed. It can be consecutive or non-consecutive.
- In Russia, The President of Russia can serve only two consecutive terms. There is a restriction on continuous tenure, not on the total number of terms.

#### # Article 58: Qualifications to Become President of India

- The candidate must be at least 35 years old. (At least 35 yrs, Citizen of India, not hold office of profit under GOI)
- The candidate must be a citizen of India.
- The candidate must not hold any office of profit under the government.
- As per Article 59, the candidate shall not be a member of either House of Parliament or any State Legislature.

↳ (Article 59)  
oath done in the presence of the CJI (or senior most judge of the Supreme Court)

#### # Article 60 (Oath and affirmation of the President of India):

- The oath of the President is done in presence of the Chief Justice of India (or senior most judge in his absence).
- He affirms that he/she:
  - will faithfully execute the office of President (or discharge the functions of the President) of India and
  - will do the best of his ability to preserve, protect and defend the Constitution and the law and
  - will devote himself to the service and well-being of the people of India.

↳ Faithfully execute the office of President.  
↳ will do preserve, protect or defend the Constitution and law.  
↳ devote himself to service and well-being.

#### # Why Indirect Elections for the President?

Political rivalry b/w two positions.

- Avoiding Political Competition:** Since India follows a Parliamentary system, the Prime Minister is directly elected, while the President is indirectly elected to prevent political rivalry between the two positions.
- Reducing Election Expenses:** Indirect elections help in minimizing the cost of conducting nationwide presidential elections. (minimize cost through indirect election).
- No Political Party Influence:** Indirect elections ensure that the process remains free from direct political party intervention. (Free from political influence)

President is nominal Executive of country (No political influence)

Why are Legislative Councils Excluded from Participating in the Elections of President?

↳ undue advantage of the states having LC in indirect election.



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- The Legislative Council (LC) does not exist in every State. Only 6 states have Legislative Council.
- Further, they can be created or abolished easily. Thus, including them in Presidential elections would provide undue advantage to states that have LCs.

#### President (Discharge of Functions) Act 1969: (President Act 1969)

- It says that in case of absence of the President and Vice President, the Chief Justice of India or any senior-most judge of the Supreme Court shall be the acting President.

#### Presidential Election Case, 1974

- In 1974, the Supreme Court ruled that the election for the office of the President must be conducted before the expiry of the incumbent's tenure. (Election must initiate atleast before 3 months of the expiry of the Tenure).

#### Article 61 - Impeachment of the President: (Imp)

- The President can be impeached on the grounds of violation of the Constitution. (Parliament: Quasi Judicial Body.)
  - The term "violation of the constitution" is not defined in the Constitution.
- It is a quasi-judicial process in which the Parliament has an investigative role too.

#### Process of Impeachment of the President: (Important)

- ↳ It can be initiated in any house of the Parliament.
- ↳ For the process of impeachment, 14 days notice is to be given in writing.
- ↳ The Notice has to be signed by at least one-fourth members of the house.
- ↳ The house should vote by a majority of 2/3rd of the total membership (both elected and nominated MPs participate). This is the highest majority required in the Constitution. (Special majority).
- ↳ Once the resolution is passed in one house, it is forwarded to the other house. Post this, the charges will be investigated by the second house.
- ↳ It is important to note that the President will be given a chance to represent him/herself in case the impeachment resolution is under process (works upon the principle of natural justice).
- ↳ After this investigation/representation, voting in the second house takes place.
- ↳ If the 2/3rd majority votes in favour of impeachment in the second house too, the President is impeached, otherwise he is saved.
- ↳ Note:

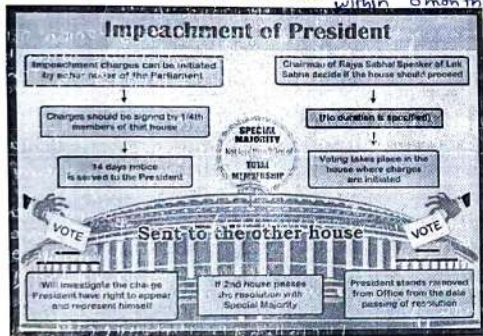
↳ Impeachment of President  
↳ Impeachment of CJI  
↳ Privileges of members



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→ Participate in the election process, not in the impeachment process.

- Members of the State Legislative Assembly do not participate in impeachment proceedings, though they participate in the election process.
- The Impeachment process can be initiated in both the Lok Sabha and the Rajya Sabha.
- Till date, no President has been impeached. (Till date no President has been impeached).
- Separate majority is required from both houses (i.e. no joint sitting can be called for the impeachment of the President). (Required special majority separately).
- Impeachment is done by the Parliament to ensure the Doctrine of Checks and Balance.
- Upon the vacancy of the President's post, elections should be conducted within 6 months. The new President gets elected for a fresh term of 5 years. → election should be conducted within 6 months.



### US President Impeachment Process

- Grounds for Impeachment:** Article 2, Section 4 of the U.S. Constitution states that the President can be impeached for "treason, bribery, or other high crimes and misdemeanors."  
↳ (वैशाद्वेह)
- House of Representatives' Role:** The impeachment process begins in the House of Representatives. After conducting an inquiry, the House votes on articles of impeachment. A simple majority (more than 50%) is required to impeach the President. Begin with House of Representatives.  
↳ (Initiation of Impeachment).



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- Senate's Role:** Once the President is impeached, the process moves to the Senate, which holds a trial. To convict and remove the President from office, a two-thirds majority (67 out of 100 senators) is necessary. (After Impeachment conviction and Trial) (2/3rd majority of Senate).
- Clarification on Terminology:** It's important to note that the term "impeachment" refers to the House's action of bringing charges against the President. The Senate's role is to conduct a trial based on these charges. Therefore, the Senate does not "approve the impeachment" but rather decides whether to convict and thereby remove the President from office.
- Historical Examples:** To date, three U.S. Presidents have been impeached by the House: Andrew Johnson (1868), Bill Clinton (1998), and Donald Trump (2019 and 2021). In all instances, the Senate did not reach the two-thirds majority required for conviction, so none were removed from office.

Article 62: 6 months period max. (to conduct election for President).



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BY PHYSICS WALLAH

(20th June, 2025)

Polity

## Chapter 05: Union Executive

### Lecture 03: Vice President

(President & Vice President are not Co-Terminus) → Parallel Tenure.

Article 63 (Vice President): (in USA → Co-Terminus)  
(ex-officio chairman of Rajya Sabha)

- The Vice President serves as the ex-officio Chairman of the Rajya Sabha.
- When discharging presidential functions, the Vice President temporarily ceases to be the Chairman of the Rajya Sabha.

While discharging the presidential functions, it temporarily ceases the chairman of Rajya Sabha, in place of him Deputy Chairman of R.S. led the R.S.

Article 66 (Election):

- The electoral college for the election consists of both elected and nominated members of Parliament.
- Elected and nominated members of the State Assemblies do not participate in the Presidential election.
- The manner of elections is the same as the President.

For vice President → All M.P.s of Parliament.

543 (L.S.) + 245 (R.S.) including 12 nominated.

Article 66(3) (Eligibility):

- The candidate must be a citizen of India (either by birth or by blood. In the USA only citizens by birth can be President). → (Important difference) Example: Manmohan Singh from Gurgaon (Raj.) while E.M. must not be eligible because he born in South Africa.
- The candidate must be at least 35 years old.
- The candidate must not hold any office of profit.
- The candidate must be qualified to be a member of the Rajya Sabha.

Term: (Art 67)

- The Vice President's term of office is five years, but they continue in office until the next Vice President is elected. ~ Similar to President. (Art 68 within 6 months election)
- In case of a midterm election, the newly elected Vice President will serve a full five-year term.

Resignation:

→ Submit their resignation to President.

- The Vice President submits their resignation to the President of India.

Removal: (Art 68)



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- Rajya Sabha will remove the Vice President (Chairman) through the majority of all then members i.e. total membership - vacancies. Followed by the resolution of house of people passed through simple majority. Rajya Sabha can impeach Vice President by Effective majority of the All members of Rajya Sabha.
- To remove the vice president the resolution will be first initiated in Rajya Sabha.
- The Vice President must be given 14 days' notice before the resolution is moved.
- While the resolution of removal of the vice president is considered the vice president will not chair the house. [Resolution of removal of the VP initiated in Rajya Sabha].

Oath of Office: (Art 69)

- The Vice President takes an oath administered by the President, pledging true faith and allegiance to the Constitution of India.

Additional Facts: → doesn't specify any particular grounds.

- The Constitution does not specify any particular grounds for the removal of the Vice President.
- The Vice President's salary is drawn from the salary of officers of Parliament, and they also receive a salary for serving as the Chairman of the Rajya Sabha. → VP's salary as the Chairman of Rajya Sabha (as a officer of Parliament).

Types of Majority: → more than 50% of (Present and voting)

- Simple Majority: A majority of more than 50% of the members of the house present and voting. It is also called functional majority. The bills and motions in Parliament are passed by simple majority. (Able to identify if come in exam)
- Non-confidence motion
- Vote of thanks to the President & Governors.
- Adjournment motions.
- Passage of ordinary, financial and money bills
- Election of Speaker and Deputy Speaker of Lok Sabha and Legislative Assemblies.
- Election of Deputy Chairman of Rajya Sabha and Chairman of Legislative Councils.
- Resolution seeking approval of Parliament for proclamation of Presidential Rule and Financial Emergency.
- Notification of Amendment bill by State Legislature.
- Resolution passed by Lok Sabha disapproving National Emergency. → >50% of the (strongly) votes.

- Absolute Majority: A majority that is more than 50% of the total strength of the house. It is needed in association with a special majority. It has greater political significance because if a political party achieves absolute majority in election it is able to form a stable government i.e. political stability.

→ 50% of (Strength - vacancies) **ONLYIAS**  
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due to death or disqualification.

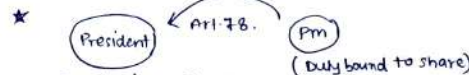
- **Effective Majority:** That is more than 50% of the effective strength of the house. Effective strength means total strength of the house excluding vacancies occurred due to death and disqualification. Following resolutions are required to be passed with an effective majority:
  - Resolution seeking removal of Vice-President in Rajya Sabha shall be passed by an effective majority of the house.
  - Resolution seeking removal of Deputy Chairman of Rajya Sabha, Chairman and Deputy Chairman of Legislative Council, Speaker and Deputy Speaker of Lok Sabha and Legislative Assembly.
- **Special Majority:** A majority other than simple, absolute and effective majority is called special majority.
  - **Majority under Art. 312** - Rajya Sabha authorizes Parliament to create a new All India Service.
  - **Majority under Art. 368** - Amendment to Constitution by a majority of not less than 2/3 of members present and voting and a majority of the total strength of the house that is absolute majority.
  - Other Resolutions, which require special majority:-
    - A resolution seeking approval of national emergency under Art. 352.
    - A resolution seeking removal of judges of Supreme Court and High Courts, Comptroller and Auditor General and Chief Election Commissioner.
- **Special majority as under Art. 61** - It deals with the impeachment procedure of the President. The resolution shall be passed by a majority of not less than 2/3 of total strength of house. This is the highest majority needed e.g. in Lok Sabha it requires  $2/3 \times 545 = 364$  or more votes.
- **Special majority as under Art. 249** - Rajya Sabha passes a resolution supported by not less than 2/3 of the members present voting that it is necessary and expedient in the national interest that Parliament should make law on the subjects enumerated under state list.

#### Power & functions of President:

- Executive power
- Judicial power
- Legislative power
- Emergency power
- Military power
- Financial power
- Diplomatic power

#### Executive Power:

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- All actions of the government are carried out in the name of the President, as per Article 53.
- The President must seek information from the Prime Minister regarding the work of the government, as stated in Article 78.
- The President has the authority to make rules for the functioning of the government.
- All Union officers hold their positions at the pleasure of the President → Union Officer, Governor hold

#### Doctrine of Pleasure: (Imp and significant).

their position till pleasure of President.

- The Doctrine of Pleasure is a concept derived from the British system, which means that the President has the power to remove officers from their positions.
- Under Article 75, the Prime Minister and the Council of Ministers remain in office at the President's pleasure.
- But in actuality the Prime Minister remains in office till the time he has the confidence of the Lok Sabha.
- In Shamsher Singh case (1974) the court held that president's pleasure is not personal and hence it works as per the advice of the council of ministers.
- Exceptions: This doctrine is not absolute and restrained by article 311 which says no arbitrary dismissal. Hence it is constitutional not personal power which is ruled by law & natural justice. Whereas in the UK it is personal power and no judicial review is possible.

Lok Sabha has Tenure → 5 yrs.  
No Tenure of PM & C.M. (X)

#### Legislative Powers:

- The President is an integral part of Parliament, as per Article 79. (Parliament → President, Prime Minister, Council of Ministers. (President sign Rep.))
- The President's assent is required for a bill to become law, as per Article III.
- The President has the power to summon, prorogue, and dissolve the Lok Sabha (as per Article 85).
  - **Summon:** The President has the power to call the House into session to ensure its smooth functioning. Summon when necessary or 6 months elapsed after the previous session.
  - **Prorogue:** The Prorogue means to discontinue the house.
  - **Dissolve:** The President can dissolve the Lok Sabha, ending its term and the membership of its members, after which fresh elections are conducted. This applies only to the Lok Sabha, as the Rajya Sabha is a permanent body and cannot be dissolved. Here the President can take decisions to ensure smooth functioning of the Parliament.

#### House sessions:

- Parliament holds three sessions Budget, Monsoon and Winter as a convention but there is no compulsion to hold the three sessions.

PW Web/App: <https://smart.link/7wwoxviced4>

- The Constitution says that there should not be a gap of more than 6 months between two sessions of the Parliament.
- But if the council of ministers are there, the President is bound to act as per their advice.

#### Article 86

(President Acts according to the advice of the Council of Ministers)

- President has the right to address both the houses
- Also may send messages to the houses with respect to any pending bill in the Parliament.

#### Article 87: Special Address:

↳ (may send messages to the houses with respect to any pending bill of the Parliament)

- usually budget session.
- The President is required to deliver a Special Address to both Houses of Parliament at the beginning of the first session of each new year and at the commencement of the first session of a newly elected Lok Sabha. President can deliver special address to Lok Sabha's first session, and every first session of Rajya Sabha each year.
  - This address highlights the achievements of the previous government or the existing government and outlines the agenda for the coming years.
  - The content of the address is prepared by the government, and the President does not include personal comments or opinions.
  - After the address, a Motion of Thanks is presented and must be passed by Parliament.

(most important aspect of the special address is motion of Thanks.)

# [Difference b/w Lok Sabha and Rajya Sabha.]

[21 June 2025]

## Polity

### Chapter 05: Union Executive

#### Lecture 04: Ordinance, Pardoning Power

#### President's Address (Article 87):

First session for each year: Rajya Sabha.  
First session after election: Lok Sabha.

- Deals with the President's address at the commencement of the first session of each year and the first session after each general election.
- This special address consists of the achievements of the present government and future policies.
- The speech is prepared by the government and the president cannot add his/her comments.
- After the address, a motion of thanks is passed by the Houses.

#### Motion of Thanks: (Discussion of the special address in the Parliamentary House)

- Discussion is done in both Houses (no timeline defined), and amendments are moved by the opposition.
- If the Motion of Thanks is passed without amendments, it indicates the government's majority and confidence in the House. However, if significant amendments are passed or the motion is defeated, it can be seen as a loss of confidence potentially inviting a no-confidence motion.
- Significance:
  - (Majority test of government in Lok Sabha) Majority Test of the Govt.
  - (Opportunity for the opposition to criticise the government) opportunity for opposition to criticize govt.

#### Dr Ambedkar:

"Motion of thanks is not just a formality, rather it is a tool of opposition to analyse government's vision"

- Recent controversy:
  - Recently, the Tamil Nadu Governor skipped portions of the speech during his special address. The Tamil Nadu government objected, citing Article 176, which mandates the Governor to deliver the address as prepared by the Council of Ministers. Governor is duty bound to deliver speech.

## # Difference between b/w the Lok Sabha and Rajya Sabha:

| Aspect                     | Lok Sabha (House of the People)                                      | Rajya Sabha (Council of States)                               |
|----------------------------|----------------------------------------------------------------------|---------------------------------------------------------------|
| 1. Position in Parliament  | Lower House                                                          | Upper House.                                                  |
| 2. Article                 | Art 81-104                                                           | Art 80-88                                                     |
| 3. Members                 | maximum 552 members.                                                 | maximum 250 members.                                          |
| 4. Current Strength        | 543 elected members.                                                 | 245 members (233 elected + 12 nominated)                      |
| 5. Election Type           | Direct election by the people                                        | Indirect election by MLAs (proportional representation).      |
| 6. Term                    | 5 years (can be dissolved earlier) (in case of No confidence motion) | Permanent body (1/3rd members resign after 2 years)           |
| 7. Dissolution             | can be dissolved by the President                                    | cannot be dissolved.                                          |
| 8. Presiding officer       | Speaker                                                              | Chairman of R.S. (Vice President)                             |
| 9. Money Bills             | can introduce and pass                                               | can only recommend changes (cannot reject).                   |
| 10. Financial Powers       | Dominant - Budget, taxation and grants.                              | Advisory roles in financial matters.                          |
| 11. Executive Control      | can pass No confidence motion against government.                    | cannot remove the government.                                 |
| 12. Representation         | Represent people of India.                                           | Represents states and union territories.                      |
| 13. min. Age to contest    | min 25 years,                                                        | min 30 years                                                  |
| 14. Nominated members      | 2 from Anglo-Indian community (Abolished by 104th Amendment)         | 12 nominated by the President (Literature, Art, Science) etc. |
| 15. Power in Joint sitting | greater Numerical strength and Influence                             | lesser influence in joint sitting.                            |

(Power comparison of Lok Sabha & Rajya Sabha)  
Examples →

- All the majority mentioned in the Constitution → 3rd special majority.
- \* (Draft bill and Law) → Difference.



### Simple Majority

In the Indian Parliament, a simple majority means more than 50% of the members present and voting. It is used for passing ordinary bills, motions, amendments, motion of thanks etc.

### Other Powers:

- The President can nominate 12 members to the Rajya Sabha.
- President lays the report of CAG, Finance Commission and Annual Financial Statement in the House.

### Ordinance:

Laws Report of the CAG (Comptroller and Auditor General of India) Finance Commission, UPSC (promulgated: introduction)

- An ordinance is a law promulgated by the President of India (under Article 123) or a Governor (under Article 213) when the legislature is not in session. This is done to ensure continuity in lawmaking.
- It must be issued only when there is an urgent need for legislation.
- An ordinance has the same effect as an act of Parliament or State Legislature. ~ Same effect as that of Law of Parliament or Legislature.
- It cannot amend the Constitution or infringe upon fundamental rights.
- There is no discretion of the President; aid and advice is necessary. → Cannot amend Constitution or infringe F.R.
- When an ordinance is laid before Parliament, the following happens: (works on principle of Natural Justice or Judicial Review).
  - Approval or Disapproval: (Approve with majority, or it ceases to exist)
    - Parliament can approve it, making it a permanent law.
    - If not approved, it ceases to exist.
  - Time Limit:
    - The ordinance must be approved within 6 weeks of Parliament reconvening.
      - The 6 weeks are counted from the start of the session of the second House of the Parliament. Max 6 weeks time period from session of second House.
    - If not approved within this period, it automatically lapses.
- Can be withdrawn by the President.
- Under Article 213, the Governor has similar powers in states, subject to the President's instructions when required under Article 200. (Governor can hold/reserve a bill for the consideration of the President).

### Important Cases:

- D.C. Wadhwa vs. State of Bihar (1987):
  - Dr. D.C. Wadhwa, an economist, challenged the re-promulgation of ordinances by the Bihar

- D.C. Wadhwa vs. State of Bihar
- Re-promulgation of ordinance to bypass legislative approval.
  - Repeated Re-promulgation of the ordinance without placing them against legislature is unconstitutional. [Colourable legislation] indirectly doing what can't do directly.
  - President's Assent required under Art. 200.



government as a way to bypass legislative approval

- The Supreme Court held that repeated re-promulgation of ordinances without placing them before the legislature is unconstitutional, as it violates the principle of separation of powers.
- The Court described this as a form of "colourable legislation", i.e., an attempt to do indirectly what cannot be done directly.
- The Governor cannot promulgate an ordinance in cases where the President's assent is required under Article 200.

### Doctrine of Colourable Legislation:

- According to this doctrine, if the legislature is prohibited from doing something directly, it also cannot do it indirectly. (Legislature is prohibited from doing something directly).
- Colourable legislation refers to laws that appear valid but, in substance, violate constitutional provisions.
- The doctrine prevents the misuse of legislative power through disguised or indirect means.

→ The Ordinance Lawmaking by President is subject to

- R.C. Cooper vs. Union of India (1970) – Bank Nationalization Case Judicial Review.
  - This case challenged the nationalization of banks through the Banking Companies (Acquisition and Transfer of Undertakings) Ordinance, 1969, issued by the Indira Gandhi government.
  - The Supreme Court ruled that ordinance-making power is not absolute and can be challenged in court if it violates fundamental rights, particularly Article 14 (Equality before law) and Article 19 (Freedom of trade and profession).
  - It was also held that the President's decision to promulgate an ordinance can be subject to judicial review.
- Krishna Kumar Singh vs. State of Bihar (2017)
  - In this case, the Bihar government had repeatedly re-promulgated ordinances without seeking legislative approval.
  - The Supreme Court held that re-promulgation without legislative approval is unconstitutional, unless exceptional circumstances can be justified.
  - This judgment reaffirmed the need for checks and balances in the exercise of ordinance-making powers.

### Other Facts Regarding Ordinance:

Dr. B.R. Ambedkar is a idealistic Person



- Dr. B.R. Ambedkar defined the ordinance-making power as an extraordinary power to be used in extraordinary situations.  $\rightarrow$  Need for change in the system post independence.  $\rightarrow$  That's why
- Jawaharlal Nehru supported the ordinance power, believing it would not be misused. However, the Nehru government used this power nearly 66 times, indicating frequent reliance.  $\rightarrow$  numerous Ordinance
- Important legislative moves like Triple Talag and the Farm Bills were initially introduced as ordinances before being passed as Acts by Parliament.  $\rightarrow$  Having covid
- India borrowed the concept of ordinance-making from the Indian Councils Act of 1861, a colonial-era legislation.  $\rightarrow$  Rmc election

Issues in Ordinance Making: (Issues).

- The ordinance power has been misused multiple times, often bypassing the legislature.
- Re-promulgation of ordinances—issuing the same ordinance repeatedly without bringing it before Parliament—has been a significant concern.
- The judicial review of ordinances often creates tension between the judiciary and the legislature.



[22<sup>nd</sup> June, 2025]

Polity

Chapter 05: Union executive

Lecture 05: Council of ministers

Position of Indian President:

- The position of Indian president is similar to British monarch. He/She holds the ceremonial position. He/She is the seal of decision making. He/She is bound by the aid and advice of the council of ministers.
- Many scholars believe that the president is the mere rubber stamp whereas Dr. Ambedkar has said that the president represents the nation but He/She does not rule it. (Representative only, not rule it)

Despite these limitations the president performs some important functions:

- He/She provides stability to the government.
- He/She ensures checks and balances in the parliamentary systems.
- He/She keeps the check on the functioning of the council of ministers through Article 78 of the constitution.

Note:

Different Viewpoints on the Status of the President:

- Rubber Stamp: Some believe the President is simply a ceremonial figure with no real power.
- Working President: K. R. Narayanan is viewed as an example of a "working President." He believed the office should maintain a balance of power. (most balanced Position of Indian Prez)
- Activist President: Some scholars view the President as an "activist," playing an active role in governance. (A.P.J. Abdul Kalam vs Sonia Gandhi: Office of Profit bill) (Ugani Jail Singh: Postal bill)

Some scholars believe that the president is the grandfather in a large joint family having limited functions.

Discretionary Powers of the president: (Discretionary: unrestricted, open to choice)

- The President of India holds discretionary power in specific situations, while the Governor possesses both constitutional and situational discretionary powers.

Situational Discretion:

- Situational discretion refers to situations not explicitly mentioned in the Constitution.
- In cases where the government is dissolved, the President can exercise discretion to appoint the Council of Ministers. The Governor has similar discretion in this regard. Following are the instances-

★ → [50 proposers and 50 Seconders]

★ (Doubts in discretionary powers in President and the Governor)



- If there is no Lok Sabha (No Council of Ministers) then the President can act upon its own.
- When there is 'Hung Assembly'.

**Note:** The President has situational discretion only while the Governor has both situational and constitutional discretion.

#### Constitutional Discretion of Governor:

- Constitutional discretion is a power that only the Governor possesses, not the President.
- **Under Article 356**, the Governor can send a report to the President in case of a constitutional breakdown of governance in the state.
- **Under Article 201**, the Governor has the authority to reserve a bill for the President's assent, which is not available to the President in the same context.

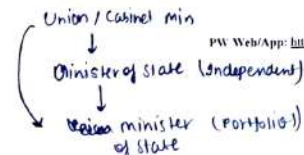
#### Council of Ministers (Article 74, 75):

- **Article 74** says that there shall be a **Council of Ministers** and the **Prime Minister** to aid and advise the President. (Aid and Advise the President)
- They are the [real executives] they are appointed by the President. They hold the office at the pleasure of the President. The **Prime Minister** shall be the head of the Council of Ministers. (PM head of Com).
- The idea was taken from Lord Canning's 'portfolio system'. (Portfolio: These are departments located to the ministers). The advice rendered by the President is binding upon the President. (1861)
- The Constitution says, under Article 74(2), that there shall be no judicial review of the advice tendered by the Council of Ministers to the President. [In the **Kabir Singh case**] the court held that Judicial review can be done if advice is mala fide.

#### Types of Council of Ministers:

- These are not mentioned in the Constitution.
- Through the conventional practices, they are:
  - **Prime Minister**
  - **Deputy Prime Minister**: Generally seen when the government is not very strong.
  - **Union Cabinet Ministers**: These are generally the first ministers or senior ministers in the ministry. Example: Union Minister of Finance, Union Minister of Home, etc.
  - **Minister of State (with portfolio)**: Junior minister with the Union minister.
  - **Minister of State (Independent charge)**: He/she is the only minister in the ministry.

#### Cabinet Vs Council of Ministers:



PW Web/App: <https://smart.link/7wawsoivcd4>

Ministry of National Importance! Hold by PM.  
 ↳ Ministry of Atomic Energy, J. must.  
 ↳ Ministry of Space.



| Cabinet                                                                                                                                                                                                                                                  | Council of Ministers                                                                                                                                                                                    |
|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <ul style="list-style-type: none"> <li>• It is a smaller body that consists of senior ministers (generally 8 to 10)</li> <li>• They are <b>core members</b> of the government.</li> <li>• The <b>core decisions</b> are taken by the cabinet.</li> </ul> | <ul style="list-style-type: none"> <li>• It consists of all other ministers, i.e., cabinet ministers, deputy ministers, and ministers of state.</li> <li>• They are periphery of government.</li> </ul> |

#### Kitchen Cabinet:

- It is a group of important ministers (approx. 3-4 ministers) aligned with the Prime Minister.
  - It is also called the inner cabinet (not an official term).
  - It is part of the PM's internal cabinet.
- Informal body, PM has faith and can discuss any issue. (High level decision making)

#### Deputy Prime Minister:

- It is not a constitutional post but given on political consideration.
  - Usually he acts as a coordinator in the government.
- Not a constitutional post.

#### Parliamentary Secretary:

- It is a political post, not mentioned in the constitution.
  - It is created to accommodate MPs without portfolios.
  - It is below the Deputy Prime Minister and is given to the ruling party MPs to bypass the 15% rule.
  - It has a rank equivalent to cabinet/Council of Ministers. ~ Rank of Council/Cabinet Ministers.
- Accommodate MPs without Portfolio. (below deputy PM and given to bypass 15% rule)

#### Article 75:

- The Prime Minister is appointed by the President and the other ministers are appointed by the President on the advice of the Prime Minister.
- By the **91st Amendment 2003** the Council of Ministers' strength was capped at 15% of the total members of the Lok Sabha (to control the unnecessary expenditure on ministers) (Article 75(1A)).
- If a minister is disqualified, they cannot continue as a minister.
- A person remains in the office till the pleasure of the President. (No fixed tenure)
- Collectively responsible to Lok Sabha and individually responsible to the President. (No legal responsibility)
- **Types of Responsibility:**
  - **Collective responsibility:** The Council of Ministers is collectively responsible to the Lok Sabha. For example, if the Prime Minister resigns, the entire government falls.
  - **Individual responsibility:** The Council is individually responsible to the President and can be removed separately by the President.

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Ministry is the negotiation [in the coalition government]

No Judicial review of the advice given by the Com. (But Judicial review can be done if advice is mala fide).

(Constitution only mentioned PM + Com)

↳ (medicere)

- Legal responsibility: Unlike in Britain, where ministers have legal responsibility (e.g., Boris Johnson's resignation for breaching COVID-19 norms), there is no such legal responsibility in India.

#### Oath:

- The Oath of the council is administered by the President of India for oaths of Secrecy and Office both.
- According to the Third Schedule of the Constitution, the Oaths of Secrecy and Office are required.
- A person can become a minister without being a member of either House but must join a House within six months.
- In H.D. Deve Gowda Case, the Court held non-MP can become PM but on the expiry of six months he has to resign.
- In S.R. Chauhan Case, The Court held if a minister fails to get elected within six months, he has to resign, they cannot be reappointed as a minister, as it would be considered a fraud upon the Constitution.

#### Functions of the Council of Ministers:

- The Council of Ministers plays a crucial role in the executive branch of the government.
- It is an essential part of the Parliament.
- The Council ensures the smooth functioning of the government.
- It drafts bills for legislative consideration.
- It facilitates effective debates and discussions in Parliament.

#### Prime Minister:

- The Prime Minister is a key functionary in the Indian government as per the Constitution.
- The position of Prime Minister has been interpreted by scholars in various ways:
  - "Primus inter pares" (first among equals), indicating that the Prime Minister holds the same position as other ministers.
  - "Inter stella lunar minores" (moor among the lesser stars), highlighting the Prime Minister's prominence over others.
- The Prime Minister is responsible for the appointment and dismissal of the Council of Ministers.

Actually Appoints the Com → President (as per Constitution)  
In Parliamentary system → Who is responsible for appointment of Com  
→ Prime Minister.  
(Advise to President)

(21<sup>st</sup> June 2025)

## Polity

### Chapter 05: Union Executive

#### Lecture 06: Prime Minister, LOP and Attorney General

#### Prime Minister (important functionary) + Primus Inter Pares (First among equals).

- PM is an important functionary of the government and considered as 'primus inter pares' (First among equals).  
→ moon among lesser stars.
- Other model considers him moon among lesser stars (Luna inter stella minores).
- He is responsible for the appointment and dismissal of the council of ministers. (To be done by the President) [Appointment and dismissal of Com.] → Advise to President → He/she do it.
- In the event of the Prime Minister's death/resignation, the government is dissolved. (New Election to be held).
- The Prime Minister is the leader of the house in which he sits. (Not return in constitution).
- The Prime Minister serves as the chairperson of the Cabinet and Council of Ministers.
- The Prime Minister typically holds important ministries and departments. (Departments of Atomic Energy, Space etc)
- He is the head of the Prime Minister's Office and secretariat.
- The Prime Minister can be from Lok Sabha and Rajya Sabha. (In Britain, PM can be from lower house only)

#### Functions of the Prime Minister:

- They decide the important policies of the government.
- The Prime Minister is the leader of the house in which they sit.
- The Prime Minister acts as the chief spokesperson of the government in the house.
- He advises the President on all constitutional matters.

According to Dr. B.R. Ambedkar, Prime Minister is the [most important functionary in the cabinet] and [happens to be an arch of the cabinet]. Hence the [President is duty bound] to follow the advice of the Prime Minister.

#### Note:

- In Japan, Germany and the UK the Prime Minister is from the lower house.

(PM from lower house)

Maulanarjun Kharge → Honorary PM in ~~2024~~ Lokpal Selection Committee

Westminster Model: UK  
Capitol Hill: U.S.A.  
Raisina Hill: India



PM ← Leader of Opposition (Shadow PM)

#### Shadow Cabinet:

- The term "shadow cabinet" is not mentioned in the Indian Constitution rather it is a concept born out of convention.   
Not mentioned in the constitution. → opposition member (Portfolio) to counter the govt.
- It comprises opposition members who are assigned specific portfolios to counter the government.
- They are called a "government in the making" because they are readily available to replace the government. (waiting.)
- States in United Kingdom → Shadow Cabinet constitutionally setup in UK.
  - the shadow cabinet is an integral part of the Westminster parliamentary model.
  - It serves as an official opposition to check the working of the system of government.
  - No oath is given to them as they don't have actual executive power or legal authority.
- In India, the shadow cabinet is not an official system, but we practice it on an ad-hoc basis.

#### Leader of Opposition in the Lok Sabha: (Ad-hoc: purpose / Requirement Basis)

- The term "Leader of the Opposition" is not mentioned in the Indian Constitution.
- The Leader of the Opposition is often regarded as equivalent to a "shadow Prime Minister".
- The G.V. Mavankar Rule of 10% is applied to determine eligibility for this post, requiring the largest opposition party to have at least 10% of the total strength of the house.   
Largest opposition at least have 10% seats in Lok Sabha.
- The position was first officially recognized in 1969.
- In 1977, the Salaries and Allowances of the Leader of Opposition Act was passed notifying salary and allowances, making it a statutory post. However, this act does not specify eligibility criteria for the Leader of the Opposition.

2014 → INC: 48 seats → No LO opposition.

2015 → INC: 53 seats.

2024 → INC: 99 seats → Rahul Gandhi - LO-OP.

#### Absence of a Leader of Opposition:

- The absence of a Leader of the Opposition weakens the democratic system by limiting effective checks on the government.   
→ Corruption / Grievances
- The Leader of the Opposition plays a crucial role in the selection committees for the appointment of Lokpal, Central Vigilance Commissioner (CVC), and Director of the Central Bureau of Investigation (CBI).   
2 (Chief Election Commissioner) → (Leader of Opposition → US-UK, Official / Institutional Role)
- This role ensures the government remains accountable to the House.
- For example, in the United Kingdom, the Leader of the Opposition has an official purpose. Similarly, in the United States, the opposition has an institutional role.

#### Attorney General (Article 76):

- The Attorney General is appointed by the President of India and serves at the President's pleasure.

Attorney General: Appointed by President (For Handling case / Legal Cases)

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Representing Govt.

[Highest] Chief Legal Advisor for the Government  
(Appointed by President on advice of the Council of States)



- He must be qualified to be a judge of the Supreme Court of India.
- He holds the office till the pleasure of the President.   
(No fixed Salary / Decided by President)
- His remuneration is decided by the President and there is no fixed salary.
- He does not have a fixed tenure and submits his resignation to the President.

#### Functions and Powers:

Represents the government in the courts of India

- The Attorney General represents the government in the courts of India.
- He provides legal advice to the President and the government on various legal matters.
- He can sit in either the House of Parliament (without the right to vote) or any court in India.   
→ House of Parliament (both) open for Attorney General.
- He may be a part of a parliamentary committee if required. [Part of Parliamentary Committee]
- He enjoys the same privileges and immunities as a Member of Parliament (MP).
- He cannot hold any brief against the government of India.   
→ Court handle criminal matters.
- He is not allowed to defend any accused of criminal matters during his personal legal practice.
- He cannot hold a directorial position in any company or corporation without government permission, to avoid conflicts of interest with his constitutional duties.

#### Position of Attorney General in the USA:

- The Attorney General is the principal legal adviser to the government.
- He serves as the chief lawyer for the government.
- He is part of the executive branch and holds the position of the law minister.
- The Attorney General is appointed by the President and confirmed by the Senate.
- He can be impeached by the US congress or removed by the President.

#### Solicitor General: (Numerous > 1 Solicitor General below the Attorney General).

- This post was created under the Law Officers (Conditions of Service) Rules, 1972, making it a statutory position.   
→ Assists the Attorney General in judicial matters.
- The Solicitor General is a law officer who assists the Attorney General in judicial matters.
- He is appointed by the president with the possibility of reappointment. (possibility of reappointment)
- The eligibility criteria for the Solicitor General are the same as those for the Attorney General.
- The tenure of the Solicitor General is three years, but he can ask for a shorter term.

Note: The number of solicitors general is not defined.

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[23rd June, 2025]

## Polity

### Chapter: 05 (Union executive)

#### Lecture 07: State Executive Parliament

##### Advocate General: ~ (Attorney General of States)

- Article 165 has provided for the office of the Advocate General for the States.
- He is the highest law officer in the State. Thus, he corresponds to the Attorney General of India.

##### Appointment and Qualification:

↳ Highest Law Officer of the state, corresponds to the

Attorney General of India

- He is appointed by the Governor of the concerned state.
- He must be qualified to be appointed as the judge of the High Court.
- The Constitution does not define any fixed term for the Advocate General.
- He remains in office upon the pleasure of the Governor.

##### Tenure of Office:

↳ (Appointed by Governor and remain in office at the pleasure of the Governor, Qualified to be Judge of HC, Not fixed Term)

- There is no fixed tenure.
- The tenure of the Advocate General depends on the pleasure of the Governor.
- He can quit his office by submitting his resignation to the Governor. (Can submit his resignation of Governor)
- By convention, he resigns when the government (Council of Ministers) resigns or is replaced, as he is appointed on the advice of the Council of Ministers. (Generally change with Government).

##### Article 78:

PM is duty bound to provide information regarding decision of the Council to President.

- The Duty of the Prime Minister to communicate the decision of the council to the President.

##### State Executive:

[(End of Union Executive)]

##### Governor:

##### Article 153:

- It talks about the office of the Governor. (one governor for one or more states)
- There can be one Governor for each state (there can also be one Governor for two or more states).

##### Article 154:

↳ Executive Functions of state.

Types of Government

- The Governor performs executive functions of the state.

↳ State Legislature

##### Article 155:

(Delhi, Puducherry, J&K)

↳ UT's with Legislature  
↳ UT's with President rule.

↳ Appointed by President,

warrant and seal in his hand [Agent of the Centre]

- He is appointed by the President with a warrant and seal in his hand (it means that the President is the final authority for appointment, his signatures are on his appointment letter).
- In the Raghunandan case, the court held that the governor is not an employee of the centre and works in an independent position. (warrant and seal of President) ↳ Independent position

##### Article 156: (Term/ Tenure):

- He shall have a 5-year term, but actually holds the office on the pleasure of the President. ↳ Confusion in Tenure [5Yr + Pleasure of President]
- He submits his resignation to the President.
- The Governor can continue after 5 years until the new governor gets appointed. (Reappointment) Allowed ↳ Continuity in office of Governor

##### Article 157: Qualification

- He should have attained a minimum of 35 years of age.
- He should be a citizen of India.

##### Article 158:

- He cannot be a member of any house of the state legislature. [Not a member of State Legislature]
- He should not hold any office of profit.
- In case a person is governor of two or more states, then the president will decide the salary (it will be divided among the state governments of the relevant states). (Fore.g. HR or PB, divide salary of the Governor)
- To ensure the non-partisan nature of the governor, his/her emoluments and allowances shall not be diminished during his tenure (constitutional protection). ↳ To ensure non-political nature of the Governor → emoluments (अवतलन) and allowances shall not be diminished (constitutional protection)

##### Article 159: Oath

- The oath to the Governor is administered by the Chief Justice of the High Court. (constitutional protection)

##### Article 161: Pardon Powers:

- The court has said that the Governor's power is to be used according to the decision of the council of ministers. ↳ (Power of Governors to grant, pardon, etc. and to suspend, remit or commute sentences, but used according to advice of Council)

##### Debates with Respect to the Office of the Governor: (Important)

- Is he/she the agent of the Centre or the linchpin (very vital person) of the system? (Lynchpin)

##### History of Governor's Office:

- In 1858: Governors were the agents of the crown. (Executive head of the provinces).
- In 1935: The office of the Governor was established to work according to the council of ministers, but with special and discretionary powers.
- From 1947-50: Constituent assembly debates.

# # President vs Governor - Comprehensive Comparison

| Aspect                  | President of India                                                | Governor of the state                                                                                                               |
|-------------------------|-------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------|
| Constitutional Article  | Art 52-78                                                         | Art 153-167                                                                                                                         |
| Position                | Nominal Head of the Union                                         | Nominal Head of the State.                                                                                                          |
| Level of the government | Central Government                                                | State Government.                                                                                                                   |
| Appointment             | Elected by Electoral college                                      | Appointed by the President.                                                                                                         |
| Tenure                  | 5 years (Renewable)                                               | 5 years (Serves at the Pleasure of the President)                                                                                   |
| Election method         | Indirect Election (MPs + MLAs using Proportional Voting (STV))    | Direct Appointment by the President.                                                                                                |
| Oath Admin by.          | Chief Justice of India or Highest most senior judge of SC.        | Chief Justice of High Court or Senior most Judge of HC.                                                                             |
| Removal Process         | Impeachment (Complex process) under Article 61.                   | Can be removed by President without any reason. (Against Sarkaria Commission Recomm.)                                               |
| Discretionary Powers.   | Very limited - bounded by Council of Ministers.                   | Has some discretionary power in some cases (Situation at + Constitutional).<br>Can summon, Prorogue and dissolve State Legislature. |
| Legislative Powers      | Can summon, Prorogue and dissolve Parliament.                     | Can summon, Prorogue and dissolve State Legislature.                                                                                |
| Money bill Assent.      | Cannot return; can only withhold or give Assent.                  | Same as President.                                                                                                                  |
| Ordinance Power         | Art 123, Can promulgate Ordinance when Parliament not in session. | Art 213, Can promulgate when State Legislature not in session.                                                                      |
| Judicial Powers.        | Can grant Pardon, reprieves, Commute or remit (Art 72)            | Same powers but Acc. to (Art 161)                                                                                                   |
| Emergency Powers.       | Has all 3 emergency Powers, Art 352, 356, 360.                    | No such role. Act's under President's orders.                                                                                       |
| Diplomatic Roles        | Represent India in International forums, treaties etc.            | No such role.                                                                                                                       |
| Military Role.          | Supreme Commander of Armed Forces.                                | No military Role.                                                                                                                   |
| Com.                    | Acts on aide advice of com.                                       | Acts on aide Advice of Com of states.                                                                                               |
| Pardoning Power.        | Art 72.                                                           | Art 161.                                                                                                                            |
| Hierarchy               | Highest Constitutional Authority in India.                        | Subordinate / Agent to the President.                                                                                               |

## # Parliamentary vs Presidential form of Government.

- ↳ British System
  - ↳ Diversity + multiculturalism in country
  - ↳ slow decision (long debates & discussion)
  - ↳ Less stability in the government
  - ↳ Non-experts become ministers of different portfolio
- ↳ U.S. System
  - ↳ one single person head + Non-diverse country.
  - ↳ Fast decision making
  - ↳ more stable (no discussion)
  - ↳ Executive ministers are experts or from same background.

- Ambedkar referred to the governor as an ornamental figure, whose power should be limited and nominal.

### \* Debate on the Election of Governor: (Important) → (Governor should be elected or nominated)

- There was a discussion between the Constituent Assembly members about whether the Governor should be elected or nominated.
- Cons of direct election of Governor:
  - Will contest directly with CM.
  - Incompatible with the parliamentary system.
  - The Governor doesn't have much power, hence elections would be a waste of time.
  - If elected, he will remain partisan in nature, thus the clash between CM and Governor. (favour of a party)
  - In case of an election, the CM would ensure that the Governor shall be from his party. Hence, the Governor will remain a second-rate man of the ruling party.
- Why is the Governor nominated?
  - To ensure the unitary model of the Centre.
- Will the election of the Governor solve the crisis?
  - Yes, to an extent.
  - It will ensure stability in the Governor's office.
  - Mass removals can be avoided.

(Still Governor is nominated)  
(India is a Quasi-Federal Nation)

### Office of the Governor and Federalism:

- It has been widely discussed that a nominated or appointed Governor acts as the centre's agent.
- The Supreme Court in the S.R. Bommai case has held that the duty of the Governor is to ensure the smooth functioning of the State government and not to destabilize it.

### Issues with the Governor's Office: (Tussle b/w Governor and State Govt like Tamil Nadu, West Bengal, Kerala)

- Current Issues:
  - Rehabilitative Position: The Governor's post has become a retirement package for faithful politicians.
  - Misuse of discretionary powers: The Governors have misused these powers to give political advantage to the central government.
  - They have remained in a partisan and one-sided position.
  - It has remained a mere rubber stamp of the center. (Promotes Nondia by Center).

### Recommendations of Sarkaria Commission on the Governor's Office: (UPSC mains) \*

(Imp)

### \* (Comparison of President and Governor)

- The Governor should be appointed in consultation with the:
  - Vice President,
  - Leader of the opposition, and
  - CM of the state.
- His tenure must be guaranteed (full 5 years completion).
- In case of the removal of the Governor, a statement explaining such removal should be given by the center.
- Frequent removals must be stopped.
- Should avoid political controversies and remain neutral.
- After serving the Governor's term, a person should not be eligible for any other post, (except President and the Vice President, or the second term). This is to ensure the impartiality of the post.

(Most Important Recommendation)

Note: It has been amended, the Governor should not be a native of that state.

### Article 163:

- Article 163 Chief Minister, and the Council of Ministers to aid and advise the governor.

### Article 164:

- The Governor shall appoint the Chief Minister, and the other Ministers shall be appointed by the Governor on the advice of the Chief Minister. All Ministers shall hold office at the pleasure of the Governor. (According to constitution)
- Provided that in the states of Chhattisgarh, Jharkhand, Madhya Pradesh, and Odisha, there shall be a Minister specifically in charge of tribal welfare
- The council of ministers is not more than 15 %, and not less than 12 %.
- The Chief Minister can be from assembly, or council.

### Aid, and Advice of Council of Ministers: (Comparison of Powers of the President & Governor).

- The President is bound to act on the advice of the Council of Ministers, but may once return the advice for reconsideration (The 44th Constitutional Amendment). But by the 42nd amendment act Indira Gandhi made the acceptance of advice compulsory (No reconsideration).
- Whereas, article 163 gives constitutional discretion to the governor to take the advice of the Council of Ministers, and if the Governor wants to invoke his discretion, he is allowed.

### Article 74:

- No constitution discretion with President.

[24th June] 2025]

## Polity

### Chapter 05: Union Executive

#### Lecture 08: Parliament

★ (Parliamentary vs Presidential form of Government)

#### Parliament:

##### Article 79:

According to Art -79, Parliament consist of:

- It says that the Parliament should consist of:

- House of the People (Lok Sabha),
- Council of States (Rajya Sabha), and
- The President.

Lok Sabha (House of People)  
Rajya Sabha (Council of States)  
President.

(Supreme Law making body)

- The word Parliament means a supreme legislative body. It debates, discusses and passes the law.

#### Rajya Sabha (Article 80):

(debates, discuss and passes)

- Rajya Sabha represents the states and union territories of India.
- States have unequal representation in Rajya Sabha based on their population.
- Article 80 talks about the Council of States.
- It consists of total 250 seats:
  - 238 members are indirectly elected.
  - 12 members are nominated by the President.
- Currently, 233 seats are open for election and 12 seats are open for nomination.
- The President nominates 12 members from fields such as science, literature, social service, and art.

#### Manner of Elections: → (Indirect election in the State Legislative Assemblies by MLAs)

- Rajya Sabha members are elected by the members of State Legislative Assemblies through a single transferable vote and proportional representation system. (Elects by MLAs through STV and PR)
- The MPs to Rajya Sabha are elected through the formula:
  - The value of vote is calculated as the number of MLAs  $\times 100$ , with each MLA having a value of 100. Fixed value of vote of a MLA = 100, Total vote of MLAs = 100  $\times$  No. of MLAs in State Leg. Ass.
  - Quota Votes =  $\frac{\text{Value of vote} \times (\text{vacancies} + 1)}{100}$
- Union territories that do not have a legislative assembly cannot send representatives to Rajya Sabha.

$$\text{Quota Vote Required Vote} = \frac{\text{Total value} + 1}{\text{vacancy} + 1} \times \frac{1}{100}$$

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A person cannot be a member of Parliament in Rajya Sabha as well as the State Legislature. (14 days) vacant position. Acc to People's Representation Act, 1951

- Chandigarh has recently proposed to send one MP in Rajya Sabha. (Can't because not having State Legislative Assembly)
- SC has held that open ballot can be used in Rajya Sabha elections to check cross voting.

Article 83: Cross voting issue: People/MLAs of one party voting for the MP candidate of another party, that is Unconstitutional and needs to be ended. (open ballot)

- Rajya Sabha is a permanent house because no term limit is specified in the Constitution.
- Rather it says that One-third of the members will retire every two years, ensuring continuous functioning. (But only those members who have completed their six year as per the Representation of People's Act, 1951) 1/3rd members retire after every 2 years, then elected → maintain continuity of the House.
- Rajya Sabha members serve a six-year term as per the Representation of People's Act, 1951.
- To maintain the permanent status of the house, members retire every two years. [Strategically done: Story below]
- In case of vacancy for the seat in mid-term, the new MP will continue the remaining term. [Story below]

Article 81: (Tenure and Rules of Rajya Sabha members: Acc to Representation of People's Act, 1951)

- Article 81 provides for the composition of the Lok Sabha (House of People).
- It says that Lok Sabha shall consist of total members of 550 (based on the 1971 population Census) of which 530 are elected from States and 20 seats are from UTs. 552 members: (2 Anglo-Indian Community + 550 Indians)
- Currently, 543 as the final strength of the house as 7 seats are not allocated due to lack of populations in certain UTs. 530 (from States) + 20 (UTs) + 7 Delhi + 6 other UTs (unallocated)
- The 104th Constitutional Amendment Act removed the provision for two nominated Anglo-Indian members by the President. (2 nominated Anglo-Indian members by President)
- The term of Lok Sabha is 5 years and it is not a permanent house.
- During the time of emergency, the term of the Lok Sabha can be extended for one year.

Note:

- Rajya Sabha has a member's tenure.
- Lok Sabha has House tenure (i.e. 5 years). It has co-terminus tenure of house and member.

1950 → All members of Rajya Sabha election (Full strength)

↓  
1952 (Lottery system) 1/3rd members forced retired.

↓  
1954 (Lottery system) 1/3rd members forced retired.

↓  
1956 (Now smoothly run, maintained continuity of the R.S.)

PW Web/App: <https://smart.link/7wvesviedk4>

- ✓ Pm Modi member of R.S. till 2014. (Dr. Tajshankar continued his remaining term).

## Polity

[24th June 2025]

### Chapter 05: Union Executive

↳ Parliament  
↳ Delimitation Commission

### Lecture 09: Parliament (Part 02)

#### Article 84 - Qualification of Members: [Required Qualification of MPs]

- This article lays down qualifications for the Members of Parliament.
- Following are the conditions:
  - He/she must be a citizen of India.
  - He/she must make and subscribe to an oath or affirmation to the election commission as per third schedule. **MPs oath and affirmation to election commission.**
  - He/she must be **not less than 30 years of age in the case of the Rajya Sabha** and **not less than 25 years of age in the case of the Lok Sabha**.
- Article 84 (c) authorizes Parliament to prescribe any other qualifications as it may deem fit.

#### Vacancy in Lok Sabha/Rajya Sabha:

- If any seat gets vacant before the expiry of its tenure, fresh elections (Bye-elections) should be conducted within 6 months. **[If any seat vacant, then fresh (bye-election) within 6 months]**
- For Lok Sabha/Rajya Sabha the new MP will serve the remainder term.
- But the election commission has the final decision in the elections regarding the election date. **↳ depending upon the situation & feasibility of election**

#### Article 82 - Delimitation: (Redrawing map of constituencies) in that area.

- The term Delimitation means Readjustment of territorial constituencies of Lok Sabha and legislative assemblies. **It is done to ensure an equal number of representation for each MP/MLA to maintain equal No.**
- As per Article 82, the Parliament may by law readjust the seats of Lok Sabha after every Census.
- This process is done through a Delimitation commission. **↳ To maintain equal no. of the voters in each constituency, redraw map of election**

#### Delimitation Commission:

- It is a statutory body (not a constitutional body). **→ Setup by Act of President.**
- It is appointed by the President of India and works in collaboration with the Election Commission of India.
- Its Composition are:
  - 3 Delimitation Done with Census of 1971 with new one, representation states from South and North eastern part becomes very less. **↳ That's why they are against it.**

#### ↳ (Delimitation)

District: Administrative Unit

Constituency: Election Unit (Decision of Constituency depends on distributing almost equal voters per constituency).

#### ↳ Officers of Parliament



- Retired judge of the Supreme Court as chairman.
- Chief Election Commissioner.
- Chief Election officer from the Respective States concerned.

(4th National level Delimitation) i.e. 1952, 1963, 1973, 2002  
(Bek in 2019 and Assam in 2023)

- Till now, the Delimitation Commission has been constituted four times on a national basis viz. 1952, 1963, 1973, and 2002. In 2019, the commission was set up for Jammu and Kashmir, and for Assam in 2023. **↳ Implemented in 2009 Election. As 2004 election on the basis of 1973.**
- The current freeze on delimitation is up till (2026 census) [New Census in 2026]
- The 94th constitutional amendment act put a freeze on seats of Lok Sabha.
- The [decision of the delimitation Commission is final and binding. It cannot be challenged in Court.] **↳ Beyond Judicial Review**

#### Gerrymandering:

- Gerrymandering is a technique used in the USA to redistribute the electoral constituencies so that the electoral results can be manipulated. **→ (Statistical way of dividing the Population)**

#### Article 83:

**↳ used by USA to redistribute electoral constituencies to manipulate electoral results.**

- Ministers and Attorney generals have the right to sit in either house of parliament, but they cannot vote.

#### Article 89 - Officers of the Parliament:

**↳ Ministers and Attorney General can vote in the house only if he/she is member of House.**

- There shall be a chairman and deputy chairman of the Rajya Sabha.
- Chairman: The Vice-President of India to be the ex-officio Chairman of the Rajya Sabha.
- Deputy Chairman: The Deputy Chairman would be the member of Rajya Sabha.
  - He performs the duties of the Chairman's office when it is vacant or when the Vice-President acts as President or discharges the functions of the President. **VP performs office of the chairman of R.S.**
  - He also acts as the Chairman when the latter is absent from the sitting of the House. **When VP acts as President or VP is post is vacant, Vice/Deputy Chairman act as Chairman of their's.**

#### Role of Deputy Chairman:

- To ensure smooth functioning in the absence of chairman.
- He shall be responsible for continuity of the house if there is no chairman.
- Whenever he is chairman, he will enjoy all the benefits of the post. **[To have all benefits of Post]**

#### Article 90:

- The Deputy Chairman can resign from his post by giving his resignation to the Chairman of the Rajya Sabha. **(The Chairman resigns to the President).**
- The deputy chairman cannot continue if he is not the member of the house anymore. **↳ Deputy chairman cannot continue if he is not member of house. ↳ As elected from the MP of R.S.**

So, and more of [members/strength - vacancies]



→ The Deputy chairman can be removed/ impeach by effective majority

- The Deputy Chairman can be removed from his office by the majority of the members of the house by the majority of all then members (Effective majority).
- For his removal, a resolution has to be moved into the house with at least 14 days of prior notice.

#### Article 91: Power of Deputy Chairman:

→ Resolution has to be passed in House at least 14 days of prior Notice.

- When the chairman office is vacant then the deputy chairman or any other member of the house will take the chair.
- The Deputy Chairman needs to ensure smooth functioning of the house.
- If the post of deputy chairman is also vacant then the constitution says that the council may decide any other person as chairman of the house.

#### A panel of Deputy Chairman:

is vacant, A panel of deputy chairman of R's. Lead the House.

- When the chairman or the deputy chairman are absent, then as per rule 88 of Rajya Sabha rules says that approximately six members shall be nominated by chairman who will continue the house in the absence of chairman and deputy chairman. [Six members list as per Rule 8 of R's.]
- They are commonly known as 'panel of deputy-chairman'.
- Usually, the Rule of the house gives power to the chairman to form this panel as soon as it gets vacated.

→ Chairman duty is to form panel in the start of the year according to rule.

#### Article 92:

- The chairman and deputy chairman will not preside over the house if their resolution of removal is being discussed. During this removal process, chairman or dep. chairman will not reside over the house.
- The chairman shall have the right to speak but will not vote.
- In case of the Deputy Chairman, he will also not chair and can sit as a member of house (MP) only with voting right.

Chairman → right to speak / not vote (not a member)  
Dep. chairman → right to speak / voting rights. (as a member)

#### Article 93: Speaker/ Deputy Speaker:

- Both the Speaker and Deputy Speaker are constitutional posts.
- They must be elected as soon as a new Lok Sabha is formed.
- The Speaker is elected from among the members of the Lok Sabha by a majority vote.
- To assist the Speaker in their duties, a Deputy Speaker is also elected.
- Both the Speaker and Deputy Speaker are elected posts.

#### Article 94 (Removal):



- The Speaker submits their resignation to the Deputy Speaker, and the Deputy Speaker submits their resignation to the Speaker. [Speaker submit their resignation to Dep. Speaker and vice versa]
- The Speaker or Deputy Speaker can be removed through a resolution passed by a majority of the current members of the Lok Sabha (effective majority). [Resolution of Removal passed with effective majority of L.S.]
- A 14-day prior notice is required before such a resolution can be moved. → 14 days prior Notice.
- If the Speaker or Deputy Speaker is no longer a member of the house, they cannot continue in their respective roles. → If no longer a member of House cannot continue to preside / chair the House.
- If Lok Sabha is dissolved then the speaker will continue on the post till the first meeting of the new assembly. → Right to vote in removal process.
- Both the Speaker and Deputy Speaker have the right to vote during their removal process.
- Casting Vote: [Under Article 100] the Speaker, Chairman, or the person presiding over the house does not have the right to vote initially, but they do have a tie-breaker vote.

#### Pro-tem Speaker:

- In a newly formed house, a Pro-tem Speaker is appointed by the President to preside over the house temporarily.
- The Pro-tem Speaker has the duty to administer oaths to new members, oversee the election of the Speaker, and conduct the floor test.
- The Constitution also permits the outgoing Speaker to continue as the Pro-tem Speaker.

Pro-tem speaker → Temporarily appointed by President to preside over House.

- To oath and administer the House (Newly elected House)
- To oversee the election of speaker
- For Floor test.

- ↳ Floor Test: It is a constitutional tool/mechanism used to prove whether the ruling government (Council of Ministers) headed by PM enjoys majority support of Lok Sabha.
- ↳ Not explicitly mentioned but in Art. 75(3) The Com is collective responsible to people of L.S.
- ↳ PM and Com must have confidence in L.S.
- ↳ When: After general elections, if there is internal rebellion, directed by President, during No-confidence motion.
- ↳ Through voting in Parliament procedure → voice, division vote, machine.

[25<sup>th</sup> June 2025]

## Polity

### Chapter 05: Union Executive Lecture 10: Parliament (Part 03)

**Pro Tem Speaker:** To administer the oath of newly elected member to elect the speaker of the house.  
Floor test.

- In a newly formed Lok Sabha, a Pro-tem Speaker is appointed by the President to preside over the house temporarily.

- The Pro-tem Speaker is dutybound to administer Oath to new members, oversee the election of the Speaker, and conduct the floor test. → (Ensign Test in House)

**Deputy Speaker Controversy:** The Constitution also permits the outgoing Speaker to continue as the Pro-tem Speaker. [Also judiciary cannot interfere in parliamentary proceedings] Pro-tem Speaker | Dep. Speaker is vacancy because BJP didn't want a person from opposition to become dep. speaker.

- Since 2019, the post of pro tem speaker is vacant.
- Delhi High Court in 2022 asked the government to fill the vacant seat as soon as possible.

**Panel of speakers of Lok Sabha:**

- As per rules of Lok Sabha, a panel would be constituted by the speaker consisting of approximately ten members (i.e. As per Rule 9). As per Rule 9 of the Lok Sabha. (At least 10 members)

**Role of Speaker:**

- The Speaker acts as the presiding officer of the Lok Sabha. → Important power to categorize a bill as money bill or not.
- The Speaker has the final authority to decide whether a bill is a Money Bill or not.
- The Speaker ensures the maintenance of decorum and discipline within the house. → Suspension as well as disqualification power.
- The Speaker has the power to disqualify any Member of Parliament (MP) under the provisions of [Schedule X] of the Constitution, [a power also held by the Chairman of the Rajya Sabha].
- The Speaker can suspend any member of the Lok Sabha for misconduct which is a power also granted to the Chairman of the Rajya Sabha. (definition of misconduct not given)
- The Speaker interprets the rules governing the functioning of the house.

**Article 99:**

- The oath of office for a Member of Parliament (MP) must be administered by the President or a person authorized by them. (Generally speaker or Pro-Tem speaker).

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**Article 100: Voting in House**

- Voting in the House shall be done by the majority of the present and voting (simple majority).
- The speaker and Chairman will always have a casting vote (will vote only in case of a tie).
- House to be run by Quorum: 'Quorum': Smallest No. of people that must be at meeting before making final decision.
  - The house must meet the quorum for proceedings to begin, which is ideally 1/10 of the total members. This amounts to 54 members in the Lok Sabha and 25 members in the Rajya Sabha.

if not → (House is adjourned due to lack of Quorum)

**Article 101: (Rule)**

- No person can be a member of both houses at the same time. → Cannot be member of both house at same time.
- If an MLA is elected as an MP, then he has to resign from his MLA post, otherwise, his MP seat will become vacant.
- An MP shall resign to a chairman or the speaker of the respective house. → 33rd Amendment 1974. 4 Generals resign.
- The 33rd Amendment added a point in Article 101 and gave ultimate power to the chairman or the speaker with regard to the resignation of the MPs. Here, the chairman/speaker can deny such resignation if he is satisfied that the resignation is involuntary or not genuine. → NO freedom of choice.
- The Supreme Court in various cases has highlighted this amendment as misuse of power, for example, in the Karnataka assembly case. (Fall of government of the INC, due to resignation of the 27 MLAs of it) → and INC is on (water-thing)
- If any MP is absent from the house for more than 60 days without permission, he will be removed from his seat. → 2018-2023 in 2019

**Article 102:**

It contains two clauses: Article 102(1) and Article 102(2). → Disqualification of members of either house of Parliament

- It deals with the disqualification of members of either House of Parliament.

→ The following are the conditions for the disqualification of the member, Article 102(1):

- (Office of Profit)
  - Office of Profit: if he holds any office of profit under the Union or state government (except that of a minister or any other office exempted by Parliament) (Article 102(1)(a)).
- (Unsoundness of mind)
  - Unsoundness of Mind: if he is of unsound mind and stands so declared by a court, Article 102(1)(b). → V. V. G. Malaya (BSP MP) → bankrupt.
- Undischarged insolvent: if a person is undischarged insolvent, Article 102(1)(c). → Capable of paying debts.
- Has voluntarily acquired citizenship of any other country: if he is not a citizen of India, has voluntarily acquired the citizenship of a foreign state, or is under any acknowledgment of allegiance to a foreign state. (Article 102(1)(d))

(support for government)  
PW Web/App: <https://smart.link/7woswvickd4>

(OP, USM, USM, Citizenship)

- 102(1) all disqualifications ground, are done by President.  
102(2) done by speaker of respective house.



\* Note: The above four disqualifications are done by the President.

- By or under any law made by Parliament, Article 102(1)(e)

- A person shall be disqualified for being a member of either House of Parliament if he is so disqualified under the Tenth Schedule, Article 102(2) [Tenth Schedule - Anti-Defection Law]
- This disqualification is finalized by the Speaker.

#### Article 103: (Joint suggestion)

- For disqualifications under Article 102(1)(a), (b), (c), and (d), the President refers the matter to the Election Commission of India. (Decision taken by President upon advice of the Election Commission of India)
- The President will take the decision upon the advice of the election commission.

#### Representation of People's Act, 1951 (Disqualification): [More Severe]

- Convicted for more than two years. (Under section 8, Mr. Rohini Gomatni convicted in Sessions Court of Ahmedabad for defalcation.)
- Corrupt practices. (Section 123 of RPA) (No 3 months of appeal) → direct removal.
- Failure to lodge election expenses.
- Interest in contracts for supply of goods to the government.
- Dismissed as a government employee under corruption. → Not allowed to contest election till 6 years.
- If disqualified under RPA, the candidate will not be allowed to contest election till six years. (2013)

- In the Lily Thomas case, the court held that the MP should be immediately removed from office and should not be given three months' time of appeal. (No grace period as mentioned in sec 8 of RPA)

- Disqualification can be done by the Governor/President

#### Office of Profit: applying under Art 102(1)(a)

- The term office of profit is not defined in the Constitution.
- Prevention of Disqualification Act 1959: This Act does not define the term office of profit rather it exempts certain posts from this office. (Not define Office of Profit but defined exemptions from it.)
- It means that any individual who holds any office under Government and receives some benefits from there is an office of profit. (separation of powers - Executive & Legislature)
- Its objective is to ensure separation of power and avoid any conflict of interest.
- The Supreme Court in the Jaya Bachchan Case 2006 held that the office of profit can be identified on triple test:

- Test of pecuniary gains (if receiving some income) → pecuniary: connected with money or grants.
- Executive nature of the office (have decisive powers)

→ decision making powers.

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J. Powers under the office → Power under the office.

- On the above grounds, Jaya Bachchan was disqualified for holding office of profit.
- In Delhi Assembly Case 2017, the High Court held that there should be some law defining the office of profit. The court also held that the post of Parliamentary Secretary is an office of profit concept.

→ 21st & 22nd amendments (resigned among them) by Pranab Mukherjee.

Note: This concept is taken from Britain. [Office of Profit Concept]

(1985) → 52nd Amendment  
Anti-Defection Law: Defection: (दल-द्वेष) (8th Schedule) → Political Instability, Coalition Fracturing, Horse Trading.

- Defection refers to the act of an MP (Member of Parliament) or MLA (Member of Legislative Assembly) switching allegiance from the political party they were elected under to another party. It also includes instances where an independent MP/MLA joins a political party after being elected.
- This law was introduced to address the widespread issue of political instability caused by frequent party-switching, famously referred to as the "Aya Ram, Gaya Ram" phenomenon in Indian politics.

Despite Anti-Defection Law, The defection is prominently practiced in Political Arena? (40% of Anti-Defection) → Mains

→ Bill proposed by Indira Gandhi, to secure candidates' MPs in her INC. (V.P. Charan Committee).

→ Passed by 52nd Amendment 1985 by (Rajiv Gandhi PM)

(Coalition Fragility and Political Instability) → [Weakening Democracy, Fall of Governments and Horse-Trading.]

UPSC mains → Despite Anti-Defection Law, the defection is prominently practiced in Current Political Arena? (40% of Anti-Defection)

Aya Ram, Gaya Ram: Famous phrase: Haryana MLA Gaya Lal switched 3 times party in 1967 in single day.  
→ (V.P. Charan Committee)

1967-1971: Various Fall of State and Central Govt. due to defections.

1977: Janata Party raised demand for Anti-defection reforms.

1985: Rajiv Gandhi

52nd Amendment 1985, Tenth Schedule.

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[26 June 2025]

## Chapter 05: Parliament

### Lecture 11: Anti-Defection Law, Privileges, Bills

#### Anti-Defection Law:

- The term 'Defection' refers to any MP/MLA changing his political party or independent MLA joining some political party. (This Defection started in 1967 (Rise of Regional Governments))
- This law was introduced to address the widespread issue of political instability caused by frequent party-switching, famously referred to as the "Aya Ram, Goya Ram" phenomenon in Indian politics.

#### Grounds for Defection:

- Elected MLA / MP joins other party → directions.
- Any MP/MLA abstains from voting in house or defies the whip of the party.
  - A legislator can avoid disqualification in this case if they have prior permission from the party or if the party condones their action within 15 days. [if Prior Permission from Party or if Party neglected]
- Independent MLA join some political parties.
- Nominated MP joins a political party after 6 months of nomination. (Nominated R.S. MP)

#### Exceptions of Anti-Defection Law:

- If two-thirds of the members of a legislature party decide to merge with another political party, it does not constitute defection. Initially, this threshold was set at one-third but was raised to two-thirds through the 91st Constitutional Amendment Act of 2003 to prevent misuse and encourage stability. When two political parties merge, any member of the legislature has the right to choose not to join the newly formed party. Such members are not considered to have defected, preserving their freedom of association. (During merger, if few member right to choose not to join)
- The Speaker, Deputy Speaker of the Lok Sabha and State Legislative Assemblies, and the Deputy Chairman of the Rajya Sabha and State Legislative Councils are exempt from disqualification under the Anti-Defection Law if they resign from their party upon election to their respective posts. This exemption ensures their impartiality while performing constitutional duties.

Note: Here Speaker/ Deputy speaker/ Deputy chairman can remain independent till the rest of their tenure.

Speakers try to maintain balance b/w their political career & constitutional post. (All speakers are politically aligned) except Somnath Chatterjee. (Non-partisan nature)

Under 10th schedule (Anti-Defection Law) → Judiciary barred from interfering in matters related to disqualification.

- The Tenth Schedule of the Constitution states that the judiciary is barred from interfering in matters related to disqualification under the Anti-Defection Law.

#### Importance of Anti-Defection Laws:

- Ensures Stability: Anti-defection laws contribute to government stability by preventing frequent shifts in party allegiance. (Prevent frequent shifts in government's MPs)
- Increases Faith in the Political System: These laws ensure that candidates elected with the support of their party and on the basis of the party's manifesto remain loyal to the party's policies. [Elected through App. remain loyal]
- Reduces Horse-Trading: The anti-defection law was introduced to curb the influence of money and prevent the practice of horse-trading, which involved bribery and cross-voting, leading to unstable governments. [but influence of money, involved bribery & cross-voting]
- Ensures Party Discipline: By discouraging defections, the law promotes greater party discipline and cohesion. (Ensures or promote party discipline)
- Addresses the Problem of Money-Muscle Power in Politics: The law has helped reduce the influence of money power in legislative processes, making government survival and passing of legislation less dependent on bribery. (influence of money & muscle power in legislation)

#### Issues with Anti-Defection Law:

- Against the Democratic Functioning of MPs: The law may limit democratic processes by restricting freedom of choice for elected representatives. (No freedom of choice for representatives)
- Misuse of the Law by the Speaker: The law has been misused in certain instances, such as in Arunachal Pradesh and Uttarakhand, where the Speaker was accused of falsely dissenting on MPs/MLAs. (Against the Opp MP/MLA)
- Limits Parliamentary Debates: The law restricts MPs' ability to express independent views due to the pressure of the party whip. (No independent views)

#### Way Forward:

- Reforms in the Speaker's office should include implementing the Supreme Court's directions in the Kaisham Meghchand case, such as a time-bound process for addressing anti-defection cases. (Time-bound process)
- The Law Commission's 1999 report recommends limiting the scope of the whip to ensure MPs have more freedom in decision-making. (Limit scope of the whip)
- As suggested by the Himachal Pradesh Assembly Bill 2024, post-retirement benefits of defector legislators should be withdrawn.

#### Functioning of Office of Speaker: (9mp for mains)

favoring their political party.

- The office of the Speaker has often been accused of favoring the ruling party.
- Bias decision making of speakers threaten the principles of parliamentary democracy.   
 → Biased decision.   
 (partiality behaviour)
- The Supreme Court, in various cases, has attempted to address concerns regarding the Speaker's impartiality.
- In the *Kihoto Hollohan case (1993)*, the Court held that the judiciary can review decisions made by the Speaker if intentions are mala fide.   
 (Judiciary can review if intentions are mala fide)
- In the *R.S. Naik case*, the Court ruled that the Speaker is obliged to accept the resignation of MPs or MLAs.
- In the *Kaisham Meghchand case (2020)*, the Court mandated that the Speaker must dispose of anti-defection cases within three months.   
 (3 months can disposal) delay when other party MP joins your party.
- Additionally, the Court suggested that the power to decide on disqualification should be entrusted to the (President or Governor) or an (independent tribunal) potentially consisting of a retired Supreme Court judge or [a retired High Court Chief Justice] because it is [a quasi-judicial process] hence [natural justice] should be applied.

*Kaisham Meghchand case (2020)*: Speaker must dispose the

Reforms in Speaker's office: Anti-Defection Cases in 3 months. (Speaker must hold when other

- Could apply the rule of [Once a speaker always a speaker] where the speaker's post should be ensured for that MP.   
 (Party MP joins your party)
- The Speaker could be granted a [lifetime seat in the Rajya Sabha] ensuring independence and long-term stability.
- To ensure impartiality, the [Speaker should be required to resign from their political party] upon assuming office.
- The Page Committee of Britain has suggested that the Speaker be given uncontested chance from his existing constituency.   
 (but it is unconstitutional)

Other Reforms in Speaker's office:

→ Power of certifying money bills shouldn't be misused.

- The power to certify money bills should not be misused, and to prevent this, India could adopt the British committee like system that can be used for certification. [Also certification committee on money bills comprising the Speaker and two senior MPs.]   
 (money bills Committee comprising Speaker and 2 senior MPs.)

Whip:

- The whip is neither a constitutional nor a statutory tool but a political tool used by parties to maintain discipline in the Lok Sabha, Rajya Sabha or Assembly.

- It ensures uniformity in decisions taken by the party through its MPs.
- This practice is taken from the British parliament.

Types of Whip:

- One-line Whip:** It is an informal system given to provide information but members are not bound to follow it (Casual in nature).
- Two-line Whip:** It is issued to give Directions to members to be present in the house and vote as per the party's direction. But if the MP fails to do so, then no action is taken against him.
- Three-line Whip:** The strictest form of whip, issued for critical matters such as no-confidence motions, budget approvals, and voting for Rajya Sabha or legislative assembly elections.
  - Deviation from a three-line whip often results in disqualification from party membership and removal from the house.

Chief Whip:

- The [Chief Whip is an MP] from a [political party responsible] for ensuring [the party's members function cohesively].
- In India, the post is recognized under [the Chief Whip Act, 1948]. The [minimum criteria for appointing chief whip in house]
  - A political party requires [at least 55 members in the Lok Sabha] or [25 members in the Rajya Sabha] to appoint a Chief Whip.

Pros of Whip:

- It ensures uniformity in the functioning of party members, maintaining consistency in their actions.
- It promotes discipline within the house, ensuring party members adhere to party directives.
- The whip helps align the party's decisions with its core ideology and objectives.

Cons of Whip

- It can be seen as undemocratic, as it restricts the MPs' freedom to make independent decisions.
- The whip may force MPs to act against their will, limiting their personal judgment.
- The whip often prioritizes party interests over the aspirations of the constituency. Thus, it takes away the independence of MPs.   
 (Party interests over aspirations of constituency)

Reforms in whip

- In the UK and the USA, the whip system allows greater independence for MPs.
  - Like in the UK, very few whips should be used.

- In the USA, members have free hand to decide the voting.
- India could adopt these practices.
- Whip is a conventional system.

[26th June, 2025]

Polity

(Imp)

## Chapter 06: Parliament

### Lecture 05: Bills of Parliament

→ Penalty for sitting in Parliament and voting without oath.

Article 104: The Article talks about the Penalty for sitting and voting in the house without taking the oath.

Article 105 (Parliamentary Privileges): [Article 105 & 194 collectively Parliamentary Privileges]

- Parliamentary privileges are special rights, immunities, and exemptions enjoyed by the two Houses of Parliament, their committees, and their members to ensure effective and efficient functioning.
- It is borrowed from the British system, and these privileges ensure the protection of lawmakers.
- As per Articles 105 and 194, the powers and privileges of Parliament and State Legislatures can be defined by law, but no comprehensive legislation has been enacted to codify them yet.
- The objective of parliamentary privileges is to ensure the independent, effective, and efficient functioning of parliament.

↳ 105: Privileges for the MPs.

194: Privileges for the MLAs (Assembly & Council)

Types of Privileges:

(A) Individual Privileges (for Members personally): { Individual Privileges }

① Freedom from Arrest (Civil Cases Only):

- Cannot be arrested during the session, 40 days before and after a session.
- Not applicable to criminal cases.

② Freedom of Speech in Parliament:

→ but sometimes misused: Dinesh Dikshiti Religious & Abusive remarks on Danish Ali

- Protected under Article 105(2) and 194(2).
- No member shall be liable in any court for speech made or votes given in the House.

③ Exemption from Jury Service:

→ For any speech and vote (Freedom)

- Members are not required to serve on juries during their tenure. (No power to sit as jury)

(B) Collective Privileges (for the house as a whole): Collective privileges are for maintaining the dignity of the house. These privileges belong to the House of Parliament collectively. (To maintain dignity of the House)

o Right to publish debate:

- It has the right to publish its reports, debates, and proceedings, and also the right to prohibit others from publishing the same. (Remove some unauthorized parts from Proceedings)
- Example: Authorised parliamentary debates vs unauthorized debate.

People participate in  
Parliamentary session  
↳ MPs ↳ visitors  
↳ Attorney Gen ↳ support staff.  
↳ media

#### Hold secret sittings:

- It can exclude strangers from its proceedings and hold secret sittings to discuss some important matters. (matters of national interest or integrity)

- Secret sittings are declared by the speaker and chairman.

- Example: Lok Sabha (1961), Chhattisgarh assembly (recently)

#### Right to regulate own procedure:

- It can make rules to regulate its own procedure and the conduct of its business and to adjudicate upon such matters. **Banned unparliamentary words.**
- For Example, parliament adds or removes unparliamentary words

#### Right to punish for breach of privileges:

- It can punish members as well as outsiders for breach of its privileges or its contempt by reprimand, admonition, or imprisonment (also suspension or expulsion, in case of members).
- Example: **Keshav Singh Case (1965)** (Keshav Singh Case (1965))

#### Important Case Laws:

→ Conflict b/w Judicial Review & Legislative Privileges

- Keshav Singh Case (1965):** Conflict between judicial review and legislative privileges.
- Reja Ram Pal v. Lok Sabha (2007):** Parliament can expel members, but judicial review is permitted in cases of mala fide.
- P.V. Narasimha Rao Case (1998):** MPs are immune from prosecution for bribes related to votes in Parliament.

#### Issues with parliamentary privileges: (Important for mains)

- Not codified:** It has ambiguity and a lack of clarity. (Ambiguous and lack of clarity)
- Not mentioned in the constitution:** The concept of breach of privilege is very vague; nowhere in the constitution are the privileges defined. (Only Privilege mentioned: No limitation on its scope)
- Against the rule of law:** The concept of parliamentary privileges provided by the Constitution and the Rule of Law is supposed to be inconsistent with each other. (allows arbitrary actions)
- Jeopardises (compromises):** It compromises freedom of speech and expression under Article 19 (doctrine of chilling effect applies to it) It always instills fear in citizens. (curtails Freedom of speech of citizens)
- Invades on constitutionalism:** Our legislators have the power to be the sole judges to decide what their privileges are, what constitutes their breach, and what punishment is to be given. Such wide power is against constitutionalism.

★ (Grounds of Disqualification and Suspension)

- # Benefits →
- maintains integrity and sanctity of the Parliament.
  - Protects MPs from executive/judicial overreach.
  - Helps eliminate external interference.

- Increased misuse of breach of privilege:** In 2017, the Karnataka assembly Speaker ordered the imprisonment of two journalists for a year based on recommendations in two separate reports of its privilege committees. (Karnataka and UP Assembly case)
- Against preamble:** [Absolute freedom of speech places] them above the citizens, [which hinders] the [preamble value that starts with "We the People of India"] and not [We the parliamentarians of India].
- Affecting equality:** [Giving special rights and immunities to parliamentarians is contemplated as opposing and undermining equality.]
- Immunity from court:** The [most controversial aspect of parliamentary privilege] is the power and jurisdiction of courts to review parliamentary privileges. [Power of courts to review the parliamentary privileges]
- Global experience:** Today, even the British Parliament has broken away from its tradition of treating criticism as infringing parliamentary privileges. Britain has now codified their parliamentary privileges. The U.S. House of Representatives has been working without any penal powers for nearly two centuries, and Australia has also codified the privileges.

#### Solutions and Reforms: (Important)

- Codification:** Codify privileges as recommended by the Venkat Chaliah Committee. Codification of privileges is necessary, which means there is a need to define them thoroughly. Once the privileges are embodied in the legislative enactment, this would enhance the accountability of the legislature. (Only for core legislative functions)
- Limit Usage:** Using it in a very limited form. Use it to only for core legislative functions.
- Balance with fundamental rights:** Need to be balanced with fundamental rights. Avoid misuse to restrict Article 19 (freedom of speech).
- Judicial Scrutiny:** Codification would be open to judicial scrutiny and would be tested consistently with constitutionalism. (When codified, subject Privileges to judicial review in case of arbitrariness)
- Global Examples:** Countries such as the USA, Australia, Britain, and New Zealand now have codified privileges. (MPLADS/MNULDS (Member of Parliament Local Area Development Scheme))

#### Member of Parliament Local Area Development Scheme

- MPLADS is a Central Sector Scheme introduced in 1993. (Central sector scheme launched in 1993)
- Objective:** To enable Members of Parliament (MPs) to recommend developmental work in their constituencies with an emphasis on creating durable community assets based on locally felt needs.
- Administrative body:** The Ministry of Statistics and Programme Implementation is the nodal agency for the implementation and monitoring of the scheme. (Nodal implementing Agency → MOSPI)
- Key features:**

Implementation: A state level nodal agency oversees MPLADS, while district administration sanction projects, allocate funds, and ensure implementation.

**PW ONLYIAS**  
BY PHYSICS WALLAH

and ensure implementation on recommendation of MP.

- Jurisdiction of MPs:**
- Implementation: A state-level nodal department oversees MPLADS, while district authorities sanction projects, allocate funds, and ensure implementation.
  - No direct transfer of funds to members of parliament. (Allocate Funds through District Authority).
  - MP has only recommendatory powers, and implementation lies with the district authority.
  - The fund is non-lapsable during the tenure, unspent funds can be carried forward within the term. (Non-lapsable → called cumif not used)
  - The Annual MPLADS fund is Rs. 5 crore per MP constituency. (carry over)
  - Focus areas are drinking water, sanitation, education, health, solar lighting, street lights, libraries etc.
  - MPs must recommend work yearly for SCs (15%) and STs (7.5%) areas out of the total amount. (15% for SCs and 7.5% for STs) → Fund for development areas.
  - Lok Sabha Members can recommend works within their constituencies.
  - Elected Members of the Rajya Sabha can recommend works within the State of Election.
  - Nominated MPs in the Rajya Sabha can recommend works anywhere in India.
- Issues and criticisms: (Important for mains)** (From CAG Report (2017))
- Violation of Separation of Powers:** (Clash b/w developmental powers of MP & DM)
    - Criticism [MPLADS] blurs the line between the legislative and executive functions.
    - Reason: [MPs are legislators] but [the scheme allows them to influence executive work (like selecting development projects), which is typically not their domain]
    - The 2nd ARC highlighted MPs' involvement in the executive functions. (in 2017)
  - Underutilization of Funds:** From CAG report → (2009-2014) (in 2017)
    - Large amounts of funds often remain unspent or are not fully utilized within the year.
    - Delays in sanctioning and implementing projects reduce the scheme's effectiveness.
  - Ineffective implementation:** (More than 80% of portion of funds unused or delayed in disbursement)
    - District authorities often lack proper oversight mechanisms.
    - Lack of planning and monitoring of funds used for non-priority works.
  - Durable assets not created:** (Project lacks sustainability or long term utility)
    - Corruption and lack of transparency: (Tenders to the relatives/friends)
    - Poor accountability and scope for local-level misuse.
  - Political Bias and Misuse:**

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Political Bias and to gather vote banks: MPs may use the scheme to favor certain areas or communities to secure vote banks. ↳ No needs or interest of people, only political biasness.



- MPs may use the scheme to favor certain areas or communities to secure vote banks.
  - Projects may not reflect real local needs but political interests.
- Way Forward: (Important for mains)**
- Increase Citizen Participation:** (Awareness drives 2 local inputs for better utilization)
    - Awareness drives and local input in identifying needs to ensure better utilization of funds.
  - Focus on Durable and Sustainable Assets:** (Emphasis on long term community assets)
    - Emphasis on long-term community assets such as schools, health centres, and renewable infrastructure.
  - Regular Social Audits:** (Community-based monitoring and auditing to ensure transparency and reduce corruption)
    - Community-based monitoring and auditing to ensure transparency and reduce corruption.
  - Better Monitoring Mechanisms:** (Digital dashboards & third party evaluation)
    - Use of digital dashboards and third-party evaluations to track progress. party evaluation

↳ Reference of Report and the content (in handout).

**Article 106:** Salaries and allowances of MPs shall be determined by the parliament by law.

↳ Salaries and allowances of MPs shall be determined by parliament by law.

**Article 107 (Bills):**

- Bills are draft laws. These are documents discussed in Parliament. If passed, it becomes law. When a bill is passed by law by parliament and signed by the President, it becomes the law. For example, the [Uniform Civil Code bill]. Bills are draft laws, discussed in Parliament.
- They are proposals by the lawmakers, which, when approved/passed by the Parliament, are termed laws/acts.
- A bill is a proposal for legislation that becomes law after passing in both houses and receiving the president's assent. ↳ A bill is a document or proposal for legislation that becomes law after passing in both houses and receiving the President's Assent.

**Classification of the Bill:**

| Public Member Bill                                                                                                                                                                                                                                                  | Private Member Bill                                                                                                                                                                                          |
|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <ul style="list-style-type: none"> <li>Introduced by the ministers (part of ruling party).</li> <li>Priority is given to such a bill, followed by cabinet MPs. (Lower priority)</li> <li>Generally from Executive/Com.</li> <li>Finance bill/ Farm Laws.</li> </ul> | <ul style="list-style-type: none"> <li>Introduced by those other than the government MPs. (Lower priority)</li> <li>They are introduced on Friday only.</li> <li>Transgender Right Bill (earlier)</li> </ul> |

Note: The above bifurcation of bills is not mentioned in the Constitution

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**# Relevant Report & References of MPLADS**

- 2nd Administrative Reforms Commission Report (2007)
- CAG Audit Reports → Irregularities in Fund Usage and Non completion of projects.
- NITI Aayog (National Institution for Transforming India) → Norms, SOP.

## # Classification of Bills

↳ Ordinary Bills (A-107)

↳ Money Bills (A-110)

↳ Financial Bills (A-117)



↳ Constitutional Amendment Bills.

### ① Ordinary Bill:

↳ Ordinary Amendments

↳ Money related Amendments.

↳ Public member bill

↳ Private member bill

These are of two types: Government Bills and Private Member Bills.

As per Articles 107 and 108 of the Indian Constitution, an ordinary bill is concerned with any matter other than financial subjects.

↳ Art-107 and Art-108.

↳ Any matter other than Financial subjects.

It consists of matters dealing with non-financial issues.

An ordinary bill can be introduced in either House of Parliament. This bill can be introduced by a Minister or a Private Member.

↳ Can be introduced in either house of Parliament

There is no recommendation of the President required in the case of ordinary bills.

Example: Farm law, IT Act, Environmental laws.

↳ No recommendation of President.

### ② Money Bill (Article 110):

↳ (Farm Law, IT Law, Environmental Law)

Deals only with money-related matters like taxation, borrowing, Consolidated Fund of India, etc.

Can be introduced only in the Lok Sabha and only by a Minister.

The president's recommendation is mandatory. (Prior Recommendation)

Rajya Sabha cannot amend a Money Bill; it can only make recommendations within 14 days.

These recommendations Lok Sabha may accept or reject them. (May accept or reject recomm.)

Under Article 110 (1) of the Constitution, a Bill is deemed to be a Money Bill if it contains only provisions dealing with all or any of the following matters, namely:

- The imposition, abolition, remission, alteration or regulation of any tax.
- The regulation of the borrowing of money or the giving of any guarantee by the Government of India, or the amendment of the law with respect to any financial obligations undertaken or to be undertaken by the Government of India.
- the custody of the Consolidated Fund or the Contingency Fund of India, the payment of money into or the withdrawal of money from any such fund
- The appropriation of money out of the Consolidated Fund of India.
- the declaration of any expenditure to be expenditure charged on the Consolidated Fund of India or the increase of the amount of any such expenditure.
- The receipt of money on account of the Consolidated Fund of India or the public account of India or the custody or issue of such money, or the audit of the accounts of the Union or of a State.
- Any matter incidental to any of the matters specified in sub-clauses (a) to (f) for the imposition, regulation, alteration, remission, or abolition of taxes.

What is not a Money Bill:

## ③ Financial Bills: (Article 117)

↳ Financial Bill I: provisions of money bills + other matters. Treated as money bill.

↳ Financial Bill II: Contains provisions related to expenditure or revenue, not exclusively money related; Treated as ordinary but requires President's Recommendation.



- Article 110(2) A Bill is not deemed to be Money Bill by reason only that it provides for the imposition of fines, fees or other pecuniary penalties, or for the demand or payment of fees for licenses or fees for services rendered, or by reason that it provides for the imposition, abolition, remission, alteration or regulation of any tax by any local authority or body for local purposes.

Imp

Process of a Bill (Simplified Flow): Bills imposing fines, fees or penalties or levying taxes by local authorities like (municipal taxes).

Stages of Legislation: Every bill goes through three stages.

### First reading (introduction of the bill):

- A minister or a member introduces the bill on the floor of the house (in either house of the Parliament).
- No discussion takes place at this stage.
- After the introduction, it is published in the Government Gazette (legal document).
- The members will get a copy and time to read the bill.

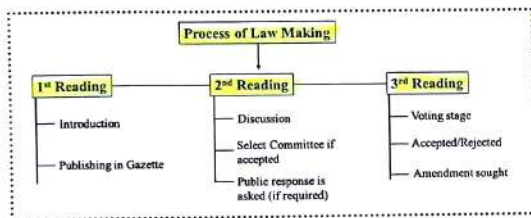
### The Gazette of India:

- The Gazette of India is the authorized legal document of the Government of India, published as a public journal (now available in electronic format as well), usually in a weekly format.
- Extraordinary gazettes are published every day, depending on the urgency of the matter. All laws, government rules, orders, and notifications have to be published in the gazette before they take effect.
- It is published by the Controller of Publications, who is placed under the Ministry of Urban Affairs.

### Second Reading (Discussion):

- In this stage, a general discussion takes place. The members try to have a detailed discussion over here.
- In the second stage, a Select Committee of the House asks for public opinion of the House. It may also refer the bill to a joint committee of the two Houses. Thus, the formation of a committee happens in this reading.
- Changes are made if required in the bill. This is the most detailed reading of the bill that is in discussion. This is usually the most important and most discussions and debates take place at this stage.
- Committees usually get 40 days to consider the bill. It may circulate the bill to elicit public opinion.

- If there are various considerations for different committees, they are handled by the respective committees.
- **Third Reading (the bill is put to a vote):**
  - In the third reading, the bill can be accepted, rejected, or passed with an amendment.
  - Which method is used for voting (voice or count) is decided by the speaker.
- Bill is now sent to the Second House. Here, the three stages are repeated.
- In case of an ordinary bill, what will the second house do? The second house:
  - can pass the bill or pass with amendments or reject the bill, or keep the bill pending.
  - If the second house takes no action for 6 months, a deadlock appears, which is acted upon through a joint sitting.
  - NOTE: When situations 2, 3, and 4 arise, Article 108 comes into force.
- After the president's assent, the bill becomes an act.



Procedure for Passing a Money Bill (Article 110):

- A Money Bill can only be introduced in the Lok Sabha.

- It must be introduced by a Minister (usually the Finance Minister).
- It requires the President's prior recommendation.
- The speaker certifies the money bill, and the decision of the speaker is final and non-justiciable.
- The bill is first debated and passed (passed 3 stages) in the Lok Sabha.
- A simple majority is needed (more than 50% of members present and voting).
- After passing in the Lok Sabha, the Money Bill is sent to the Rajya Sabha.
- Rajya Sabha cannot amend a Money Bill.
- It can only make recommendations within 14 days.
- If the Rajya Sabha does not take any action in 14 days, then the bill is deemed to have passed.
- Lok Sabha may accept or reject Rajya Sabha's recommendations.

- If Lok Sabha ignores the suggestions or the Rajya Sabha doesn't act within 14 days, The bill is deemed to have been passed by both Houses in the form passed by the Lok Sabha.
  - The bill is sent to the President for assent
  - The President cannot return a Money Bill for reconsideration.
  - Once the President gives assent, the bill becomes a law. (Done) ✓
- For e.g. Aadhar bill (2016) classified as money bill → sparks Constitutional debate.
- Issues with Certification of Bills: (imp)**

1. **Allegations of misusing Article 110 to bypass the Rajya Sabha.**
  - Examples: Aadhaar Act, Finance Bills post-2017, Cession of Liability Bill
2. **Judiciary's Stand:**
  - In *Raja Ram Pal (2007)* and the *Puttaswamy Case*, the court upheld that the Speaker's certification is final and cannot be challenged.
3. **No Clear Guidelines or Accountability:**
  - There are no strict guidelines or procedures for what should or shouldn't be certified as a Money Bill.
  - The Speaker's certification is final, but there's no requirement to justify or explain the certification.

**Article 108 (Joint Sitting of Both Houses in case of ordinary bill):**

- A joint sitting of both Houses may be called by the President when there is a deadlock over an ordinary bill (not a money bill or a constitutional amendment bill). The deadlock happens if:
    - A bill is passed by one House and rejected by the other, or
    - The two Houses disagree on amendments, or
    - More than 6 months have elapsed without the other House passing the bill.
  - In any of these cases, the President may summon a joint sitting under Article 108(1).
  - This joint sitting will be presided over by the speaker, deputy speaker, deputy chairman of Rajya Sabha, or any member of the House if the speaker is absent. (The chairman of Rajya Sabha is not allowed to conduct the joint sitting, because he is not an elected member of the house.)
  - This joint sitting will not be notified if the bill has lapsed because of the dissolution of the Lok Sabha.
  - Bills passed via joint sittings:
    - Dowry Prohibition Bill, 1961
    - Banking Service Commission (Repeal) Bill, 1978
- When deadlock occurs b/w LS and RS, after 6 months. Pending in Second house. (6 months of inactivity or disagreement)
- dissolution of Lok Sabha → (no joint sitting)

- ↳ Dowry Prohibition Bill, 1961
- ↳ Banking Service Commission (Repeal) Bill, 1978
- ↳ Prevention of Terrorism Bill, 2002
- ↳ Women's Reservation Bill but not passed (2008)

- Prevention of Terrorism Bill (POTA), 2002
- Women's Reservation Bill (2008) was introduced but not passed.

**Lapse of a Bill** (Involvement of Lok Sabha: then lapsed after dissolution of L.S.)

- Lapse of the Bill: It means the bill will lapse in certain circumstances.
- The bill will not lapse on the prorogation of any house.
- Bills that originate in the Lok Sabha and are pending there will lapse on the dissolution of the Lok Sabha. (1) Introduced in Lok Sabha and pending.
- Bills passed by the Rajya Sabha and pending in the Lok Sabha will lapse on the dissolution of the Lok Sabha. (2) Passed by LS, pending in R.S.
- Bills passed by the Lok Sabha and pending in the Rajya Sabha will lapse on the dissolution of the Lok Sabha. (3) Introduced in R.S, pending in L.S.
- Bill originated in Rajya Sabha, was passed by it, and was sent to Lok Sabha.
- Lok Sabha also sends it back with amendments, which are pending with Rajya Sabha, and will lapse on the dissolution of Lok Sabha. (4) Sent from RS to LS and return with amendments not resolved.

**Bills that do not lapse?**

- Bills that originated in the Rajya Sabha and are currently in the Rajya Sabha will not lapse on the dissolution of the Lok Sabha. (1) originated in RS and pending in R.S.
- Bills that are pending for presidential assent will not lapse. (2) Pending with President for Assent
- Bills notified for a joint sitting will not lapse.
- Bills returned by the President to the Rajya Sabha will not lapse. (3) Returned for joint sitting
- Bills pending with the committee on assurances will not lapse. (4) President withholding Assent (veto) pending before Committee on Assurances

**Article III (Assent to Bills):** Art-III (President's Assent) (3) pending before Committee on Assurances

- When a Bill has been passed by both Houses of Parliament, it is presented to the President for assent.

The President has two options:

- Give assent, the bill becomes law.
- Withhold assent, the bill does not become law. → Absolute veto
- Return the bill (if it's not a money bill) to Parliament with a request for reconsideration. If Parliament passes the bill again, with or without amendments, the President must give assent. → Suspensive veto.

- Veto Powers of the President under Article III:

(1) Absolute Veto:

- The President refuses to give assent to a bill. When cabinet advice due to change in priority.
- Effect: The bill dies and does not become law, unless again introduced and passed.
- Example: In 1954, President Dr. Rajendra Prasad used an absolute veto on the PEPSC Appropriation Bill after the Assembly was dissolved.

(2) Suspensive Veto:

- It means returning the bill back to the house for reconsideration. bill
- This power can be used only once because if the house returns the bill back, with or without the amendment, it has to be signed by the President.
- However, if the House passes it again, the President has to sign it (not in the case of a money bill). (Not a money bill)
- Example: President A.P.J. Abdul Kalam used this power for the Office of Profit Bill 2006.

(3) Pocket Veto:

- Parliament (Prevention of Disqualification) Amendment, 2006.
- The President can keep the bill without signing it pending with him for any indefinite period. (In the USA, it can be kept for 10 days).
- No pocket veto is applicable to constitutional amendment bills.

- Example: In 1986, President Zail Singh exercised the pocket veto with respect to the Indian Post Office (Amendment) Bill.

- This pocket veto has been questioned for its unlimited time period, whereas the U.S. President has only 10 days for this power.
- Constitutional punctuality can be the solution for this problem. It means that the constitutional offices should discharge their duty in a time-bound manner.

(4) Qualified Veto:

- It is used by the US President in case of denial by the Senate.
- In this scenario, the US Senate can override the decision of the President by 2/3 majority.
- Qualified veto is not available to the Indian President.

Note:

- The President must give assent to the constitutional amendment bill (Article 368) because no veto is allowed.

Reasons behind veto power:

(Reasons)

- To ensure that no unconstitutional bill becomes the law.
- To ensure there is no hasty legislation is passed.

Polity

(3mp)

[29th June, 2025]

↳ Private bills

↳ Budget

## Chapter 06: Parliament

### Lecture 06: Budget and Financial Bills

#### Private Members Bill:

- The provision related to the private members bill is not mentioned in the constitution.
- The bill is introduced by MPs who are not part of the council.

#### Procedure to introduce the bill:

- A member moves a proposal.
- Then he/she sends the copy of the bill to the secretariat.
- Thereafter the secretariat checks the legislative competence of the bill.
- The expenditure related to introduction of the bill is assessed.
- If it is a money bill, then the prior notice and the recommendation of the President is required.
- At least one month before the introduction of the bill, prior notice should be given.
- Discussion on the private members bill will be on Fridays only.
- The bill is selected through a lottery system.

#### Status of private members bill:

- The private members bill was last passed in 1970.
- It is the least priority in the parliamentary procedure.
- Till date only 14 bills have been passed.

#### Article 112: Annual Financial Statement (Budget):

- Article 112 of the Indian Constitution mandates that it is the duty of the president to lay **Annual Financial Statement** (commonly known as the Budget). The budget outlines the estimated receipts and expenditures of the Government of India for a particular financial year.

#### Components of the Budget:

- The annual financial statement consists of the **estimated expenditure** required by the government, including salaries, operational costs, development projects, and other heads of expenditure.

- It also highlights the expected **revenue and earnings** of the government from various sources, such as taxes, fees, and borrowings.

#### Expenditure and Consolidated Fund of India:

- According to Article 112, **no money** can be withdrawn from the **Consolidated Fund of India** without the passage of the **Appropriation Bill** by Parliament. This ensures that all government expenditure is scrutinised and authorised by the legislature.
- The budget also includes expenditures "**charged upon**" the **Consolidated Fund of India**.

#### Charged Expenditures:

These expenditures are non-votable, meaning they do not require Parliament's approval through a vote, though they are only discussed in the budget session. They include:

- Salaries and allowances** of the President, Chairman and Deputy Chairman of the Rajya Sabha, and the Speaker, Deputy Speaker of the Lok Sabha and judges of the Supreme Court, **Pensions** of High Court judges.
- Administrative expenses** of the supreme court, the office of the CAG and UPSC including salaries, allowances and pensions of the persons serving in these offices.
- Any sum required to satisfy any **judgment, decrees, or awards** of any court or arbitral tribunal.
- Debt charges** for which the Government of India is liable, including interest payments and repayment of loans.
- Any other expenditure declared by the parliament to be so charged.

#### Types of Expenditure in the Budget:

The budget consists of two major types of expenditure:

- Expenditure Charged upon the Consolidated Fund of India:** These are non-votable expenditures that cannot be altered or refused by Parliament, as mentioned above.
- Expenditure Made from the Consolidated Fund of India:** This includes all other expenditures that require the approval of Parliament through the voting process, such as development programs, defence spending, and welfare schemes.

#### Process of Budget:

The **budget** is a comprehensive statement of the government's finances, including details of its revenues and expenditures for a particular financial year. The process of passing the budget involves several stages:

##### Introduction Stage:

- The budget is introduced in the **Lok Sabha** as a **Money Bill** (since it deals with financial matters).

- After the **Lok Sabha** discusses the budget, it is sent to the **Rajya Sabha** for discussion. However, the **Rajya Sabha** does not have the power to amend or reject the budget, as it is a **Money Bill**. It can only offer suggestions, which the **Lok Sabha** may choose to accept or reject.

##### Discussion Stage:

- Once introduced, the budget enters the **discussion stage** in the **Lok Sabha**.
- Members of Parliament discuss various heads of expenditure proposed in the budget.
- It is important to note that **charged expenditures** (those "charged upon" the Consolidated Fund of India, such as salaries of high officials) cannot be voted on. They are discussed but not subject to voting.

##### Committee Stage:

- After the general discussion, the budget is referred to **Departmental Standing Committees** for detailed scrutiny.
- These committees examine the budgetary proposals of various ministries, ensuring that the allocations are justified and appropriate.
- The committees submit their reports to Parliament, based on which further discussions and decisions are made.

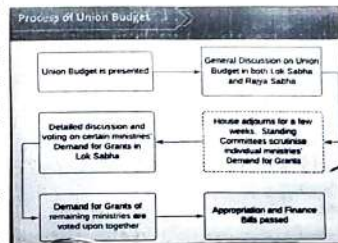
##### Voting Stage:

- In the **voting stage**, the **Lok Sabha** votes on the **Demand for Grants**, which represents the estimates of expenditure for each ministry.
- The **Rajya Sabha** can only discuss the Demand for Grants but does not have the power to vote on them.
- Usually, each demand is voted on separately, but in some cases **guillotine** is used.

→ French word (EXECUTE)

##### Guillotine in Parliamentary Procedure:

In the context of Indian parliamentary procedure, the term '**guillotine**' refers to the process by which Parliament expedites the passage of the **Demands for Grants** when there is insufficient time for a detailed discussion on the expenditure of all ministries.



- Due to time constraints, Parliament cannot scrutinise and debate the budgetary demands of each ministry thoroughly.
- Once the **prescribed period** for discussing the **Demands for Grants** is over, the **Speaker of the Lok Sabha** invokes the **Guillotine** process.
- In this process, **all outstanding Demands for Grants**, whether they have been debated or not, are put to vote collectively without further discussion. This allows Parliament to approve government expenditure before the financial year begins.

Guillotine is an essential tool to ensure that budgetary processes are completed on time, even if not all demands are scrutinised in detail.

#### Cut Motions

- Cut motions are used by the members of the Lok Sabha to express dissatisfaction with the specific demands for grants proposed by the government.
- These motions allow members to suggest a reduction in the budgetary allocation for a particular item.

**Types of Cut Motions:** (3 line whip Issued during budget Approval)

- **Disapproval of Policy Cut Motion:**
  - This motion signifies total disapproval of the government's policy underlying a particular demand. It proposes that the amount of the demand be reduced to Re. 1, symbolising complete disagreement with the policy.
  - Members can also suggest alternate policies.
- **Economy Cut Motion:**
  - This motion calls for a reduction in the demand for grants by a specific lump-sum amount.
  - It indicates that the proposed expenditure is too high and should be reduced.
- **Token Cut Motion:**
  - This motion is moved to raise a specific grievance without affecting the overall budget demand.
  - It proposes a symbolic reduction in the demand by Rs. 100, representing a concern about a particular issue or policy.

#### Process:

##### Conditions for Moving a Cut Motion:

A cut motion, to be admissible, must satisfy the following conditions:

- Relate to one demand/specific matter only
- Clear expression and without any argument or defamatory statements.

- No suggestions for the amendment or repeal of existing laws
- Matter is not under the court adjudication [Matter must be in jurisdiction of Parliament]
- It should not be on charged expenditure.

If opposition is successful in bringing any policy cut motion, then it can introduce no confidence motion.

#### Significance of Cut Motions:

- Cut motions are an important tool for members of parliament to:
  - Criticize government policies and demand changes.
  - Highlight wasteful expenditure and advocate for efficient use of public funds.
  - Raise public grievances and demand action from the government.
  - Hold the government accountable for its actions.
- By using cut motions, members of parliament can play a crucial role in shaping government policies and ensuring that public funds are used effectively and efficiently.

#### No Confidence Motion:

- It is a parliamentary tool of Lok Sabha where opposition indicates that it has lost its confidence in the council of ministers.
- Rule 198 of Lok Sabha suggests that any member can introduce it along with 50 supporting members.
- The speaker will allocate a time for discussion (Within 10 Days).
- On the day of discussion if the motion is passed by **simple majority** then the government has to resign else the government will continue.
- It is a check on the executive.
- The speaker has only procedural discretion and not substantive one.
- No reason is required for introduction of no confidence motion.
- One no confidence motion can be brought per session. (Convention)
- The ruling government can also bring a confidence motion to show its strength.

#### Art 116: Vote on Account/ Interim Budget:

| Interim Budget                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       | Vote on Account                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |
|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <ul style="list-style-type: none"> <li>An interim budget is presented by the government in the Parliament if it does not have the time to present a full budget, or if the general elections are approaching.</li> <li>In the case of approaching elections, it is only feasible that the incoming government frames the full budget.</li> <li>In case, the government is not able to present the full budget before the end of the financial year, it will require parliamentary approval for incurring expenditure in the new financial year until a new budget is passed.</li> <li>Until the Parliament discusses the budget and passes it through the Interim budget, the government passes a vote-on-account which will allow the government to meet its expenses of administration.</li> </ul> | <ul style="list-style-type: none"> <li>Vote-on-Account is a provision by which the government seeks Parliament's approval for funds that are sufficient to bear the expenditure till the formation of a new government takes place.</li> <li>A vote-on-account lists only the expenditure borne by the government.</li> <li>Vote-On Account is treated as a formal matter so it can be passed by the Lok Sabha without discussion.</li> <li>Vote on Account cannot change the Direct Taxes at any cost. Any alteration in direct taxes can only be brought about by passing of the Finance Bill.</li> <li>The vote-on-account can be passed through the Interim budget.</li> </ul> |

- The term 'interim budget' is not mentioned in the constitution but the term 'vote on account' is mentioned in the constitution.

### Appropriation Bill:

- Grants approved are listed in the appropriation bill.
- As per Art 113, if the Lok Sabha approves the grants then under Art 114 an appropriation bill will be passed to take money out of the consolidated fund of India.
- It is a legal authorization to spend money by the government.
- Once the bill is passed then the 2/3rd process of the budget is passed.
- The Finance Bill consists of tax proposals of the government.

Note: Once approved, the appropriation bill cannot be amended.

### Key Difference:

| Feature     | Appropriation Bill           | Vote on Account             | Interim Budget                                        |
|-------------|------------------------------|-----------------------------|-------------------------------------------------------|
| Purpose     | Authorize full-year spending | Temporary funding           | Financial statement & limited policy                  |
| Scope       | All revenue & expenditure    | Primarily expenditure       | Revenue & expenditure, with focus on past performance |
| Timing      | After Union Budget           | When regular budget delayed | Election year                                         |
| Key Feature | Parliamentary approval       | Short-term funding          | Presented by caretaker government                     |

[29th June 2025]

## Polity

### Chapter 06: Parliament

### Lecture 07: Budget and Financial Bill

- ↳ Grants
- ↳ Committee

**Types of grants** (Grants Taken from Parliament while when Fund under Executive Administration)

The Indian Parliament utilizes several types of grants to authorize government spending.

- Ordinary Grants:** Core of the budget, allocated to ministries and departments for their regular functioning (e.g., defense, education, health).
- Supplementary Grants:** Sought when original budget funds are insufficient (e.g., natural disasters, emergencies).
- Additional Grants:** Obtained for new services or programs not included in the original budget (e.g., new social welfare schemes).
- Excess Grants:** Sought when expenditure exceeds the original budget, requiring retrospective approval.
- Vote on Account:** Interim funding granted when the regular budget is delayed (e.g., during elections).
- Vote of Credit:** Granted to meet unexpected demands (e.g., war, natural calamities).
- Exceptional Grants:** Granted for unforeseen circumstances or special projects.

### Various Kinds of Grants

| Grant Type                 | Description                                                                                                                                                                                                                                                                                          |
|----------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>Supplementary Grant</b> | When the amount authorized for service for the current financial year is found to be insufficient for that year. (1000 Cr for skill development scheme) Need more 200 Cr for AI development                                                                                                          |
| <b>Additional Grant</b>    | Additional expenditure upon some new services not contemplated in the budget for that year. (No need for request for)                                                                                                                                                                                |
| <b>Excess Grant</b>        | When money has been spent on any service during a financial year more than the amount granted for that service in the budget for that year.<br>Before the demands for excess grants are submitted to the Lok Sabha for voting, they must be approved by the Public Accounts Committee of Parliament. |

↳ Post-Facto Approval when exp. exceeds budget.

↳ When there is no time to request for Supplementary or Additional Grants,

PW Web/App: <https://smart.link/7wwoosvnpjcl>

↳ Bills are carry forward (Freq. in Covid) → Becomes 'liability'.  
Allocated: 501000 Cr  
Expenditure: 751000 Cr  
But Needs to be Approved by PAC

→ When grant for meeting sudden unexpected demand.  
Advanced Approval, requires Parliament Approval.



|                                                                                                                                                                                                                                        |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |
|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>Vote of Credit</b>                                                                                                                                                                                                                  | <ul style="list-style-type: none"> <li>It is granted for meeting an <b>unexpected demand</b> upon the resources of India, when on account of the magnitude or the indefinite character of the service, the demand cannot be stated with the details ordinarily given in a budget.</li> </ul>                                                                                                                                                                                                                      |
| <b>Exceptional Grant</b>                                                                                                                                                                                                               | <p><b>Olympic Conference</b><br/>It is granted for a special purpose and forms no part of the current service of any financial year. (To fund something one-time + extraordinary)<br/>↳ For something not covered in BFs.</p>                                                                                                                                                                                                                                                                                     |
| <b>Taken Grant</b>                                                                                                                                                                                                                     | <ul style="list-style-type: none"> <li>It is granted when funds to meet the proposed expenditure on a new service can be made available by <b>reappropriation</b>. (Reorganize/Readjustment)</li> <li>A demand for the grant of a token sum (of Re 1) is submitted to the vote of the Lok Sabha and if assented, funds are made available.</li> <li>Reappropriation involves <b>transfer of funds from one head to another</b>. It does not involve any additional expenditure. (No extra Expenditure)</li> </ul> |
| <p>Note: Supplementary, additional, excess and exceptional grants and vote of credit are regulated by the same procedure which is applicable in the case of a regular budget. (Yes, Requires Assent from Parliament as money bill)</p> |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |

### Consolidated Fund of India vs. Public Account of India vs. Contingency Fund of India

#### 1. Consolidated Fund of India (CFI):

- This is the **most important fund** of the Government of India. All revenues received by the government (such as taxes and non-tax revenues) and all loans raised by the government are credited to this fund.
- All government expenditures are made from this fund, but no money can be withdrawn from the CFI without the approval of Parliament through the Appropriation Bill.

#### 2. Public Account of India:

- The Public Account is used to handle transactions that are **not part of government revenues** but still belong to the government in a fiduciary capacity. These include items like **small savings, provident funds, deposits, and judicial deposits**.
- These funds do not require the approval of Parliament for withdrawal, as they are handled through executive decisions.

#### 3. Contingency Fund of India:

- This is a fund used to meet **unforeseen or emergency expenses**. The Contingency Fund is kept at the disposal of the President of India.

∴ Pm Care Fund (Charitable Fund): Not under RTI and Non-taxable.



- The fund can be used without prior parliamentary approval, but the amount spent from this fund must be later replenished through Parliament's authorization. (आकस्मिकता)

### Comparison between Different Types of Funds

(Abrupt/Sudden)

| Aspect                             | Consolidated Fund of India                                                                         | Public Account of India                                                                         | Contingency Fund of India                                                                                                    |
|------------------------------------|----------------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------|
| <b>Constitutional Article</b>      | Article 266                                                                                        | Article 266                                                                                     | Article 267                                                                                                                  |
| <b>Nature of Receipts/Payments</b> | All receipts are credited and all payments are debited.                                            | All public money other than those credited to the CFI shall be credited here.                   | Amounts determined by Parliament by law are paid from time to time into this fund.                                           |
| <b>Examples / Composition</b>      | All legally authorized payments on behalf of the Govt are made out of this fund.                   | Includes PF deposits, Judicial deposits, S/B deposits, Departmental deposits, Remittances, etc. | Placed at the disposal of the President, and he can make advances out of it for unforeseen expenditure.                      |
| <b>Authorization/Control</b>       | No money out of this fund can be issued except in accordance with a parliamentary law. (UPSC 2015) | Operated by executive action.                                                                   | Held by the Finance Secretary on behalf of the President. It is operated by executive action. (After sanction in Parliament) |

### Article 117: Financial Bills

Appropriation bill for spending Passed, then Amount transfer from CFI to Contingency F-I.

- Article 117 of the Indian Constitution deals with Financial Bills.
- It outlines the procedures for passing a Financial Bill, which includes provisions related to taxation, borrowing, or expenditure but does not solely qualify as a Money Bill. Financial Bills require the recommendation of the President before being introduced in Parliament.
- Unlike Money Bills, which can only be introduced in the Lok Sabha, Financial Bills may also be introduced in the Rajya Sabha, but they must still be approved by both houses.

| Criteria | Money Bills | Financial Bill-I | Financial Bill-II |
|----------|-------------|------------------|-------------------|
|----------|-------------|------------------|-------------------|

Pure money

Primary - money  
Secondary - ordinary

Primary - Ordinary  
Secondary - money

(Famous Preims  
Question)



**ONLYIAS**

BY PHYSICS WALLAH

(close to money bill)

(close to ordinary bill)

| Relevant Article           | Article 110                                                      | Article 117(1)                                                           | Article 117(3)                                            |
|----------------------------|------------------------------------------------------------------|--------------------------------------------------------------------------|-----------------------------------------------------------|
| Scope                      | Deal with <b>only</b> provisions mentioned in <b>Article 110</b> | Contain not only Article 110 matters but also <b>general</b> legislation | Contain expenditure-related provisions not in Article 110 |
| Speaker's Role             | Speaker decides whether a bill is a money bill or not            | No certification of the speaker required                                 | No certification of the speaker required                  |
| Introduction               | Only in Lok Sabha                                                | Only in Lok Sabha                                                        | Can be introduced in both Houses                          |
| President's Recommendation | Needed to introduce                                              | Needed to introduce                                                      | Not needed (Needed in later stage)                        |
| Rajya Sabha's Role         | Cannot amend or reject                                           | Can be amended or rejected                                               | Can be amended or rejected                                |
| President's Action         | Can accept or reject, but cannot return it                       | Can return it for reconsideration                                        | Can return it for reconsideration                         |
| Joint Sitting              | No provision for joint sitting to resolve deadlock               | President can summon joint sitting                                       | President can summon joint sitting                        |

Sessions of Parliament: (Article 85) ↳ Env. Law more sessions ↳ SC Case up to 14

- The Constitution does not mention the number and types of sessions whereas it only says that the gap between two sessions should not be more than six months
- Types of sessions:
  - Budget session - longest session (January - April)
  - Monsoon session
  - Winter session

Voting in Parliament

- Voice Vote: MPs verbally express support ('Aye') or opposition ('No'). Used for quick decisions.



**ONLYIAS**

BY PHYSICS WALLAH

- Division of Votes: Formal voting method using voting machines or headcounts if the voice vote result is unclear.
  - Counting of ballot
  - Head count
  - Sorting of voting

Types of Questions:

- Starred Question: A member desires an oral answer from the minister. These questions are marked with asterisk (\*) and supplementary questions can be asked following the original question.
- Unstarred Question: A written reply is provided by the minister. Supplementary questions cannot be asked in this case.
- Short Notice Question: These are typically asked with a 10-day notice and concern urgent matters. The response is always oral.
- Private Member's Question: Questions can also be asked by private members, but the consent of the chair is required.

Question Hour:

- The first hour of the parliamentary proceedings is dedicated to asking questions, primarily by the opposition.

Zero Hour:

- This term refers to the period around 12:00 noon where members raise matters of urgent public importance. It is a procedure unique to India and is not mentioned in any official rulebook.

Parliamentary committees:

- Discussed in the pdf given in class.

Motions:

- Discussed in the pdf given in class.

## Polity

[30th June, 2025]

### Chapter 07: State Legislature

#### Lecture 01: State Legislature

[Only learning based.]

**State Legislature:** Unicameral: only assembly  
Bicameral: Assembly & Council

| Legislative Assembly (LA) [Legislative Assembly]                                                                                              | Legislative Council (LC) [Legislative Council]                                                                                                                                             |
|-----------------------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <ul style="list-style-type: none"> <li>Directly elected by the people of the state.</li> <li>It is a mandatory house in any state.</li> </ul> | <ul style="list-style-type: none"> <li>Direct and indirectly elected members and Nominated members.</li> <li>Not a mandatory house, i.e., Every State does not have this house.</li> </ul> |

#### Article 168:

- It talks about the State Legislature and the Governor and legislative council.
- There are six states (Andhra Pradesh, Telangana, Uttar Pradesh, Bihar, Maharashtra, and Karnataka) that have a Legislative Council.

#### Article 169 - Creation and Abolition of Legislative Councils:

- Parliament by law, can create or abolish the Legislative Council.
- Procedure for Creation and Abolition:
  - A bill for creation or abolition has to be introduced in the legislative assembly.
  - A nod from the Governor is required.
  - The Legislative Assembly has to pass this bill by a special majority, that is the majority of total membership and 2/3rd present and voting.
  - Once passed, the bill is sent to the Parliament which will pass through a simple majority.
  - Parliament is not bound to take up such bills (For example, Rajasthan, and Odisha bills are pending).

Parliament is bound to pass such bills.

**Rajya Sabha vs. Legislative Council:** (Important for mains) is Equally powerful?

- Rajya Sabha is the second house, whereas the Legislative Council is the secondary house.
- Rajya Sabha is the permanent house, whereas the Legislative Council can be abolished.
- Rajya Sabha has substantial powers in ordinary bills and financial bills, whereas the Legislative Council has very limited powers in ordinary bills also.
- Members of Legislative Councils (MLC) cannot participate in the President and Vice President's election, but the Rajya Sabha can vote.
- The chairman of MLC is a member of the Council only, whereas, in Rajya Sabha, it is the ex-officio member.

#### Need of Legislative Council

→ If very limited powers can be abolished, what is the point behind construction of L.C.

- It checks the hasty legislation of the Assembly. → (A system of checks on Legislative Assembly)
- It can delay the bills which are against the constitution. → (can hold for maximum 3 months?)
- It consists of members who are technical individuals (experts) like artists, scientists, etc from various fields.

↳ (members are technical individuals)

#### Issues with Legislative Council:

- Too much burden on the state budget.
- It is being used to park failed leaders or who are unable to win the elections.

#### Article 170: Composition of Legislative Assembly (LA)

- Minimum 60 members and a maximum of 500 members are allowed.
- Territorial constituencies adjusted on the basis of the 2001 census. (Seat readjustment)

#### Article 171 - Composition of Legislative Council:

- It shall not be greater than 1/3rd members of the assembly and not less than 40 members.
- Parliament may by law can provide a different composition but assembly has fixed this composition.

↳ can have different composition.

#### Elections to Legislative Council:

- 1/3rd of the members are elected by the electorates consisting of the members of local bodies (municipality, district board, etc.). [Indirect elections]
- 1/3rd members are elected by the MLAs of Assembly.
  - For this, MLAs will vote according to proportional representation and the single transferable vote method is followed.
- 1/2th of the members are elected by the electorates residing in the state and having a three-year graduates degree.

- 1/21th of the members are elected by the electorates consisting of government teachers of secondary or higher schools.
  - Election process for the above three are prescribed by the parliament
- 1/6th member will be nominated by the Governor who has special knowledge of science, art, literature, cooperative movement, and social service.
- Other members are elected according to the law made by the parliament.

#### Article 172 - Duration of the State Legislatures:

- The Legislative Assembly has a 5-year duration but can be extended by one year during the time of emergency.
- The Legislative Council: 1/3rd of members retire every two years. (6 years duration as per Representation of People's Act 1951).

#### Article 173: Eligibility Criteria for Membership

To be eligible for election as a member of the Legislative Assembly (MLA), a candidate must:

- Be a citizen of India.
- Take an oath before the Election Commission as prescribed in the Third Schedule.
- Be at least 25 years of age for an MLA and 30 years of age for a Member of the Legislative Council (MLC).

**Note:** Only Parliament has the authority to change or add eligibility criteria for members of the legislature.

#### Articles 174 to 177: Procedural Provisions

- Article 174: Corresponds to Article 85, dealing with the prorogation and dissolution of the Legislative Assembly.
- Article 175: Corresponds to Article 86, which addresses the Governor's right to address the Assembly.
- Article 176: Corresponds to Article 87, concerning the Governor's address to both houses of the legislature.
- Article 177: Corresponds to Article 88, regarding the Governor's right to attend sessions of the Assembly.

#### Officers of the State Legislature

- Article 178: Pertains to the Speaker and the Deputy Speaker of the Legislative Assembly, who are responsible for maintaining order and decorum during proceedings.
- Article 179: Details the procedure for the removal of the Speaker and the Deputy Speaker.
- Article 180: Corresponds to Article 95 regarding the appointment of a new Speaker in case of a vacancy.
- Article 181: Corresponds to Article 96 concerning the appointment of a new Deputy Speaker in case of a vacancy.

- Article 182: Specifies that the Chairman and Deputy Chairman of the Legislative Council are both members of the council.

#### Law-Making Process: Article 196

- **Ordinary Bills:** Ordinary bills can originate in either house of the state legislature. The process is as follows:
  - The bill is passed in the originating house and then sent to the second house for consideration.
  - If the second house is the Legislative Council, it can:
    - Pass or reject the bill.
    - Amend the bill.
    - Not take any action for three months.
- **Reintroduction of Bills:** If the council does not act until three months, rejects the bill again, or does not agree to amendments sent by the assembly, in all three cases, the bill shall be deemed to have been passed by both houses.
- If at all, the legislative council does not take any action for 3 months, and after 3 months if the assembly passes the bill and sends it to the legislative council, then the bill is now passed, once one month has elapsed. Hence the council can utmost delay any bill for a maximum **four months**.

**Note:** These provisions do not apply to money bills, which follow a separate procedure.

**Note:** "The Legislative Council is considered an expensive institution. Therefore, as recommended by the 2nd Administrative Reforms Commission (ARC), it should comprise only members elected from local bodies such as Panchayats and Municipalities. Moreover, every state should have the provision for a Legislative Council."

**Note:** Salaries are given through the consolidated fund of India and the budget under Art 202 is the same as parliament.

- Following members have either salaries charged on consolidated fund of state
  - Governor
  - Salary of Judges of High Court
  - Speaker, Deputy speaker, Chairman, Deputy Chairman
  - State Public Service Commission
- Legislatures can use Hindi/English or their official language but with prior permission of the speaker can use their mother tongue.

**Article 200: Governor's powers regarding bills passed by the State Legislature.**

- Art 200 is constitutional discretion of the governor which is used if the state tries to take away the powers of the high court or union government.
- Recently SC has raised the concern of misuse of Art 200 and discussed the issue of constitutional punctuality.

#### Key Provisions:

- **Assent, Withholding Assent, or Reservation:** When a Bill passed by the State Legislature is presented to the Governor, they have the following options:
  - **Give Assent:** The Governor can grant assent to the Bill, making it a law.
  - **Withhold Assent:** The Governor can withhold assent to the Bill. However, if they choose to withhold assent, they must communicate their reasons to the State Legislature.
  - **Reserve for President's Consideration:** The Governor can reserve the Bill for the consideration of the President. This is typically done in cases where the Bill has significant constitutional, national, or inter-state implications.
- **Reconsideration:** If the Governor returns the Bill (other than a Money Bill) for reconsideration by the State Legislature, and the Legislature passes the Bill again with or without amendments, the Governor shall not withhold assent.

#### Article 201: President's powers regarding bills reserved by the Governor.

- **Decision on Reserved Bills:** When a Bill is reserved by a Governor for the consideration of the President, the President shall:
  - **Assent to the Bill:** The President can give assent to the Bill, making it a law.
  - **Withhold Assent:** The President can withhold assent to the Bill.
  - **Return the Bill**
- If the bill has been returned by the president, the assembly has six months to reconsider and send it back, then the president is not bound to sign it.
- **2024 SC Judgement:** SC in 2024 judgement has directed that-
  - The governor has max one month to withhold assent. It has 3 months to return the bill for a specific reason. It has to reserve the bill for the president within three months. It has to give assent in one month for the bill which is reposed by the legislature.
  - **Constitutional Punctuality:** The constitutional matters shall be dealt in time bound manner.
    - For example: In the USA, it has 10 days for pocket veto, in UK crown works as per councils advice, in Canada crown can withhold the bill for max 2 years but this power has not been used since decades.

[7th July, 2025]

→ A-201 (President's assent reserved bill by governor) **Polity**

→ Reforms in Governor's office

→ Pardoning Power & Judiciary.

## Chapter 08: Judiciary

### Lecture 01: Pardoning Power and Supreme Court

#### Case Laws:

- In the case of *Purushothaman Nambudiri v. State of Kerala*, 1961, the Supreme Court ruled that any bill pending with the Governor for the President's assent will not lapse on the dissolution of the state legislative assembly. 1961-3 Any bill reserved for President's assent will not dissolve with Assembly.
- In *Hoechst Pharmaceuticals Ltd. v. State of Bihar*, 1983 AIR 1019, the Supreme Court held that the discretionary power under Article 201, whereby the Governor reserves a bill for the President's consideration, can be exercised by the Governor on his own judgment, subject to the provisions of the Constitution.

#### Reforms in the Office of Governor:

- Same as previous topic
  - Same as 2024 judgement
  - The Governor should not be made the chancellor of any university.
  - Accountability of the governor should be fixed.
  - Misuse of the discretionary powers must be stopped.
- (Mains specific → Reforms)  
(Supreme Court Directions can be a part of Reforms)  
Lecture-07 (Union Executive)  
New Addition: (Accountability and Discretionary Powers)

#### Article 72 (Judicial Powers): → Handout (Prep Booster 1A5)

- The power under Article 72 is granted to uphold the principle of natural justice.
- It allows for the correction of errors made by the judiciary.
- The provision provides an opportunity for the convicted individual to receive a second chance.
- It helps in mitigating the absolute nature of court decisions.

#### Origin of Article 72:

- The provision traces its roots to the Government of India Act, 1935.
- It was inspired by the power vested in the British Crown.
- It is also influenced by the judicial system in the United States.

The power can be exercised both during the trial process and after the punishment has been handed down.

#### Types of Pardoning Power:

- **Pardon:** This completely absolves the individual of all criminal charges. For instance, a person who is considered a criminal today may not be regarded as such after receiving a pardon. It can be granted even in cases involving the death sentence.
- **Respite:** This involves reducing the sentence in cases where special circumstances exist, such as in the case of an individual's health condition.
- **Remit:** This refers to reducing the duration of the punishment, effectively shortening the period of the sentence.
- **Reprieve:** A reprieve provides a temporary suspension or stay on the execution of the punishment, often to allow for further review or to mitigate the severity of the penalty.
- **Commute:** This refers to the act of altering the punishment from a more severe form, such as rigorous imprisonment, to a less severe one, such as simple imprisonment.

#### Case Laws:

- In the **Kehar Singh Case**, The Court affirmed that the exercise of the pardoning power is subject to judicial review.
- In **Epruv Sudhakar Case**, The Supreme Court held that the pardoning power is not absolute and can be judicially reviewed if there is evidence of malafide intent on the part of the President.

#### Process:

- An appeal can be filed only on grounds of old age, single earning member, pregnancy.
- The jail superintendent forwards it to the president's house.
- If the president decides to dispose of the application, he forwards it to the ministry of home.
- Upon the decision of the ministry, the president takes the decision.
- During this time, the council of ministers are consulted and the decision of the council of ministers is final.
- The final decision under article 72 is binding upon the jail authority.

#### Note:

- Mercy petition is not a right of an applicant but an act of grace. He can only file the petition.
- It is the president's power and not a duty.

#### Exceptions to Article 72:

- Article 72 generally does not apply to cases related to terrorism.

#### Governor's Power Article 161:

- The Governor holds similar pardoning powers as the President, except for the authority to pardon death sentences and cases involving court-martial.
- In 2021, the Supreme Court ruled that the Governor can exercise the power to pardon in cases involving death sentences as well.

Note: The President of the United States can exercise pardoning power in all cases, except in matters related to impeachment.

#### Petitions:

##### Review Petition:

- A convict can file a review petition in the same court if a decision goes against them.
- The chances of success are low because the same bench of judges reviews the matter.

##### Curative Petition:

- In **Ashok Hurra Case**, The Court ruled that curative petitions should be allowed when justice cannot be served through normal procedures.
- The chances of success are high as the matter is re-examined.
- **Process of Filing a Curative Petition:**
  - It is meant to be used as an exceptional remedy in rare cases.
  - A curative petition is applicable when there has been a violation of justice.
  - It is not the right of the petitioner; the court decides whether to accept it.
  - In the **Yakub Memon Case**, The Court held that curative petitions should only be granted in significant cases and cannot be claimed as a right.

#### Judiciary

The judiciary in India plays a crucial role in upholding the rule of law and ensuring justice for all citizens.

#### key functions: